

CONSTABLE'S MISCELLANY
OF
Original and Selected Publications
IN THE VARIOUS DEPARTMENTS
OF
LITERATURE, SCIENCE & THE ARTS.
VOL. LIV.

LIFE OF SIR WILLIAM WALLACE, VOL. II.



G. F. Sargent.

Page 18

W. Archibald Junr

WALLACE'S TREE - TORWOOD.

EDINBURGH:
PRINTED FOR CONSTABLE & CO EDINBURGH.
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L I F E
O F
S I R W I L L I A M W A L L A C E ,
O F
E L D E R S L I E .

BY JOHN D. CARRICK.

THE BUGLE NE'ER SANG TO A BRAVER KNIGHT
THAN WILLIAM OF ELDERSLIE.

THOMAS CAMPBELL.

IN TWO VOLUMES.

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LIFE
OF
SIR WILLIAM WALLACE.

CHAPTER I.

WALLACE APPOINTED GUARDIAN OF THE KINGDOM.—INVADES ENGLAND.—INROAD OF DE CLIFFORD ON THE SOUTH OF SCOTLAND.

Stirling Castle capitulated immediately after the battle, and Sir Marmaduke Twenge,¹ who had taken shelter in it, was sent prisoner to Dumbarton. The surrender of the castle of Dundee followed; and, with the exception of the garrisons remaining in Roxburgh, Berwick, and Dunbar, Scotland was once more completely cleared of her invaders. These places, with the exception of the last, were also given up, as soon as they were summoned by the leaders of the Scottish army; and about this time, at a meeting held in the Forest-kirk, Selkirkshire, Wallace was elected, or declared Regent of Scotland, in the name of King John; the appointment being sanctioned by the presence of the Earl of Lennox, Sir William Douglas, and a number of the most powerful among the nobility.

Thus armed with legitimate authority, the newly appointed Guardian began to exercise it in the manner that he conceived would be most conducive to the general interest and welfare of the country. He had often experienced the difficulties which feudal vassalage presented to his efforts in behalf of the national independence. The numerous serfs who were retained in bondage by the more powerful barons, could be either restrained from taking up arms, or withdrawn at the caprice of their masters, even when their services were of the greatest importance. A power so dangerous in the hands of a party comparatively small, had been productive of the most ruinous consequences. To reform a system pregnant with mischief, and one at the same time so much in favour with the prejudices of the age, required wisdom and energy, such as he possessed. Aware of the opposition which an open and declared attempt to emancipate the *adscripti glebæ* would create,—he attacked the system in the only part where it appeared to be vulnerable. Having divided the country into districts, he caused a muster-roll to be made out, containing the names of all who were capable of

bearing arms between the age of sixteen and sixty. These he divided and subdivided in a manner peculiarly his own. Over every four men he appointed a fifth; over every nine, a tenth; over every nineteen, a twentieth; and thus continued the gradation of rank till it reached the chiliarch, or commander of a thousand.² In the different parishes, gibbets were also erected to enforce obedience to these regulations; and whoever refused to appear for the defence of his country when summoned, was hung up as an example to others. Those barons who interposed their authority to prevent their vassals from joining the ranks of the patriots, were either punished with imprisonment, or confiscation of property.

Though the active and restless mind of Wallace may now seem to have had full employment in the various duties of his office,—yet, amidst the multiplicity of objects of internal policy which occupied his time, the resuscitation of the foreign trade of the kingdom appears to have had its proper share of his attention. The advantage which Scotland derived from her foreign commercial intercourse, as has been already stated, was too important to be soon forgotten; and the heroic and faithful conduct of the Flemings at the siege of Berwick, was too recent not to be dwelt on with grateful remembrance. In order, therefore, to renew the connection with those useful strangers, accredited persons appear to have been despatched with letters to the free towns of Hamburg and Lubeck.³

Having provided for the necessary supplies of men, the Guardian determined on retaliating the injuries Scotland had sustained at the hands of her late oppressors. Meanwhile a famine,—the natural consequence of the neglect of agriculture during the unsettled state of the country, had begun to make its appearance; and was soon followed by a pestilence,—occasioned, doubtless, by the multitude of putrid carcasses which remained, partially at least, if not altogether, exposed after the recent carnage. To alleviate, as far as possible, the misery consequent on those dreaded calamities, he commanded all the standing crops to be carefully gathered in, and stored up in barns and yards under proper regulations, to meet the exigencies of the country during winter. In order, at the same time, to concentrate the strength and resources of the country, and establish that unanimity so necessary for its defence, he summoned all the vassals of the Scottish crown to meet him at Perth. From this parliament, which was pretty numerously attended,

Patrick, Earl of Dunbar, thought proper to absent himself. The great power and military experience of this baron, joined to the circumstance of his occupying a fortress which was considered as the key of the *eastern* part of the kingdom, made it an object of some importance that his allegiance should be unquestionable. An early partisan of Edward, he had as yet shown no disposition to relinquish his unnatural connection with the enemy. When the subject of his absence came, therefore, to be discussed before the Scottish Nobles, they unanimously resolved on proceeding against him without delay. Wallace, however, proposed the more gentle expedient of remonstrance, before having recourse to extremities; and a deputation was accordingly sent, to request his attendance as a Scottish Peer, in order to take part in the government of the country, and to aid, with his counsel and his arms, in the establishment of the national independence. Possessed of large dominions in England, as well as an extensive inheritance in Scotland, this Earl felt little inclination to incur the displeasure of his Lord Paramount in the South, by a too ready accession to the cause of liberty in the North; and he accordingly returned a haughty and scornful answer, no way calculated to allay the prejudice which his former contemptuous behaviour had excited against him. As soon, therefore, as the various objects which had engaged the attention of the parliament were disposed of, Wallace proceeded, with a select body of four hundred men, to reduce the turbulent chieftain. A little to the east of Dunbar, the Guardian found the Earl awaiting his approach at the head of nine hundred followers; and a desperate conflict immediately commenced, which ended in the flight of Patrick, who escaped to England.⁴ The castle of Dunbar was in consequence surrendered to the victor, who gave it in charge to Sir Christopher Seton, with a competent garrison for its defence.

1297. Early in October a proclamation was issued for every one capable of bearing arms to appear on the moor of Roslin. An immense multitude attended. The most vigorous and the best equipped were then selected; and having thus embodied an efficient, numerous, and gallant army, Wallace excited their ardour by a short and animating address, in which he told them, that, united as they were, with only one glorious object in view, they had nothing but victory to expect,—their country had been stript of its wealth by their late oppressors, and it was now their duty and interest to recover it, and punish the aggressors. The army⁵ then proceeded

in high spirits towards the English frontier,—their leader rightly judging, that, by withdrawing so many men, a larger quantity of provisions would remain for those left behind; and by adopting this measure, his soldiers also, while they escaped from the contagion which had appeared in Scotland, would be moreover rewarded for their past labours, by the riches they would find in the more flourishing regions of the South; which, having enjoyed a long interval of peace, might be conceived to be overflowing with that description of wealth most desirable in the estimation of the needy adventurers of the North;—and the latter, no doubt, as they drove home their lowing and bleating prey from the rich pastures of Durham and the neighbouring counties, considered that they were merely removing their own property, of which they had been unjustly deprived by the tyranny of the English.

In this expedition, Wallace divided the command of the army with Sir Andrew Murray of Bothwell, the promising son of the brave Sir Andrew, who fell in the late engagement. This honour he may have thought due to the patriotic conduct of the father, in adhering to the fortunes of his country, amidst the general defection of the Scottish barons. And—as it might tend to give the *lie* to those reports which began to be circulated of an intention to aggrandize himself at the expense of the aristocracy,—the appointment was evidently a measure of judicious and honourable policy.

On the approach of the Scottish army, the inhabitants of Northumberland deserted their dwellings, and fled to Newcastle, carrying with them their wives and children, their cattle and household stuff. The Guardian, however, for a short time delayed his advance; and having received notice that several of the burgesses of Aberdeen, and others in that quarter, had disobeyed his summons to appear at Roslin, he hurried back to the North, where, on apprehending the parties, those whose excuses were inadmissible, he ordered for immediate execution. Hastily rejoining his forces, he crossed the Border, and succeeded in surprising the English, who, thinking the storm had blown over, were returned to their homes.

The Scots now commenced their destructive reprisals, by wasting with fire and sword the counties of Cumberland and Northumberland. In this work of devastation they were assisted by Robert de Ros of Werk, a great northern baron, who, as we have already observed, had deserted the standard of Edward in 1295. It is presumed that the same influence which

formerly seduced him from his loyalty, still existed; and it is a pity that the name of the lady who made so patriotic a use of her charms, has not been preserved by the historians of her country.

The former inroads of the Scots were trifling, compared with the wide-spreading desolation which now marked their career. The havoc they made, and the spoils they collected, are feelingly dwelt on by the English writers of the day. Langtoft thus expresses himself:—

“To werre than ros thei eft, tille God thei mad a vowe,
That no thing suld be left, that myght to Ingland prowē,
Mercy suld none haue, tille alle thei suld do wo,
Kirke suld no man saue, bot brenne ther in & slo.
In Northumberland ther first thei bigan,
& alle that com tille hande, they slouh and ouer ran
To Flandres tille Edward tithinges men him sent,
That Scottis com in hard, the North is nere alle brent,
& more salle zit be lorn, bot if we haf socoure.
Nouht standes tham biforn, toun, castelle ne toure.”

Vol. ii. p. 298, 299.

Hemingford says, “At this time the praise of God was not heard in any church or monastery through the whole country, from Newcastle-upon-Tyne to the gates of Carlisle; for the monks and canons regular, and other priests who were ministers of the Lord, fled with the whole people from the face of the enemy; nor was there any to oppose them, except now and then a few English who belonged to the Castle of Alnwick, who ventured from their strongholds, and slew some stragglers. But these were but slight successes; and the Scots roved over the country⁶ from the Feast of St Luke to St Martin’s day, inflicting on it all the miseries of rapine and bloodshed.”⁷

The Guardian having summoned in all his plundering parties, and concentrated his army, directed his march towards Carlisle. The sack of this city would have been most desirable to the invaders, not only on account of its riches, but also as in some measure enabling them to avenge the injuries inflicted upon Berwick. The place, however, was strongly fortified; and the Scots not being provided with a battering train, they had to content themselves with sending a summons; which, being disregarded by the

garrison, they passed on, and laid waste Cumberland and Allerdale, from Inglewood Forest to Derwentwater and Cockermouth. Winter now advanced:—the frost set in with uncommon severity,—and the Scots, who had created a desert around them, began also to dread the miseries of famine, as well as the inclemency of the season. Their encampments could now be traced by the frozen bodies of those who had perished during the night from the intensity of the cold. Under these circumstances, Wallace gave orders for their return to Scotland.

On their reaching Hexceldsham,⁸ the monastery of which had been plundered during their advance, the following singular scene is said by Hemmingford to have occurred. Three monks, all who had the courage to remain, were observed in a small chapel. Thinking that the danger was over, they had forsaken their concealments, and were endeavouring to repair the damages of the late visitation, when, in the midst of their labours, they discovered the Scottish army returning, and fled in dismay to the oratory. The soldiers, however, with their long spears, were soon among them; and brandishing their weapons, commanded them, at their peril, to give up the treasures of the monastery. “Alas!” said one of the monks, “it is but a short time since you yourselves have seized our whole property, and you know best where it now is.” At this juncture Wallace entered, and commanding his soldiers to be silent, requested one of the monks to perform mass: he obeyed, and the Guardian and his attendants heard the service with becoming reverence. When the elevation of the host was about to take place, Wallace retired for a moment to lay aside his helmet and arms. Instantly the avarice and ferocity of the soldiers broke out. They pressed upon the priest, snatched the cup from the high altar, tore away the ornaments and sacred vestments, and even stole the book which contained the ceremony. When their leader returned, he found the priest in fear and horror at the sacrilege. Wallace, indignant at such conduct, gave orders that the villains should be searched for, and put to death. In the mean time, he took the monks under his own special protection.

As some atonement for the outrage committed, the Guardian granted to the monks of Hexceldsham a charter of protection for twelve months, from the 7th November 1297,⁹ by which their lives and property were held sacred. “The prohibition,” says Lord Hailes, “to slay any ecclesiastic of the

monastery of Hexceldsham, shows that the Scots had been guilty of uncommon barbarities.” Had his Lordship said that the conduct of the Scots was merely an humble imitation of the example which the English had set them in their “Good Friday” *revelries* at the sack of Berwick, he would have been nearer the truth. We find no such restraint put upon the English soldiery, who were allowed to murder their lay and clerical victims indiscriminately; not even excepting nuns, whose sex, independent of every other consideration, ought to have been their protection. If a shadow of humanity can be discovered in the mode of warfare carried on by the two nations, it certainly belongs of right to those who published a prohibition of such enormities. In the invasion by the Scots in 1296, there is no charge brought against them of killing priests. Langtoft says, vol. ii. p. 273, that in coming to Hexham and Leynertofte, they merely chased out the chanons, and took away their goods. Their subsequent severity must therefore have been forced upon them by their enemies.

English writers have lamented, with eloquence and pathos, the cruelties exercised in this invasion; and from their silence respecting the atrocities of their own countrymen, have endeavoured to fix the stain of exclusive barbarity on the arms of Scotland. This is all natural enough, and quite consistent with that national prejudice by which the people of every country are more or less imbued; but it is painfully mortifying, when we find Scotchmen of acknowledged talent and penetration forgetting what is due to themselves and to their country; and from a weak fear of being thought illiberal, following humbly in the train of such authors, and echoing their reflections; or favouringly assenting to their *ex parte* statements, in place of standing forward and showing the world, that their countrymen, in resorting to such severities, merely exercised a system of fair retaliation, for the purpose of repressing enormities of the deepest dye, committed in support of an aggression of the most unparalleled baseness.

During the time the Scottish army was engaged in ravaging the northern counties of England, Robert de Clifford, at the head of one hundred men-at-arms, and twenty thousand foot, left Carlisle, and proceeded to plunder in Scotland. His success, however, was not great, having killed three hundred and eight Scots, burned two villages, and taken a few prisoners, with whom he returned home about Christmas.

Whilst the Guardian was thus successfully prosecuting the cause of his country's independence, his efforts, at the same time, were becoming daily more beneficial to the real liberties of the very people to whom he was opposed. Elated, first by the conquest of Wales, and afterwards by that of Scotland, Edward had already begun to stretch forth the iron rod of oppression over the legitimate subjects of his own native kingdom; and, trusting to the assistance he should receive from the barons of his newly acquired conquests, who, he might naturally suppose would not be found reluctant to act as instruments in holding their late conquerors in subjection, he assumed, towards the nobles of England, an air of haughty superiority that awakened their jealousy, and alarmed their fears. But as the investigation of this subject would interrupt the course of our narrative, we shall reserve it till the end of the volume.¹⁰

CHAPTER II.

WALLACE RETURNS TO SCOTLAND.— ENVIED BY THE NOBILITY.—EDWARD LANDS IN ENGLAND.—WALLACE MEETS HIS ARMY AT STANMORE.—BATTLE OF BLACKIRONSIDE.—LEGALITY OF WALLACE'S REGENCY.—EDWARD INVADES SCOTLAND.—TREACHERY OF TWO SCOTTISH NOBLEMEN.

During the time that Wallace remained in England, his army was occasionally renewed; for as soon as the quota of men belonging to one clan or parish had collected a sufficient share of booty, they were allowed to retire and secure it in the North, while their places were supplied by fresh hordes of not less hungry adventurers. By such means the spoil of England became pretty equally divided throughout the several districts of Scotland, and the inhabitants began to experience the benefits of returning plenty. Having, in this manner, enriched his own country at the expense of her enemies, the intrepid Guardian returned—poor it is true, in wealth, but rich in fame—to behold the prosperity he had so gallantly achieved.¹¹ This expedition, however, though it had increased his reputation among the common people, failed not to awaken the envy of the nobles, who could ill brook the popularity of one whose actions had thrown them so much into the shade; and his praise, which they heard on all sides, sounded in their ears like so many reproaches against themselves, who, possessing wealth and power, either could not, or from treachery would not, do what he, so much their inferior in wealth and influence, had taken in hand and finished, with glory to himself and honour to the country. Hence the private heart-burnings which arose among these noblemen, whose consciences whispered that they had been either traitors or sluggards when the liberty of their country was at stake.

1298. In the mean time, Edward having complied with the demands of his subjects, the Barons of England collected an army, and advanced towards the Border. On the 14th March, the King himself landed at Sandwich, and instantly summoned the Scottish barons to a Parliament at

York. According to Abercrombie, he also addressed letters to the Guardian, and in a strain more impassioned than courteous, upbraided him for his audacity in disturbing the tranquillity of Scotland, and in presuming afterwards to invade England,—a line of conduct which, he observed, would not have been ventured upon, had he (Edward) been in the country; and concluded, by commanding Wallace to redeem his errors by an immediate submission to his authority. To these letters the Guardian replied, that in availing himself of the absence of Edward, in order to regain the liberty of his country, he had done no more than his duty, and that the baseness lay with the English monarch in taking advantage of the disunion of a free people to enslave them. As to invading England, he had done so in order to indemnify Scotland for the injuries she had so unjustly sustained; and in respect to submission, as he intended soon to be in England again, he would then give him his answer in person.

The active and undaunted Guardian was instantly at the heels of his messenger, and on the 20th March came in sight of the English army at Stanmore. Scottish historians say, that Edward's force though much superior to that of Wallace, was composed chiefly of raw militia hastily raised, few or none of his veterans having been yet landed, and that the English monarch, struck with the appearance and admirable discipline of the Scots, and, unwilling to risk his fame in a conflict so doubtful,—when about five hundred paces from the enemy, turned his banners and marched off the field. Wallace, afraid of an ambush, restrained his soldiers from the pursuit, and repressed their ardour by telling them, that the victory they had already gained was the more glorious, as it was got without blood and against the first captain of the age, at the head of an army which, to all human appearance, was able, from its numbers, to have swallowed them up; concluding his address, by ordering thanksgivings to Heaven for so great an interposition in their favour.

This account, however, is not corroborated by English historians. They allege that the King was not present; and in this they are certainly in the right. Edward, on his arrival in England, was detained by matters of importance, in such a manner as to render his presence at Stanmore on the 20th March utterly impossible. That the Scots may have come in sight of the English army on the borders, is not at all unlikely; or that the latter should decline risking a general engagement, after their late reverses,

without the presence of their King, who was daily expected, is extremely probable. It may also be observed, that the charters of their rights, though granted at Ghent, had not as yet been confirmed in England. The conduct of the English leaders, under such circumstances, may be considered as highly prudent and judicious.

But if the Scots were disappointed in *not* coming to blows with their enemies at Stanmore, it was not long before they had an opportunity of trying the mettle of their swords. Aymer, or Aldomer de Vallance, son of the Earl Pembroke, a youth at that time of eighteen years, had raised himself high in the estimation of Edward, by the ready manner in which he accompanied him to Flanders. The abilities and discretion, which he soon displayed, obtained for him so much of the confidence of his master, that he was employed in various important matters of state. On the truce with France being concluded—for the furtherance of which he was appointed a commissioner—Edward, it appears, had ordered him to sail for Scotland with the force under his command, for the purpose of co-operating in the invasion which he meditated on his arrival in England. Various circumstances contributed to retard the projected attempt; and it was not till midsummer that Aldomer and Sir John Siward (a recreant Scot, son of the traitor of Dunbar) landed in Fife with a considerable body of troops, and began to lay waste the country. Their destructive operations, however, were soon interrupted by the arrival of Wallace and his Scots, who fell upon them in the extensive forest of Blackironside, and, after an obstinate conflict, the invaders were defeated with the loss of 1580 men. This engagement, which is sometimes called the Battle of Dillecarew, was fought on the 12th June. The loss of the Scots was comparatively trifling; and, with the exception of Sir Duncan Balfour, Sheriff of Fife, and according to some, Sir Christopher Seton,¹² few, if any, of note, were killed,—Sir John Graham being only wounded. Sir John Ramsay of Auchterhouse, with Squires Guthrie and Bisset¹³ are particularly mentioned as having distinguished themselves in this brilliant rencounter.

On his return to Scotland, after the affair at Stanmore, Wallace applied himself to rectify the abuses and disorders which had arisen from the disorganized state of the country. For this purpose, he seems to have made a tour through the kingdom, and on 29th March we find him presiding in an

assembly of the Barons at Torphichen. At this assembly, which was most probably held in the preceptory of the Templars, various meritorious individuals were rewarded for their patriotic exertions in the cause of independence. Among those, Alexander Scrymgeour had the constabulary of Dundee conferred upon him *and his heirs, for his “faithful aid in bearing the Royal Banner of Scotland, which service he actually performs.”* This document appears to have been made with the consent and approbation of the Scottish nobility, and is dated 29th March 1298.¹⁴

Some authors assert, that the election of Wallace to the Guardianship took place after his return from the invasion of England. Lord Hailes says, he *assumed* the title of Guardian subsequent to that event. This we consider extremely improbable; as the degree of popularity he had attained among his countrymen would have certainly anticipated any assumption on the part of their deliverer. Although Abercromby be not a first-rate authority, we conceive that he is right in placing the election before the advance of Wallace to the south. The immense preparations necessary for an invasion of England, required the sanction of something like legitimate authority to carry it into effect; and the measures which he resorted to for the good of the country, immediately posterior to the battle of Stirling, were not of a less decisive character than those which marked his policy on his return from England. Abercromby also states, that he held a commission of Regency under the seal of Baliol,¹⁵ which was privately executed during the captivity of the latter in the Tower of London. To this statement, tradition unites her testimony, and adds, that Wallace likewise obtained a bond from the principal barons of Scotland, authorizing any measures he might adopt for the recovery of the kingdom. This bond, it is asserted, he held *in terrorem* over the heads of the aristocracy, for the purpose of compelling them to their duty.

The authority of Wallace, however, whether *conferred* or *assumed*, unfortunately for his country, was not destined to be of long duration. Soon after the defeat of the Earl of Pembroke, Edward, now reconciled to his barons, entered Scotland by the eastern marches, with a formidable army, consisting, according to English writers, of 3000 horsemen, armed at all points, 4000 of a lighter description, called *hobelars*, and 80,000 foot. A further reinforcement overtook him on his march, which swelled his forces

to upwards of 100,000 fighting men, a great proportion of whom were veterans, inured to arms in the French wars. To oppose a power so overwhelming in the open field, the Guardian well knew would be in vain; he, therefore, again resorted to those measures which had already been found so effective: the population retired with their cattle and provisions before the approaching enemy, after destroying whatever they conceived might be useful to the invaders. While the Scottish army kept far in the advance, a strict *surveillance* was exercised over the motions of their adversaries, so that few of the English scouts were able to return with any satisfactory account of the position or numbers of their opponents; and though most of the fortified places made little or no resistance, yet the supplies the conquerors found in the garrisons, did little to relieve that scarcity which soon began to be severely felt among the multitudes who followed the banner of England.

In the meantime, the fleet which Edward had ordered to attend him with provisions being detained by contrary winds, he was compelled to wait their arrival; and, for this purpose, he fixed his head-quarters in the preceptory of the Knights Templars at Torphichen;¹⁶ while part of his army occupied Temple-liston, thus keeping open his communication with the sea.

Edward, in his march, had met with little annoyance, except from the stronghold of Dirleton, and two other castles in his rear, the garrisons of which made frequent sorties, and cut off several of his foraging parties. The Bishop of Durham was therefore ordered to lay siege to these fortresses. His efforts, however, were at first unsuccessful; he was driven from the walls of Dirleton with considerable loss; and as the force under his command was in want of provisions, as well as of a sufficient battering train, he sent Sir John Fitz-Marmaduke to represent his situation at head-quarters. “Go back,” said Edward, “and tell Antony that he is right to be pacific when he is acting the Bishop, but that in his present business he must forget his calling: and as for you, Marmaduke,” addressing the messenger, “You are a relentless soldier; I have often had to reprove you for too cruel exultation over the death of your enemies; but return now whence you came, and be as relentless as you choose, you will deserve my thanks, not my censure;—but look you do not see my face again till these three castles are razed to the ground.”¹⁷

While lying inactive in the preceptory of the Templars, Edward appears to have amused himself, by raising a number of young squires to the rank of knighthood; and—a few ships, affording a temporary supply, having very opportunely arrived—a donation of wine was distributed on the occasion among the soldiers, the effects of which liberality soon became apparent. Intoxicated with their allowance, the national animosity of the English and Welsh troops broke out in a dangerous mutiny. The latter, inflamed by wine, and irritated by the privations they had already suffered, attacked the English in their quarters during the night, and murdered eighteen ecclesiastics; whereupon the English cavalry, in revenge, rode in upon the assailants, and slew eighty of their number. The Welsh, who amounted to 40,000, now withdrew from the English in high displeasure at the slaughter of their countrymen; and Edward, having at first made light of the affair, afterwards found it necessary to exert himself, in order to effect a reconciliation. Meantime, the scarcity continued to increase in his camp to such an extent, as induced him to issue his orders for a retreat.

The Scottish army, by the prudence of its leader, had hitherto been kept as it were invisible from the enemy, who were only aware of its existence, by the desolation with which it surrounded them; and the excellent generalship of Wallace was now to all appearance about to be crowned with its usual success, when his plans were rendered abortive by the treachery of his pretended adherents. Two Scottish noblemen¹⁸ found means to communicate to the Bishop of Durham the position of the Scottish army, and their intention to surprise the English by a night attack, and afterwards to hang upon their rear, and harass them in their retreat. Edward received this news with ecstasy. “Thanks be to God!” he exclaimed, “who hath hitherto extricated me from every danger. They shall not need to follow me, since I shall forthwith go and meet them;” and, instantly countermanding the orders for a retreat, he prepared to go in search of the Scottish army.

Though the utmost diligence was used by Edward and his officers, morning was pretty far advanced before the immense concourse of warriors could be put in motion. The distant stations which an army so numerous must necessarily have occupied, rendered an instant removal altogether impossible; and a whole summer’s day was therefore consumed, in enabling them to reach an extensive heath to the east of Linlithgow; where, for that night, they rested in their armour. In the mid-watch, however, an alarm

spread, that the enemy were at hand, and considerable confusion ensued. It originated in an uproar, occasioned by an accident which happened to the King:—His war-horse, which stood beside him, had it seems become restive, and trampled on him as he lay on the heath; and his domestics having raised the cry, that the King was wounded, every man grasped his weapon, and stood on his defence. Philip de Belvey, the King's surgeon, however, soon quieted their apprehensions, and they again betook themselves to rest.

CHAPTER III.

THE ENGLISH ARMY ADVANCE TO LINLITHGOW.—BATTLE OF FALKIRK, FROM THE ACCOUNTS GIVEN BY ENGLISH AND SCOTTISH WRITERS.—MISCELLANEOUS TRANSACTIONS.

Day broke on the army of England moving onward to Linlithgow in one long and variegated column. To those whom sanctity of character, or local situation, enabled to await its approach, the spectacle, which was now at hand, must have been fearfully interesting. Since the days of the Romans, the present army was perhaps the largest that had traversed the plains of Scotland. Many alterations had been introduced about this time into Europe by the crusaders; and Edward, who was no inapt scholar in the military art, had, during his residence in Palestine, and his expeditions to France, availed himself of every invention that came under his observation. His army, therefore, might justly be considered as the most perfect in discipline, equipment, and feudal splendour, that Christendom could boast of at the time. As it approached, it seemed to lengthen,—the interminable array issuing, as it were, from some inexhaustible source on the verge of the horizon: Its glittering mazes occasionally appearing and disappearing among the inequalities of the road, might be aptly compared to the undulating movements of one of those enormous serpents that figure in the pages of romance, some of whose coils are at times seen while its extremities are concealed amid the darkness of the den from whence it is represented as issuing forth. Most of the inhabitants fled before the unwelcome intruders, except a few Carmelite friars, who stopped to gaze on the warlike pageant.

The confused hum of this living mass increased as it advanced, till the deserted walls of Linlithgow resounded to the braying of clarions, the thundering of kettle-drums, and the prancing of war-steeds in flowing caparisons, bestrode by warriors mailed to the teeth, having long two-handed swords depending from their girdles, while their right hands held

lances, and their left supported triangular shields painted with the various devices of their families.

Henry de Lacy, Earl of Lincoln,¹⁹ and Humphry de Bohun, Earl of Hereford, and Constable of England, led the first division. The second was under the charge of Bishop Bek, who, having executed the commission Edward had sent him by John Fitz-Marmaduke, next appeared in this portentous march, attended by thirty-nine banners; for this proud ecclesiastic spared no expense to render his retinue as magnificent as possible. In the third division under the command of the King, besides the royal standard (*three leopards courant*), there waved, the sacred banner of St John of Beverley, that of St George (*white with a red cross*), that of St Edmond, King of the West-Saxons, (*blue with three gold crowns*), that of St Edward the Confessor, (*blue, with a cross fleury between five martlets, gold*), and also the ominous standard of Henry III., by the unfurling of which the army were apprised of the vicinity of the enemy, and the certainty of an approaching battle. This gorgeous emblem of war was never displayed, except to announce a positive intention to fight: it was formed of red satin, bearing a dragon embroidered in gold, having sapphire eyes, and the tongue ingeniously contrived to seem continually moving.²⁰

Amongst those who followed the royal banner, was Brian Fitz-Alan,²¹ the late Governor of Scotland, attended by his vassals, and those Scots who still ventured to oppose the liberties of their country. Of the latter, we find Brian le Jay, preceptor of the Scottish Templars, who probably joined Edward at Torphichen. What number of knights accompanied him to the field in this formidable crusade against the freedom of that people who fostered them, cannot now be ascertained; we may, however, venture to include *John de Sautre*, “*Maister de la Chivalerie de Templi en Ecosse.*”

The immense multitude of Welsh collected by Edward, as being better acquainted with mountain warfare, were dispersed among the different divisions of the forces. Being mostly archers, and clothed in white tunics, they were easily distinguished from the other troops.

Tradition asserts, that this grand army took a whole day to deploy through the town of Linlithgow. This perhaps may be true respecting the parties escorting the heavy war-engines, sutlers attending the camp, and

other stragglers; but the advanced guard of the English came in sight of the Scottish outposts early in the day. The latter occupied the ridge of a hill; and as the English marched up to attack them, a thick mist intervened, and prevented the intended rencounter.

When the day cleared up, the Scottish army was discovered in the distance, taking up their positions, and preparing for battle. Their numbers did not exceed 30,000—not a third part of the force opposed to them; and aware of the immense advantages which Edward possessed, and extremely averse to risk the safety of the country on the issue of a single battle, the Guardian would gladly have protracted the warfare, by retiring farther to the north. Divisions, however, prevailed among the leaders of the Scots; and, before they could agree on the measures necessary to be adopted, the near approach of the English, and the great superiority of the latter in cavalry, rendered retreat extremely hazardous.

The Scottish army, which consisted principally of spearmen or lancers, was arranged in four divisions or schiltrons. Those in the centre held their long spears perpendicular, and stood ready to fill up a vacancy, while each intervening rank gradually sloped their weapons till they came to a level. The front rank kneeling, and the whole closely wedged together, presented to the enemy the appearance of four enormous, impenetrable porcupines, the space between each being filled up with archers.

Edward, on seeing these dispositions for battle, hesitated to give orders for the attack, and proposed that his followers should pitch their tents, and allow the soldiers and horses time for rest and refreshment. This was opposed by his officers, as being unsafe in their present situation,—a small rivulet only intervening between the two armies. “What, then, would you advise?” exclaimed Edward. “An immediate advance!” was the reply; “the field and the victory will be our’s.”—“In God’s name, then, let it be so!” said the King.

The Earls of Lincoln and Hereford, accordingly, led the first squadron to the attack. Their progress, however, was retarded by an extensive morass, which covered the front of the Scots, and obliged their enemies to make a circuit to the west. While thus employed, the powerful squadron under the Bishop of Durham managed to get in front of the enemy. Bek, however, on observing the formidable appearance of his opponents, wished to delay the

charge till supported by the column under the command of the King. “Stick to thy mass, Bishop,” said Ralf Basset of Drayton, “and teach us not what to do in the face of an enemy.”—“On, then,” said Bek, “Set on, in your own way; we are all soldiers to-day, and bound to do our duty.” Instantly they rushed forward, and soon became engaged with the first schiltrons, which was almost simultaneously attacked on the opposite quarter by the first division which had cleared the morass. The cavalry of the Scots, and a large body of the vassals of John Cumyn, immediately wheeled about, and left the field without awaiting the attack. The schiltrons of spearmen, however, stood firm, and repulsed all the efforts of their numerous and heavy-armed assailants, who recoiled again and again from before the mass of spears which their enemies presented. Baffled in their attack, the cavalry of Edward charged upon the archers, who, less able to stand their ground against the weight of their mail-clad adversaries, gave way. In the confusion, Sir John Stewart of Bonkill, brother to the Steward of Scotland, was thrown to the ground, while attempting to rally his vassals, the archers of Selkirk; and though many of them rushed forward to his assistance, their exertions were in vain:—their gallant leader fell, surrounded by the bodies of his faithful tenantry.

Though heavy squadrons of cavalry were continually pushed forward against the Scottish spearmen, still the latter maintained their ranks, and displayed such admirable discipline and stubborn resolution, that Edward, convinced of the inability of breaking their array, suspended the charges of his horsemen, and ordered all his archers and slingers to advance.²²

Langtoft thus describes the conduct and appearance of the Scottish infantry.

“Ther formast conrey, ther bakkis togidere sette,
Ther speres poynt ouer poynt, so sare & o thikke
& fast togidere joynt, to se it was ferlike.
Als a castelle thei stode, that were walled with stone,
Thei wende no man of blode thorgh tham suld haf gone
Ther folk was so mykelle, so stalworth & so clene,
Ther foyntes forward prikelle, nonhut wild thei wene,
That if alle Ingland fro Berwik vnto Kent,
The folk therin men fond had bien thider sent,
Stength suld non haf had, to perte tham thorgh oute,
So wer thei set sad with poyntes rounde aboute.”

Vol. ii. p. 304, 305.

The formation of these Scottish schiltrons was admirably adapted for defence; and had they been supplied with a sufficient body of cavalry to have protected them from the assaults of the archers, they might have kept their ground, in defiance of every effort of the enemy. But, deserted by their own cavalry, they now stood helplessly exposed to a storm of missiles which assailed them in all directions; for though those in the centre bravely pressed forward to fill up the chasms in front, cloud after cloud of arrows, mingled with stones, continued to descend among their ranks with increasing and deadly effect, till the ground was encumbered around them; while their former assailants sat with their horses on the rein, ready to burst in upon them at the first opening that would offer. The Scots at last became unsteady, under the incessant and murderous discharge of the English artillery. The cavalry then dashed forward, and breaking in upon their ranks, completed the confusion.

Wallace now saw that retreat was the only expedient left by which he could save the remnant of his countrymen; and having, with incredible efforts, rallied a number of his most determined adherents, he attacked the foremost of the pursuers, and by that means covered the retreat of the fugitives. Amongst the slain, Brian le Jay²³ is particularly mentioned. The death of this Templar, which took place in Callender wood, damped the ardour of his companions, and enabled the Scots to make good their retreat. In this sanguinary conflict, 15,000 Scots are said to have been left on the field; the most distinguished of whom were Sir John Graham of Dundalk,

Sir John Stewart of Bonkill, and MacDuff, grand-uncle to the Earl of Fife. The extent of the English loss, from the stubborn opposition of their enemies, must also have been considerable. After the battle, Wallace fell back on Stirling, which he burnt, in order to prevent it from falling into the hands of the English.

Respecting this battle, Scottish authors give a very different account from the preceding, which is chiefly taken from the pages of English historians. According to the former, the envy of the nobles towards Wallace, and the dissensions incident thereto, were the chief, if not the sole occasion of the disaster. The Scottish army, say they, consisted of three divisions of ten thousand men each, under the command of Sir John Cumyn, Lord of Badenoch, chief of the powerful clan of that name; Sir John Stewart, brother to the Lord of Bute, who, in addition to his own tenantry, headed those of his absent brother; and Sir William Wallace,—three of the most powerful men in the country, the two former from their birth and influence, the latter from the great fame acquired by his military achievements. On the brink of the engagement, an imprudent and unfortunate disagreement arose among the leaders. Stewart insisted upon taking command of the army, being, as he conceived, entitled to that honour, as the representative of his brother, who was Lord High Steward of Scotland; Cumyn claiming it, in his own right, on account of high birth, and near relationship to the crown; and Wallace, as Guardian of the kingdom, refused to admit the pretensions of either to a command which he, as representative of their absent sovereign, conceived himself every way entitled to, even though he had not earned that honour by former services. Stewart, in the heat of the altercation, is said to have upbraided Wallace with the lowness of his birth, and charged him with encroaching on the rights of the nobility, which reminded him, he said, “of the owl in the fable, who, having borrowed a feather from one bird, and a feather from another, became vain of his plumage, and endeavoured to lord it over his betters. The application is not difficult,” continued he; “for, if every nobleman in Scotland were to claim his part of those vassals which now follow your banners, your own personal retainers would make but a sorry appearance in support of your high-flown pretensions.” Wallace heard, with stern composure, those ill-timed remarks of the haughty chieftain. “I am not ignorant,” said he, “of the source whence this insulting language has proceeded; and since you, my Lord, condescend to utter their sentiments, you may be also induced to imitate their example: and even

this,” glancing a look of indignation at Cumyn, “I am not altogether unprepared for. Your fable of the owl is not quite applicable; for I always showed myself in the face of day, asserting the liberty and independence of my country, while some others, like owls, courted concealment, and were too much afraid of losing their *roosts*, to leave them for such a cause. As to my followers, I wish no man to follow me who is not sound at the heart in the cause of his country; and either at the head or in the ranks of these, I will always consider it my glory to be found. In the mean time, till it appear who are entitled to that character, I will make an alteration in my position.” Having thus spoken, he removed those under his command to a strong position on the face of a hill immediately behind.

Edward, as if aware of the feud that thus existed in the Scottish camp, and though suffering from the effects of his late accident, ordered the Earl of Hereford, Constable of England, to advance with a body of thirty thousand men, to attack the division under Cumyn; who, on seeing them approach, turned his banners, and marched off the field, leaving Stewart and his Brandanes (as the inhabitants of Bute were then called), and the archers of Selkirk, his immediate vassals, exposed to all the fury of the charge. They sustained it with the firmest resolution; but the great mass of assailants against whom they were engaged, left them little chance of success. Stewart, in the early part of the battle, while giving orders to a body of archers, was thrown from his horse and slain. His followers, however, far from being discouraged by the loss of their chief, continued the conflict with the greatest bravery. Macduff, with a great part of his retainers, were cut off, in their endeavours to retrieve the fortunes of the day, yet numbers forced their way through the ranks of the English, and joined the division under Wallace. This was observed by Edward, who, impatient at the resistance he had already met with, ordered Robert Bruce and the Bishop of Durham to advance with the forces under their command. While Wallace was engaged in securing the retreat of his unfortunate countrymen, Bruce made a circuit round the hill which he occupied, and gaining the ascent, obliged him to quit his position, and endeavour to force his way through the enemy beneath. The charge of this fresh body of Scots, composed of the stoutest and best disciplined warriors in the country, was but ill sustained by the division they attacked, which, giving way before their impetuous descent, was thrown into confusion; and Wallace, availing himself of their disorder, directed his troops to cross the Carron, and occupy

a post which commanded the ford. In the meantime, with a small but choice body of his friends, he kept in the rear, and continued to charge and repulse those that were most forward in the pursuit. In one of these efforts, Wallace advanced alone from the midst of his little band, and, with a single blow, slew Sir Brian le Jay, a knight templar²⁴ of high military renown, who had shown himself most active in harassing the retreating Scots. This action rendered the others more cautious in their approaches. Sir John Graham, however, giving way to a gallant but imprudent ardour, advanced too far amongst the enemy, where he was surrounded and slain; and Wallace, after repeated endeavours to revenge the death of his friend, rejoined his followers. This he effected with great difficulty, from the influx of the tide, and the weakness of his horse, which is said to have been so worn out with the fatigues of the day, and the wounds it had received, that the noble animal expired as soon as it had placed its master beyond the reach of his pursuers. By the attention of his trusty follower Kerlé, who stood an anxious spectator on the danger of his chief, Wallace was furnished with a fresh horse; and the two friends, as they moved slowly along the banks of the river, were gazing with silent and sorrowful interest on the scene of carnage they had left, when Bruce, from the opposite bank, having recognised the Guardian, raised his voice, and requested an interview. This was readily granted, and the warriors approached each other from opposite sides of the river, at a place narrow, deep and rocky. When on the margin of the stream, Wallace waved his hand, to repress the curiosity of his followers, while he eyed his misled countryman with stern, but dignified composure. Bruce felt awed by the majestic appearance and deportment of the patriot, and his voice, though loud, became tremulous as he thus addressed him:—"I am surprised, Sir William, that you should entertain thoughts, as it is believed you do, of attaining to the crown of Scotland; and that, with this chimerical object in view, you should thus continue to expose yourself to so many dangers. It is not easy, you find, to resist the King of England, who is one of the greatest princes in the world. And were you even successful in your attempts, are you so vain as to imagine, that the Scots will ever suffer you to be their King?" The Guardian did not allow him to say more. "No," replied he, "my thoughts never soared so high, nor do I intend to usurp a crown I very well know my birth can give me no right to, and my services can never merit. I only mean to deliver my country from oppression and slavery, and to support a just cause, which you have

abandoned. You, my lord, whose right may entitle you to be King, ought to protect the kingdom; 'tis because you do it not, that I must, and will, while I breathe, endeavour the defence of that country I was born to serve, and for which, if Providence will have it so, to die. As for you, who, in place of exerting your talents to turn the tide of battle in your country's favour, choose rather to live a slave, if with safety to your life and fortune, than free, with the hazard of losing the latter, you may remain in possession of what you so much value, while the hollow praises of our enemies may blind you to the enormity of your conduct; but remember, my lord, they whom you are thus aiding to bind the yoke of slavery on the necks of your countrymen, will not long consider that conduct praise-worthy in you, which they would condemn as infamous in themselves; and if they are successful in rivetting our chains, you will find your reward in the well-earned contempt of the oppressor, and the hearty execrations of the oppressed. Pause, therefore, and reflect; if you have but the heart to claim the crown, you may win it with glory, and wear it with justice. I can do neither; but what I can I will—live and die a free born man.” These generous sentiments, uttered in a clear, manly, and determined tone of voice, came home to the heart of Bruce, with all the sternness of deserved reproof; and he was about to reply, when the ringing of harness, followed by the appearance of a number of helmets, over-topping the ridge of a neighbouring hillock, made it prudent to break off the conference.

Such are the particulars of this memorable battle, as related, with some trifling variations, by most of, if not by all, our old Scottish historians. As modern commentators, however, consider themselves justified in denying some of the material points; particularly the feud among the leaders—the presence of Bruce in the engagement—and, consequently, his conference with Wallace, we shall in this place devote a few pages to their consideration.

These objections are chiefly founded on the authority of Hemingford and Trevit, two English monks, who are said to have had their information from eye-witnesses. This may be all true; but when we find one of them (Hemingford) asserting, that “*fifty thousand Scots were slain in the battle, many drowned, three hundred thousand foot taken prisoners, besides a thousand horse,*” we may reasonably suppose the possibility of the eye-witnesses being so much occupied in counting their killed and captured

enemies, that matters of such comparatively trifling importance may not have had the requisite share of their attention. Lord Hailes, however, lends the weight of his highly respectable name in support of those who deny the truth of this portion of our national annals, and thus expresses himself on the points in question: "It would be tedious and unprofitable to recite all that has been said on this subject by our own writers, from Fordun to Abercrombie, how Wallace, Stewart, and Comyn quarrelled on the punctilio of leading the van of an army, which stood on the defensive; how Stewart compared Wallace to an owl, with borrowed feathers; how the Scottish leaders, busied in this frivolous altercation, had no leisure to form their army; how Comyn traitorously withdrew with ten thousand men; how Wallace, from resentment, followed his example; how, by such disastrous incidents, the Scottish army was enfeebled, and Stewart and his party abandoned to destruction. Our histories abound in trash of this kind. There is scarcely one of our writers who has not produced an invective against Comyn, or an apology for Wallace, or a lamentation for the deserted Stewart. What dissensions may have prevailed among the Scottish commanders, it is impossible to know. It appears not to me, that their dissensions had any influence on their conduct in the day of battle. The truth seems to be this:—The English cavalry greatly exceeded the Scotch in numbers—were infinitely better equipped, and more adroit. The Scottish cavalry were intimidated and fled:—Had they remained in the field, they might have preserved their honour, but never could have turned the chance of that day. It was natural, however, for such of their party as survived the engagement, to impute the disaster to the defection of the cavalry:—National pride would ascribe their flight to treachery rather than to pusillanimity. It is not improbable, that Comyn commanded the cavalry; hence a report may have spread, that Comyn betrayed his country: the report has been embellished by each successive relation. When men are seized with a panic, their commander *must* of necessity, or *will* from prudence, accompany them in their flight. Earl Warren fled with his army from Stirling to Berwick, yet Edward did not punish him as a traitor or a coward.

"The tale of Comyn's treachery and Wallace's ill-timed resentment, may have gained credit, because it is a pretty tale, and not improbable in itself; but it always amazes me that the story of the *congress* of Bruce and Wallace, after the battle of Falkirk, should have gained credit. I lay aside the

full evidence which we now possess, ‘that Bruce was not at that time of the English party, nor present at the battle’—for it must be admitted, that our historians knew nothing of those circumstances which demonstrate the impossibility of the *congress*—but the wonder is, that men of sound judgment should not have seen the absurdity of a long conversation between the commander of a flying army, and one of the leaders of a victorious army. When Fordun told the story, he placed ‘a narrow but inaccessible glen’ between the speakers. Later historians have substituted the river Carron, in place of an inaccessible glen; and they make Bruce and Wallace talk across the river like two young declaimers from the pulpits in a school of rhetoric.”

With all due deference to his Lordship, we conceive that the strength of his first objection lies chiefly in adhering too literally to the words “*leading the van*,” made use of by some of our old writers; others, who mention the quarrel, do not so express themselves. Now, we do not see any thing so improbable in a discussion arising among these chiefs, who considered themselves independent of each other, about who should have the supreme command in directing the operations of the day, which, we presume, is all that is to be understood in this instance by “*leading the van*.” The obvious advantage of having a commander-in-chief in so momentous an occasion, could not have escaped the merest tyro in military tactics; and that no person was appointed to this office, even his Lordship does not deny. That Wallace, from past services, as well as from being Guardian of the kingdom, had reason to consider himself entitled to this distinction, cannot be disputed; and it is not likely, from the talents and foresight he had displayed on former occasions, that he would have come to the field against so powerful and so experienced an adversary, without having previously formed some plan for conducting the operations of the day, so as to counteract the great superiority of force, which the English monarch had brought into the field. The thwarting of his plans, by the envy and hauteur of his colleagues, affords a plain and obvious solution of his conduct; and his resignation of the Guardianship after the battle, (which his Lordship does not deny,) very strongly corroborates the account given by our Scottish historians, of the treatment which he received on the field; and this treatment must have been attended with circumstances which convinced him of the utter hopelessness of his being able to direct the resources of the country to advantage. Strong indeed must have been the reasons which

induced this brave, intrepid, and prudent pilot, to relinquish the helm of affairs at so critical a juncture. That an unfortunate animosity existed, we have the most ample testimony; and though his Lordship conceives it to have been so very trifling in its nature, as not to influence the parties in the discharge of their duty, yet we have respectable and incontrovertible evidence that it not only did so, but was the principal, if not the sole cause of the disasters which overwhelmed the country. Wyntown thus expresses himself, on the occasion:

“For dyspyt and gret inwy
The Comynys Kyn all hályly
Fyrst left the Feld; and, as behowyd,
Syne Willame Walayis hym remowyd:
For he persáwyd gret malys
Agayne hym scharpyd mony wys.”

And again,

“Before than couth ná man say,
Ná nevyr wes sene befor that day,
Sá hále wencust the Scottis men:
Ná it had noucht fallyn then,
Had noucht Falshed and Inwy
Devysyd theme sá syndryly.”

Here there is no national pride interfering, to conceal the extent of the discomfiture of the Scots; and it is surprising his Lordship should conceive, that any one would think it necessary to invent what he calls a “*pretty tale*,” for the purpose of soothing the national feelings. Thirty thousand Scots, we presume, may be defeated by ninety or a hundred thousand English, without being *very* much disgraced by the affair; whereas the English authorities may have been silent on circumstances which tended to diminish the glory of their victory, even had they come to their knowledge.

That Cumyn commanded the cavalry is merely a conjecture of his Lordship; but allowing it to have been the case, we conceive there is a material difference between a leader joining in the general flight of his army, and one riding off with part of the forces, and leaving the rest to stand the brunt of the engagement. If Warren had acted so, we presume he would

either have been punished as a traitor, or cashiered as a coward. That Cumyn was afterwards elected one of the regents of the kingdom, affords no satisfactory evidence of his having acted correctly. He was at the head of the only entire body of troops in the country, and his faction unbroken—of course, there could be no opposition to his election. And the wonder is, considering the ambition of the man, that under these circumstances he was not appointed sole regent, in place of sharing a divided authority, as will be seen in the sequel, with one who was his inferior in birth, talents, and influence.

We cannot see any great improbability of the “*congress*” (as his Lordship calls it) having taken place in the manner described, provided that *Bruce was present*. Wallace had already secured his troops from immediate pursuit. Bruce might think it a favourable opportunity to palliate his conduct at Irvine; and Wallace, who was seldom afraid to come in juxtaposition with any one, might have been easily induced to stand when he hailed him. His Lordship’s objection is founded chiefly on the length of the conversation. Now, if any one will peruse it, even in the most verbose of our historians, he will find that it could not have occupied more than five minutes, which certainly cannot be called “a long conversation,” or at least so long as to afford any thing like a plausible objection to its occurrence. As to Fordun having placed “a narrow inaccessible glen” between the parties, it does not in the least affect the credibility of the account. Few glens are to be found in Scotland, without a river or stream of some description running through them; and in speaking of any of these, it is no uncommon thing for one person to allude to the glen, and another to the river or stream so connected with it.

That all our ancient authors should agree in the circumstance of Bruce being present at the battle, is very singular, provided he was not there. How they should all be in this state of ignorance is rather unaccountable, considering the facility they had of informing themselves; as some of them must have written from authority, if not of eye-witnesses, at least of those who derived their accounts from such. It is not at all probable that Bruce, who is universally acknowledged to have been a monarch of great political sagacity, would have allowed a tale, so likely to injure him in the opinion of his subjects, to get into general circulation, while the contrary statement, *if true*, would have tended to exalt him in their estimation. There appear so

many irreconcilable circumstances involved in the belief of this opinion, that we feel much inclined to suspect some little discrepancy in the evidence to which his Lordship so confidently alludes,²⁵ more particularly as Wyntowne, whose authority is highly appreciated by all writers, is so very pointed in asserting the presence of Bruce in the English army. The words are,

“Bot yhit the lele Scottis men,
That in that feld ware feychtand then,
To-gyddyr stwd sá fermly
Strykand before thame manlykly,
Swá that náne thare thyrl thame mycht,
Bot Robert the Brows than wyth a slycht,
(*He thare wes wyth this King Edwart,
Set he oure Kyng wes eftyrwart*)
Wyth Schyre Anton the Bek a wyly man,
Of Durame Byschape he wes than,
A-bowt ane hill a well fere way
Owt of that stowre than prikyd thay;
Behynd bakkis alsá fast
Thare thai come on, and layid on fast;
Swá made thai the dyscumfytowre.”

Here our author, not satisfied with stating, that “Robert de Brows” was with “*King Edwart*,” but, in order to establish the identity of the person, and guard against his being confounded with the elder Robert Bruce, or any other of the same name, he says expressly,

“*Set he oure Kyng wes eftyrwart.*”

If Bruce was at this time on the side of the patriots, as his Lordship says, it is singular that he did not appear among them on this eventful day, in a manner becoming his birth, talents, and great territorial influence. When all the chiefs of the party had collected their followers for a grand national struggle, Bruce is represented as employed in guarding, what his Lordship, for the sake of *effect*, calls the “important castle of Ayr,” which, it seems in those days, “*kept the communication open with Galloway, Argyllshire, and the Isles.*”²⁶ Had the possession of this “important castle”

been of any use to an army stationed between Linlithgow and Falkirk, it certainly could have been defended by a person of less consequence than Bruce, whose military talents and numerous vassals would have been of infinitely greater service in the field. When Wallace was straining every nerve to collect the strength of the country, to oppose the formidable invaders, and with his utmost efforts could not muster more than 30,000 soldiers, can it be supposed, that he would have failed to summon to the standard of liberty a baron of such influence as the Earl of Carrick, if he thought there were a chance of the summons being obeyed?

Though his Lordship asserts that Bruce had deserted the cause of Edward, yet he does not attempt to show that any communication took place between him and the Scottish army; nor by what authority he assumed the defence of the castle of Ayr, which was a fortress at that time belonging to the Crown. If Hemingford, on whose authority his Lordship chiefly relies, could have gone so egregiously astray from every thing like probability in the account he gives of the casualties of the battle, we may, without injustice, receive his testimony on this, or on any other subject, with suspicion; particularly when it goes to contradict historians of acknowledged veracity, who had opportunities of being at least equally well informed on the subject as himself. It has been advanced by the learned annalist, in evidence of the truth of Hemingford's statement, that lands and castles belonging to Bruce were plundered and taken by the English army. By a parity of reasoning, if these lands and castles had been exempt from the general outrage, it would have proved that Bruce was in the interest of England; and the Guardian and Barons of Scotland would thereby have stood convicted of the unparalleled folly of allowing lands to be occupied, and castles to be held, in the very centre of the country, by the open and declared partisan of their enemy. That the title of Bruce to his Scottish estates was in abeyance, and his castles garrisoned for the safety of the commonwealth of Scotland, is the most probable state of the affair. When the half-famished soldiers of Edward, therefore, pillaged the lands, and attacked the castles of Bruce, they did what their King, under such circumstances, neither could nor would restrain, whether his vassal had renounced his allegiance or not. This conduct on the part of the English, therefore, can afford no evidence whatever of Bruce being at the time "in arms against England."

These observations the writer has thought it expedient to make, in support of the relation given of the battle of Falkirk by the ancient historians of Scotland. As the talents, however, which Lord Hailes has displayed in his researches into Scottish history, are held by the public in high, and in many instances, deserved estimation; and though it is with reluctance that we differ from one whose opinions in general are entitled to credit; yet, as we find him in this instance at variance with most of our ancient Scottish authorities, we have thought it our duty to endeavour to lay both sides of the question fairly before the reader, in order that he may be able to form his own opinion of the matter.

CHAPTER IV.

NOTICES RESPECTING SIR JOHN GRAHAM AND SIR JOHN STEWART.—CONDUCT OF CUMYNN.—WALLACE RESIGNS THE GUARDIANSHIP.—EDWARD RETURNS HOME.—TRIUMPHANT PROCESSION OF THE LONDONERS IN HONOUR OF HIS VICTORY AT FALKIRK.—REVIEW OF THE CAMPAIGN.

The retreat of Wallace from the field of Falkirk, may justly be considered as a masterpiece of generalship. The formidable bodies of horse at the disposal of Edward, afforded him ample means of following up and cutting off the retiring army of the Guardian. That so large a body of the Scots, though deserted by their own cavalry, should however have effected their escape in presence of a force so powerful, so well appointed, and headed by one of the first generals of the age, is truly astonishing; and can only be accounted for by supposing, either that the English must have suffered severely in the action, or that the conduct displayed by Wallace was such as awed them from the attempt.

According to the Minstrel, the Guardian, after withdrawing his troops to a place of safety, returned to the field, accompanied by Malcolm Earl of Lennox, Ramsay of Auchterhouse, Sir Richard Lundin, Wallace of Riccarton, Sir Crytell Seton,²⁷ and a number of their followers, to seek for the body of Sir John Graham—the English being by this time removed to Linlithgow.

Considering the great affection our hero entertained for this gallant and accomplished warrior, the circumstance is not improbable. The high value he placed on his services was such, that, in speaking of Graham, he used to designate him as his “right hand.” The regret which he felt at his death, would no doubt have been embittered by the reflection, that his friend might easily, from the state of the wounds which he had received at the affair of Blackironside, have absented himself from the battle of Falkirk, without the slightest injury to his reputation. The distress of Wallace, on seeing the dead body, is thus finely depicted by the forementioned author:—

“Amang the ded men sekand the worthiast,
 The corss off Graym, for quham he murned mast.
 Quhen thai him fand, and gud Wallace him saw,
 He lychtyt down, and hynt him fra thaim aw
 In armyss vp; behaldand his pail face,
 He kyssyt him, and cryt full oft, ‘Allace!
 My best brothir in warld that euir I had!
 My afald freynd, quhen I was hardest stad!
 My hop, my heill, thow was in maist honour!
 My faith, my help, my strenthiast in stour!
 In the was wyt, fredom and hardines;
 In the was treuth, manheid, and nobilness;
 In the was rewill, in the was gouernans;
 In the was wertu with outyn warians;
 In the lawté, in the was gret largnas;
 In the gentrice, in the was stedfastnas.
 Thow was gret causs off wynnyng off Scotland;
 Thocht I began, and tuk the wer on hand,
 I wow to God, that has the warld in wauld,
 Thi dede sall be to Sotheroun full der sauld.
 Martyr thow art for Scotlandis rycht and me;
 I sall the wenge, or ellis tharfor de.’
 Was na man thar fra wepyng mycht hym rafreyn
 For loss off him, quhen thai hard Wallace pleyn.
 Thai caryit him with worschip and dolour,
 In the Fawkyrk graithit him in sepultour.”

In this monody, we have a highly finished portrait of a warrior and a gentleman; and the assemblage of rare and shining virtues which are thus said to have met in this illustrious individual, have never been denied or depreciated by the most fastidious of our critics; while all our historians bear uniform testimony to the correctness of the character.²⁸ Having discharged this duty to his departed friend, Wallace rejoined his followers in the Torwood; and, on the following night, he is said to have broken into the English camp on Linlithgow muir, and, after killing a number of the enemy, and spreading alarm through the whole army, effected his retreat without loss.

Edward, incensed at the frequency with which these night attacks were repeated, now determined on pursuing the Scots with his whole forces. His nimble adversaries, however, retired before him, and, having burned Stirling, continued to waste the country as they went along; so that the enemy was put to the greatest inconvenience, from the want of forage for his numerous cavalry.

While the Guardian and his little army of patriots were thus engaging the attention of the invader, Cumyn and the partisans of Stewart were loud in their expressions of disapprobation at the conduct of our hero. The latter charged him with the loss of the battle, by his refraining to assist Stewart till it was too late; and the former, conscious of his own misconduct, in order to supply something like a pretext for having treacherously deserted his countrymen, accused the Guardian with an intention of usurping the sovereign authority; declaring, “that it was more honourable for men of birth to serve a great and powerful monarch, though a foreigner, than subject themselves to the tyranny of an upstart of yesterday.”

While such sentiments were circulating among the adherents of these two powerful families, to the manifest injury of the cause of liberty, Cumyn was still increasing the number of his followers; and it appeared uncertain, whether he intended to assist his countrymen, or take part with the invader. Wallace now saw, that, without involving the kingdom in all the horrors of civil war, he could not exercise his authority so as to compel this factious chief to the discharge of his duty; and as the views of Cumyn with regard to the crown, had, on many occasions, been too palpably displayed, to have escaped the observation of Wallace, his late unaccountable retreat had completely opened the eyes of the Guardian to the line of policy he was pursuing. Indeed, had both divisions of the Scottish army been destroyed, Cumyn would have found little difficulty in obtaining the crown from Edward, on the same terms as it had been awarded to Baliol: for being at the head of a powerful body of men, with great family interest, and having already made a favourable impression on the English king, by his conduct at the battle of Falkirk, it is highly probable that any lingering partiality which Edward might still entertain for Bruce—whom he had long amused with hopes of the crown—would soon disappear before the pretensions of a more useful claimant. But as Cumyn made the ambition of Wallace the pretext for his refraining to co-operate against the English, with a

promptitude which showed his mind as decisive as his sword, when the interest of his country was at stake, the latter called the Estates together, and solemnly renounced the Guardianship of the kingdom, reserving to himself no other privilege than that of fighting against the enemies of Scotland, at the head of such friends as might be inclined to adhere to him. This resignation was accordingly followed by the election of a Regency, consisting of Cumyn, Soulis, and William Lamberton, Bishop of St Andrews;²⁹ and by this conduct on the part of Wallace, Cumyn was left without the shadow of an excuse for withholding his assistance against the common enemy; while the talents, prowess, and patriotism of the late Guardian acted as a check in restraining him from sacrificing the interest of the country to his own personal aggrandizement.

Edward reached Stirling four days after the late battle, and took up his quarters in the convent of the Dominicans. Here he remained fifteen days, waiting his recovery from the wound inflicted on him by his horse, and for the arrival of his long-expected fleet. The Castle of Stirling having been partly demolished by Wallace, in his retreat, Edward now applied himself to repair it; and therein, as a place of safety, he deposited those unwieldy engines of war he had brought with him for the purpose of battering the fortifications, and which he found would be troublesome, while pursuing his enemies over the rugged and mountainous country that lay before him.

The accession of strength which the cause of liberty acquired, by the prudent measures of our patriot, enabled the Scots more effectually to embarrass the movements of the enemy. While he, with his brave followers, continued to surprise the foe, by breaking into their camp where least expected, the other leaders were engaged in preventing supplies from reaching the English; and Edward, at last, became apprehensive of advancing too far into the sterile regions of the North. A scarcity had already begun to be severely felt in his army, and he now prudently directed his march towards the more fruitful districts in the neighbourhood of Perth. But there also his unwearied and restless enemy continued to assail those parts of the army that appeared most vulnerable; and having at last cut off a part from the main body of the English forces, by breaking down the bridge over the Tay, in three successive engagements he defeated them with great slaughter. The English army, however, was still too numerous for the Scots to risk a general engagement; and Edward, finding no probability of

bringing the war to a satisfactory conclusion, after wreaking his vengeance on the most fruitful parts of the country, returned home through Ayrshire and Annandale, carrying with him all the spoil he could collect. A body of troops under the command of Henry de Lacy, made a similar inroad in Fife, destroying whatever came in their way, in revenge, no doubt, for the gallant stand the inhabitants had made under MacDuff, their late unfortunate chief. After destroying St Andrew's,³⁰ he laid siege to the castle of Cupar, which surrendered about the end of July.³¹

Edward now led his army homewards, after leaving a force to protect the southern part of Scotland, the reduction of which was all his mighty efforts had been able to accomplish. To have defeated Wallace, however, a name which had filled England with dismay, was considered by his subjects an achievement deserving of the highest eulogium. The disasters of the campaign were accordingly forgotten, and bands of minstrels issued from the different towns on his route, to welcome the conqueror at Falkirk. The Londoners decreed him a triumphal procession in honour of his victory, and the different corporations vied with each other in the richness of their banners and the splendour of their emblematical representations. Stowe thus mentions the affair; and if we may judge of the appearance of the other professions by the display made by the fishmongers on this joyous occasion, the whole must have exhibited a mass of barbaric magnificence not easily to be surpassed:—"The citizens of London hearing of the great victory obtained by the King of England against the Scottis, made great and solemn rejoicings in their citie, every one according to their craft, especially the fishmongers, which with solemn procession passed through the citie, having, amongst other pageantes and shows, foure sturgeons gilted, carried on four horses, then four salmons of silver on four horses, and after five and fortie knights armed, riding on horses made like lucas of the sea, and then Saint Magnus with a thousand horsemen. This they did on St Magnus' day, in honour of the King's great victory and safe return."

Before closing this chapter, it may not be amiss to take a retrospect view of this most interesting campaign. At the commencement of it, Scotland, by the wisdom and energy of her intrepid Guardian, had again taken her place among the independent nations of Europe. His noble achievements had not only become a theme for the Troubadours of France,

but also the subject of conversation and applause at all the courts on the Continent. To Edward, who had not only distinguished himself by his warlike exploits in Syria, but had also, in a tournament held at Calais, baffled and disgraced the most renowned of the chivalry of France, the plaudits bestowed upon a rival so far beneath him in rank, was peculiarly mortifying, and excited in him the most inveterate hostility toward the nation thus rescued from his thralldom. Wallace, though making every effort for the safety of his country, found no abatement of that feeling of jealous animosity which existed in the minds of a great majority of the aristocracy. It was in vain he endeavoured to ensure their confidence, by refusing all participation in the fruits of their victories,—thus shewing that *self-aggrandisement* formed none of the objects of his ambition. Still they yielded with reluctance that obedience which his rank as Guardian entitled him to expect; and their language in private continued to be, “We will not have this man to reign over us.”

Cumyn, whose conduct had hitherto been suspicious, had strengthened his interest at the English court, by means of a marriage which he contracted with the sister of Adomer de Vallance,³² a cousin, and one of the principal favourites of Edward; and the Steward, brother to the knight of Bonkill, had made his peace with the invader, and taken the oath of allegiance. In consequence of which, according to the policy of the English monarch, though the tenantry of the Steward were arrayed against him, yet the banners of the family floated among those of the other vassals of the English crown, while the knight of Bonkill himself (who had but recently joined the standard of his country’s independence) had as yet given no proof of the sincerity of his attachment to the cause. Under these circumstances, it became Wallace to be particularly circumspect in his movements, having to guard against the chance of treachery on the one hand, and a powerful adversary on the other; while his country’s safety, and his own well-earned laurels, depended alike on the prudence of his conduct. We have already hinted at the great improbability of his appearing before so formidable an enemy, without having formed a regular plan of operation, and made provision for the contingencies that might occur. That he had arranged such a plan, and was prevented, by the jealousy of his colleagues, from putting it into execution, appears sufficiently obvious, even from the meagre details of which we are possessed. What this plan was, cannot now

be fully ascertained; but if we may judge from the circumstances on record, we may infer that it was not his intention to risk a general engagement with the enemy at Falkirk, but merely to retire as they advanced, and to lead them as far as possible into the barren districts of the North, where their numerous cavalry would be rendered in a great measure unavailing. But the conduct of Cumyn, and the profitless display of valour on the part of Stewart, brought him unavoidably into contact with the enemy; respect for his own reputation prevented him from retiring, while part of his countrymen were so seriously engaged; and by remaining, he not only covered the retreat of the remains of Stewart's division, but also, by his commanding attitude, prevented the enemy from pursuing the fugitives with that destructive celerity which their numerous cavalry would have enabled them to do, had he acted otherwise. We have been induced to make these remarks, as Wallace is too rashly blamed for "remaining a passive spectator of the destruction of Stewart." This, according to the generality of writers, is the only stain upon his character. However, from a careful review of all the circumstances of the case, we can find no foundation whatever for the charge; on the contrary, taking into consideration the peculiarly embarrassing situation in which he was placed, we conceive that, during the whole of his brilliant career, the wisdom, talents, and patriotism of Wallace, never shone forth with more resplendent lustre than at the battle of Falkirk.

CHAPTER V.

STATE OF SCOTLAND AFTER THE RETURN OF EDWARD.—VARIOUS EXPLOITS OF WALLACE.—BALIOL DELIVERED OVER TO THE POPE.—THE SCOTS BESIEGE STIRLING CASTLE.—EDWARD RAISES AN ARMY FOR ITS RELIEF.—THE ENGLISH BARONS REFUSE TO ACCOMPANY HIM.—SURRENDER OF STIRLING CASTLE.—CONDUCT OF CUMYN.

On retiring with his army, as stated in the last chapter, Edward left behind him a considerable force to protect that part of Scotland which lay contiguous to England, and which he seemed determined, if possible, to annex to his own dominions. Although his invasion had been productive of very disastrous consequences to the Scots, they did not suffer so much on this, as they had done on former occasions. The judicious orders issued by the Guardian, for driving the cattle—which formed the principal part of their wealth—to inaccessible parts of the country, contributed not only to their safety, but also to the disappointment and distress of the enemy. On the retreat, therefore, of the grand army of Edward, the inhabitants were far from being that wretched and dispirited race, which they had appeared after the battle of Dunbar. Several of the chieftains, it is true, had repeated their oaths of fidelity to the invader, but the defection from the cause of liberty was by no means general. The principal places of strength, with the exception of Stirling, were in the hands of the Scots; and the impregnable fortress of Dumbarton³³ had been given, by Wallace, in consequence of his services in the cause of his country, in charge to Sir John Stewart of Rusky, better known by the name of Menteith. This man had been present with Wallace at the burning of the barns of Ayr, as well as in many other situations of danger and difficulty. According to Henry, when the Guardian bestowed this charge upon him, he stipulated for the erection of a small house for himself within the fortress, in the building of which considerable progress had been made, when the English army entered Scotland. Some writers allege, that the reason which induced Wallace to make choice of such a situation, was the great friendship which existed between him and

Menteith, to whose society, they say, he was much attached, and which, by this means, he would have a better opportunity of enjoying. With this opinion, however, we cannot agree. That Menteith was high in the confidence of Wallace, is sufficiently evident from his appointing him to so important a trust—for, besides the governorship of the castle, his situation naturally gave him the command of a considerable part of the district of Lennox—yet we conceive that Wallace had other motives for selecting such a place of retirement, than the mere pleasure of enjoying the society of a friend, however valued that friend might have been. The hostility which he had excited in the breast of Edward by his conduct in Scotland, as well as by his invasion of England, gave him every reason to dread the revenge of that haughty and crafty potentate; while the vacillating character of a great proportion of the nobility—joined to that inextinguishable jealousy which existed against him in the minds of some of the most powerful families—made it both desirable and prudent to look out for a place where, in the decline of life, he might be secure from the attempts of his country's enemies, as well as the machinations of his own. The more immediate cause, however, may have been the safety of his surviving relations. The circumstance of so many of them having already suffered on his account, would, no doubt, make him consider it as a duty incumbent on him to provide for those that remained. His uncle, the parson of Dunipace, he had but recently relieved from a dungeon, into which the English had thrown him; and his mother had frequently been obliged to fly from the fortalice of Elderslie, in order to preserve herself from falling into the hands of the enemy. These, we presume, to have been the motives which induced him to stipulate for this little sanctuary, and not an overweening affection for the society of Menteith. His selection of him, however, for this purpose, shows the entire confidence he had in his fidelity.

With regard to the building itself,³⁴ we have it on record, that the workmen on one occasion had to desist from their operations, in consequence of the English having taken possession of the town: they were, however, soon dislodged by Wallace, who surprised them at midnight, and drove them out with great slaughter. This affair is supposed to have taken place after the battle of Falkirk.³⁵

Aware that the approach of winter would render the conveyance of military stores almost impracticable, after his return to England, Edward lost no time in despatching to the castles of Stirling, Dumfries, Lochmaben, and the other fortresses in his possession, those necessities of which they were most likely to be in want.³⁶ But the active and persevering character of the enemy he had to contend with, made him apprehensive that they would avail themselves of his absence, and the inclemency of the season, to recover the strengths they had lost in the last campaign; and in this he was not mistaken, for winter had scarcely commenced, before Wallace and the Scottish regents laid siege to, and recaptured, several places of importance.

During 1299, while hostilities were still going on, Baliol appears to have become an object of negotiation between the Pope and the English court, although the Pontiff had solemnly and repeatedly declared his fixed determination never to interfere in the affairs of Scotland; assuring Edward of his conviction “that the Scots were a false and treacherous people,” and that he believed they had a design against his life. Still his liege-lord held the King of Scotland in unmitigated captivity,³⁷ till, at the urgent entreaty of the Pope, he was delivered over to the Papal Nuncio, with liberty to dispose of him and his English possessions as the Pontiff thought proper. It is possible that the renunciation of the guardianship on the part of Wallace, conducted as much as any thing else to Baliol’s release; and it is likely that the crafty usurper conceived the measure might distract the regency, by exciting anew the jealous competition among the former claimants of the crown. If this were his intention he must have felt grievously disappointed on learning that the regents, awed, no doubt, by the watchfulness and influence of the late Guardian, continued to act in concert, and had even laid siege to the strong castle of Stirling, which he had been at such pains to repair and provision.³⁸ The vigour with which the operations against this fortress were carried on, soon compelled the besieged to despatch messengers to Edward to acquaint him with their situation; and fully aware of the importance of the place, and determined to relieve it, the latter assembled his army at Berwick early in November. His barons, however, he found intractable. Certain charters had not been confirmed, and certain lands in Scotland had been gifted away to strangers without their consent and contrary to his engagements; in consequence of which they resolutely

refused to proceed beyond Berwick, alleging, among other causes, the impolicy of undertaking a campaign beset with so many dangers, at such an advanced season of the year. Edward and his barons were alike obstinate, and the latter retired in dudgeon; while he, in the same humour, marched forward with the remains of his army to the relief of Stirling. He had not, however, proceeded far, before he became acquainted with the numbers and formidable position occupied by the Scots. Thus circumstanced, he retraced his steps, and allowed the garrison to negotiate a surrender;³⁹ in consequence of which, the castle was shortly after given up to Lord Soulis, one of the Regents, who placed it under the charge of Sir William Olifant, a brave knight, who proved himself in every respect deserving of the trust reposed in him.

John Cumyn, the other Regent, is said to have also gained advantages over the enemy, and to have, in other respects, conducted himself so as in a great measure to efface the remembrance of his former offences. Indeed, so well pleased were the generality of his countrymen with his proceedings on the commencement of the regency, that we find some of the old historians applying to him the epithet of the "*Gude Scottisman*." From this circumstance, some have supposed, that John Cumyn, the Regent here alluded to, was not the same who behaved with such treachery at the battle of Falkirk. In this opinion they at first sight appear to be countenanced by Wyntown, who styles him "*Jhon Comyn, that was Jhon Comyn's swn*;" but, it must be recollected that there were three Cumyns of the name of John, father, son, and grandson.

The gleam of popularity which at this time shone out upon Cumyn, is not to be wondered at. Placed in a situation desirable, on account of the prospect it opened up to his ambition—and which he could only retain by a line of policy in unison with the spirit of liberty which his predecessor had infused into the people—he not only exerted himself against the common enemy, but used every effort in his power to gain the affections of his countrymen. His large possessions and great wealth, which, it is said, were never equalled by those of any family in Scotland, enabled him to relieve the people from various imposts necessary for the support of the government; while the applications which the Regency made to France, for troops to assist them in the defence of their independence, were answered

by supplies of grain and wine, which, being a boon, were sold out to the people at half their current value.

This procedure would no doubt ensure him the good opinion of that class of his countrymen, who could not see the high price, which, in a national point of view, was paid for the comforts thus procured them. The more thinking party, however, saw through the policy of France, in thus attempting to cajole the Scots with a few cargoes of wine, instead of fulfilling the terms of the treaty, offensive and defensive, that existed between them. From the dissatisfaction which this conduct, on the part of their allies, occasioned among the Scottish nobility, it was determined to send commissioners to France, to demand that assistance which they were bound to afford; and, if unsuccessful, they were instructed to proceed to Rome, and lay their grievances at the feet of the Apostolic Father, and to solicit his interference to restrain the English monarch from renewing his aggressions upon their country.

CHAPTER VI.

EDWARD AGAIN INVADES SCOTLAND.—SIEGE OF CARLAVEROCK.—MISCELLANEOUS OCCURENCES DURING THE SIEGE.

The accounts which Edward was daily receiving of the progress of the Scots, determined him to renew hostilities, as soon as circumstances would permit. Having regained the good will of his barons, by a gracious compliance with their demands, by writs tested, on 29th December 1299, he summoned all who owed him military service in England and elsewhere, to attend at Carlisle on the feast of the nativity of John the Baptist.

1300. “On the day appointed,” (1st July), says an eye-witness,⁴⁰ “the whole host was ready, and the good King, with his household, then set forward against the Scots, not in coats and surcoats, but on powerful and costly chargers, and, that they might not be taken by surprise, well and securely armed.

“There were many rich caparisons embroidered on silks and satins; many a beautiful penon fixed to a lance; and many a banner displayed.

“And afar off was the noise heard of the neighing of horses; mountains and vallies were every where covered with sumpter-horses and waggons with provisions, and sacks of tents and pavilions.

“And the days were long and fine. They proceeded by easy journeys, arranged in four squadrons.”

The first squadron was led by Henry de Lacy, Earl of Lincoln.⁴¹

The second was under John, Earl of Warren and Surrey.

King Edward conducted the third squadron himself, and, says the fore-mentioned author, “brought up the rear so closely and ably, that none of the others were left behind. In his banner were three leopards courant of fine gold, set on red; fierce, haughty, and cruel; thus placed, to signify, that, like

them, the King is dreadful fierce, and proud to his enemies, for his bite is slight to none who inflame his anger; not but his kindness is soon rekindled towards such as seek his friendship or submit to his power." This part of his character, the Scots would not call in question.

The fourth squadron was led by "Prince Edward, a youth of seventeen years, and bearing arms for the first time. He was a well-proportioned and handsome person, of a courteous disposition, and intelligent; and desirous of finding an occasion to display his prowess. He managed his steed wonderfully well, and bore with a blue label the arms of the good King his father." John de St John, an experienced warrior, was in close attendance upon the Prince, ready to instruct him in what his duty required.

Eighty-seven of the most illustrious vassals of the Crown of England, with their retainers, were in this array, including knights of Bretagne, Lorraine, and renegades of Scotland, among whom we find Alexander de Baliol, brother to the King of Scots, Patrick, Earl of Dunbar, and his son, Sir Simon Frazer, Henry de Graham, and Richard Siward. This formidable and splendid assemblage of feudal power, which completely filled the road from Newcastle, halted about nine miles south of Dumfries, for the purpose of besieging the Castle of Carlaverock, a stronghold belonging to Herbert Maxwell, chief of a powerful border clan of that name, and who had refused to surrender to a summons which Edward had sent forward. The siege of this place has been passed over, or very slightly noticed, by the historians of both countries. Langtoft merely says—

"A pouere hamlete toke,
The Castelle Karelauerok,"—

passing over, in this brief manner, a siege which not only engaged the attention of the King, but also interrupted the progress of his whole army.

The account which is given by Walter of Exeter, is not only valuable from its being the only well-authenticated description extant, by an eye-witness of the leaguer of any of the Scottish fastnesses during this period, but also from its being extremely interesting, by the minuteness of its details, and the graphic manner in which the author has portrayed the appearance and demeanour of the combatants. It would be doing the reader injustice to present it to him otherwise than in the nervous, elegant, and appropriate language of the accomplished translator.

“Carlaverock was so strong a castle, that it did not fear a siege, therefore the King came himself, because it would not consent to surrender. But it was always furnished for its defence, whenever it was required, with men, engines, and provisions. Its shape was like that of a shield; for it had only three sides all round, with a tower in each angle; but one of them was a double one, so high, so long, and so large, that under it was the gate, with a draw-bridge, well made and strong, and a sufficiency of other defences. It had good walls, and good ditches filled to the edge with water; and I believe there never was seen a castle more beautifully situated; for at once could be seen the Irish sea towards the west, and to the north a fine country, surrounded by an arm of the sea, so that no creature born could approach it on two sides, without putting himself in danger of the sea.

“Towards the south it was not easy, because there were numerous dangerous defiles of wood, and marshes, and ditches, where the sea is on each side of it, and where the river reaches it; and therefore it was necessary for the host to approach it towards the east, where the hill slopes.

“And in that place by the King’s commands, his battalions were formed into three, as they were to be quartered; then were the banners arranged, when one might observe many a warrior exercising his horse: and there appeared three thousand brave men at arms; then might be seen gold and silver, and the noblest and best of all rich colours, so as entirely to illuminate the valley; consequently, those of the castle, on seeing us arrive, might, as I well believe, deem that they were in greater peril than they could ever before remember. And as soon as we were thus drawn up, we were quartered by the Marshall, and then might be seen houses built without carpenters or masons, of many different fashions, and many a cord stretched, with white and coloured cloth, with many pins, driven into the ground, many a large tree cut down to make huts; and leaves, herbs and flowers gathered in the woods, which were strewed within; and then our people took up their quarters.

“Soon afterwards, it fortunately happened, that the navy arrived with the engines and provisions;⁴² and then the footmen began to march against the castle; then might be seen stones arrows, and quarreaux, to fly among them; but so effectually did those within exchange their tokens with those

without, that in one short hour there were many persons wounded and maimed, and I know not how many killed.

“When the men-at-arms saw that the footmen had sustained such losses who had begun the attack, many ran there, many leaped here, and many used such haste to go, that they did not deign to speak to any one. Then might there be seen such kind of stones thrown as if they would beat hats and helmets to powder, and break shields and targets in pieces; for to kill and wound was the game at which they played. Great shouts arose among them, when they perceived that any mischief occurred.

“There, first of all, I saw the good Baron Bertram de Montbouchier, on whose shining silver shield were three red pitchers, with besants, in a black border.

“With him Gerard de Gondronville, an active and handsome bachelor. He had a shield neither more nor less than vaire. These were not resting idle, for they threw up many a stone, and suffered many a heavy blow.

“The first body was composed of Bretons, and the second were of Lorrain, of which none found the other tardy; so that they afforded encouragement and emulation to others to resemble them. Then came to assail the castle, Fitz-Marmaduke, with a banner and a great and full troop of good and select bachelors.

“Robert de Willoughby I saw bore gold fretty azure.

“Robert de Hamsart I saw arrive, fully prepared, with five followers, holding a red shield by the straps, containing three silver stars.

“Henry de Graham had his arms red as blood, with a white saltire and chief, on which he had three red escalop shells.

“Thomas de Richmond, who a second time collected some lances, had red armour, with a chief and two gemells of gold. These did not act like discreet people, nor as persons enlightened by understanding; but as if they had been inflamed and blinded with pride and despair, for they made their way right forwards to the very brink of the ditch.

“And those of Richmond passed at this moment quite to the bridge, and demanded entry; they were answered with ponderous stones and cornues. Willoughby in his advances received a stone on the middle of his breast,

which ought to have been protected by his shield, if he had deigned to use it.

“Fitz-Marmaduke had undertaken to endure as much in that affair as the others could bear, for he was like a post; but his banner received many stains, and many a rent difficult to mend.

“Hamsart bore himself so nobly, that from his shield fragments might often be seen to fly in the air; for he, and those of Richmond, drove the stones upwards, as if it were rotten, whilst those within defended themselves by loading their heads and necks with the weight of heavy blows.

“Those led by Graham did not escape, for there were not above two who returned unhurt, or brought back their shields entire.

“Then you might hear the tumult begin. With them were intermixed a great body of the King’s followers, all of whose names, if I were to repeat, and recount their brave actions, the labour would be too heavy, so many were there, and so well did they behave. Nor would this suffice, without those of the retinue of the King’s son, great numbers of whom came there in noble array; for many a shield, newly painted, and splendidly adorned, many a helmet, and many a burnished hat, many a rich gambeson, garnished with silk, tow and cotton, were there to be seen, of divers forms and fashions.

“There I saw Ralph de Gorges, a newly dubbed knight, fall more than once to the ground from stones and the crowd, for he was of so haughty a spirit that he would not deign to retire. He had all his harness and attire mascally of gold and azure.

“Those who were on the wall, Robert de Tony severely harassed; for he had in his company the good Richard de Rokeley, who so well plied those within, that he frequently obliged them to retreat. He had his shield painted mascally of red and ermine.

“Adam de la Forde mined the walls as well as he could, for the stones flew in and out as thick as rain, by which many were disabled. He bore, in clear blue, three gold lioncels rampant crowned.

“The good Baron of Wigtown received such blows, that it was the astonishment of all that he was not stunned; for, without excepting any lord

present, none shewed a more resolute or unembarrassed countenance. He bore, within a bordure indented, three gold stars on sable.

“Many a heavy and crushing stone did he of Kirkbride receive, but he placed before him a white shield with a green cross engrailed. So stoutly was the gate of the castle assailed by him, that never did smith with his hammer strike his iron as he and his did there. Notwithstanding there were showered upon them such huge stones, quarrels, and arrows, that with wounds and bruises they were so hurt and exhausted, that it was with great difficulty they were able to retire.

“But as soon as they had retreated, he of Clifford, being advised of it, and like one who had no intention that those within should have repose, sent his banner there, and as many as could properly escort it, with Bartholomew de Badlesmere, and John de Cromwell, as those who could best perform his wishes; for whilst their breath lasted, none of them neglected to stoop and pick up the stones to throw them, and to attack.

“But the people of the castle would not permit them to remain there long. Badlesmere, who all that day behaved himself well and bravely, bore on white, with a blue label a red fess between two gemelles. Cromwell, the brave and handsome, who went gliding between the stones, bore on blue, a white lion rampant, double-tailed, and crowned with gold; but think not that he brought it away, or that it was not bruised, so much was it battered and defaced by stones before he retreated.

“After these two, La Warde and John de Gray returned there, and renewed the attack. Those within, who were fully expecting it, bent their bows and cross-bows, and prepared their espringalls, and kept themselves quite ready both to throw and to hurl.

“Then the followers of my Lord of Brittany recommenced the assault, fierce and daring as lions of the mountains, and every day improving in both the practice and use of arms. Their party soon covered the entrance of the castle, for none could have attacked it more furiously; not, however, that it was so subdued, that those who came after them would not have a share in their labours; but they left more than enough for them also.

“After these, the people of my Lord of Hastings assembled there, where I saw John de Cretinques in danger of losing a horse. When upon it, one

came beneath pricking it with an arrow; but he did not seem to be dissembling, he used such haste to strike him. On his white shield he caused to be depicted a red chevron, with three mullets.

“He who bore a dancette and billets of gold on blue, John Deincourt by name, rushed on to the assault, and there extremely well performed his duty.

“It was also a fine sight to see the good brothers of Berkeley receiving numerous blows; and the brothers Basset likewise, of whom the eldest bore thus,—ermine, a red chief indented, charged with three gold mullets; the other, with three shells; found the passages straitened. Those within continually relieved one another; for always as one became fatigued, another returned fresh and stout; and, notwithstanding such assaults were made upon them, they would not surrender, but so defended themselves, that they resisted those who attacked, all that day and night, and the next day until tierce. But their courage was considerably depressed during the attack, by the brother Robert, who sent numerous stones from the robinet, without cessation, from the dawn of the preceding day until the evening. Moreover, on the other side, he was erecting three other engines, very large, of great power, and very destructive, which cut down and cleave whatever they strike. Fortified town, citadel, nor barrier—nothing is protected from their strokes. Yet those within did not flinch, until some of them were slain; but then each began to repent of his obstinacy, and to be dismayed. The pieces fell in such manner, wherever the stones entered, that when they struck either of them, neither iron cap nor wooden target could save him from a wound.

“And when they saw that they could not hold out any longer, or endure more, the companions begged for peace, and put out a pennon; but he that displayed it was shot with an arrow, by some archer, through the hand into the face; then he begged that they would do no more to him, for they will give up the castle to the King, and throw themselves upon his mercy. And the marshal and constable, who always remained on the spot, at that notice forbad the assault, and these surrendered the castle to them.”

The besieged, who had thus retarded the progress of this mighty host, were now passed in review before Edward, and, *including all ranks*, were found to amount to “*sixty men*,” “who were,” says our author, “beheld with much astonishment.”—“They were all kept and guarded, till the King

commanded that life and limb should be given them, and ordered to each of them a new garment:" "But this account of the treatment of the prisoners," says Mr Nicolas, "differs entirely from that in the Chronicle of Lanercost, where it is said that many of them were hung."

The banner of Edward now waved on the battlement of Carlaverock Castle, along with those of St Edmond, St George, St Edward, Sir John Segrave, the Earl of Hereford, and that of Lord Clifford, to whom Edward had given it in charge. The army then proceeded on their march. ⁴³

CHAPTER VII.

WINCHELSEA, ARCHBISHOP OF CANTERBURY, READS A BULL FROM THE POPE, IN THE ENGLISH CAMP BEFORE CARLAVEROCK.—EDWARD'S ANSWER.—EARL WARREN ADVANCES TO IRVINE.—CRUELTY OF THE ENGLISH AT LESMAHAGO.—EDWARD AGREES TO A TRUCE.—WALLACE VISITS FRANCE.—CAPTURES A FRENCH PIRATE.—NOTICES OF LONGUEVILLE.

While the English army were encamped before Carlaverock, Winchelsea, Archbishop of Canterbury, arrived with a bull, directed to Edward, from the Pope.

The application which, as has already been stated, the Scottish commissioners were instructed to make to King Philip for the stipulated assistance having at first been evaded, and afterwards finally refused—the embarrassing situation of his own affairs affording him a plausible pretext for withholding the aid necessary for the relief of his allies—the Scots, according to their instructions, proceeded to lay their complaints before the Court of Rome. Boniface listened with complacency to their grievances, and readily undertook to interpose his authority in their behalf. For this purpose, he addressed to Edward a letter of admonition, exhorting him to desist from any further attempts to subvert the liberties of a kingdom over which he had no lawful claim. The groundless nature of the pretensions he had set up, the Pontiff proceeded, at considerable length, to explain—being, no doubt, enabled to do so, from the information furnished him by the commissioners. Among other matters, he reminded him, that the mere circumstance of his having negotiated with the Scots, for the marriage of his son with the heiress of Scotland, must prove fatal to any plea he might advance in favour of his being the feudal lord of that kingdom, as he would find no one weak enough to believe that he would have submitted to negotiate, when he had a right to command. “He also,” says a respectable historian, “mentioned several striking facts which fell within the compass of Edward’s own knowledge, particularly that Alexander, when he did homage to the King, openly and expressly declared in his presence, that he swore

fealty *not for his crown, but for the lands which he held in England*; and the Pope's letter might have passed for a reasonable one, had he not subjoined his *own* claim to be *liege lord of Scotland*, a claim which had not once been heard of, but which, with a singular confidence, he asserted to be full and entire, and derived from the most remote antiquity." This letter Boniface concluded, by exhorting him, in his name, to set at liberty all those ecclesiastics and others belonging to the country whom he had imprisoned, and to remove all officers he had appointed to places of trust in the kingdom, contrary to the wishes of the people; directing him, if he conceived he had still any reasons to allege in support of his pretensions, to send persons properly authorized to Rome, where he, the Pope, would hear the case, and within six months give an impartial decision. To these exhortations the Archbishop added his own, urging, among other things, the propriety of his yielding obedience to so sacred an authority, observing, that Jerusalem would not fail to protect her citizens, and to cherish, like Mount Zion, those who trusted in the Lord. At the conclusion of this address, which was made in the presence of Prince Edward and the assembled nobles, the King became furious, and with a great oath exclaimed, "I will not be silent or at rest, either for Mount Zion or for Jerusalem, but, as long as there is breath in my nostrils, I will defend what all the world knows to be my right." On calmer reflection, however, he saw the necessity of returning a milder answer to the admonition of his adviser, in which he promised to consult his parliament, and send messengers to Rome to acquaint his Spiritual Father with the result of their deliberations.

In a parliament assembled some time after at Lincoln, the Pope's bull was submitted to the consideration of the English Barons; and in his reply, Edward attempted to prove the superiority of England by historical facts, deduced from the period of Brutus the Trojan, who, he said, founded the British monarchy in the age of Eli and Samuel. He then supports his position by all the events which passed in the island before the arrival of the Romans: And, after laying great stress on the extensive dominions and the heroic victories of King Arthur, he vouchsafes at last to descend to the time of Edward the Elder, from which period he has chosen to begin his claim of superiority. He asserts it as a fact *notorious, and confirmed by the records of antiquity*, that the English monarchs had often conferred the kingdom of Scotland on their own subjects—had dethroned those vassal-kings when unfaithful to them, and had substituted others in their stead. He displays,

with great pomp, the full and complete homage which William had done to Henry II.—without mentioning the formal abolition of that extorted deed by King Richard, and the renunciation of all future claims of the same nature. Yet in this paper he begins with a solemn appeal to the Almighty, the searcher of hearts, for his own firm persuasion of the justice of his claim; and no less than a hundred and four barons, assembled in parliament at Lincoln, concurred in maintaining before the Pope, under their seals, the validity of the pretensions. At the same time, they took care to inform Boniface, that although they had justified their cause before him, they did not acknowledge him as their judge: the crown of England was free and sovereign: they had sworn to maintain all its prerogatives; and would never permit the King himself, were he willing, to relinquish its independence.

Edward, on leaving Carlaverock, now advanced into Galloway, and took several castles in that province. He appears to have been at Lochroieton on the 17th July, and at Kirkcudbright on the 22d of same month. On 29th August he returned to Carlaverock. He was at Dumfries on the 24th October, and again at Carlaverock on the 1st November.⁴⁴ His own operations appear, on this occasion, to have been in a great measure confined to the south of Scotland.⁴⁵ Detachments of his army, however, extended themselves in different directions; and various conflicts took place between them and the Scottish *guerilla* parties under Wallace. A strong division of the English army, commanded by the Earl of Warren, advanced also as far as Irvine, and came in contact with the Scottish forces, headed by the Regents. The field was keenly contested for some time; but the Scots were at last compelled to fall back before the repeated charges of their more numerous opponents. Another portion of the English army laid waste Clydesdale; and after destroying Bothwell, advanced to Lesmahago—to the Abbey church of which, a number of the inhabitants had fled for safety. This sanctuary, however, according to tradition, did not avail them. Their merciless invaders set fire to the sacred edifice, and many of the Scots perished miserably in the flames. During the perpetration of this tragic act, Wallace, who followed the tract of the destroyers, was forced, it is said, to conceal himself in a cave, four miles distant from the scene of barbarity, carefully watching, by his scouts, the motions of the enemy. This cave still goes by his name, and is pointed out by the country people as an object of curiosity to strangers.

While this warfare was carrying on by his detached squadrons, Edward was concerting measures for permanently annexing to his own dominions, the district he had overrun. For this purpose, he employed numerous bodies of his own subjects, in repairing and fortifying the different places of strength which had surrendered to his arms; and the reluctance of the Scots to assist in the subjugation of their country, appears evident from his being compelled to bring labourers, at a considerable expense, from the northern counties of England.⁴⁶

A large portion of the provisions required for his troops he seems also to have been under the necessity of bringing from Ireland. Between Whitehaven and Carlaverock we find William de Torni, master of a vessel belonging to the Isle of Man, employed in carrying flour for the supply of the army. In the wardrobe account there is also an entry,⁴⁷ from which it may be inferred, that the destruction of the mills formed part of the system which the Scots resorted to for the annoyance of their enemies.⁴⁸

As the campaign had hitherto been productive of no result adequate to the expense incurred, Edward now affected to listen to the remonstrances of Philip and Boniface, and agreed to a truce with the Scots in arms against him. The negotiation took place at Paris between the English envoys and the Scottish commissioners at the French court, and was finally ratified by Edward at Dumfries on the 30th October 1300, when he expressed himself highly offended with the English envoys for allowing Baliol's name, as King of Scotland, to appear in the treaty. This truce was to last from Hallowmas to Whitsunday;⁴⁹ and in consequence of it, all the English troops except those in garrison were withdrawn from Scotland and disbanded. Edward then summoned his parliament at Lincoln, and returned the answer to Boniface to which we have already alluded.

1301. After the conclusion of the treaty, Wallace is supposed to have gone on a visit to France, in consequence of the repeated invitations of Philip, who was no doubt anxious to behold a man whose name had become familiar at every court in Europe, and whose exertions in his own country had so often relieved himself from the hostile visits of the King of England.

On his way, the vessel in which he had embarked along with a few select friends, is said to have been attacked by a noted pirate of the name of Longueville, at that time the terror of the seas, and the Paul Jones of his day. After a desperate conflict, Wallace and his party succeeded in boarding the enemy; and Longueville, being vanquished in a personal combat with Wallace, surrendered at discretion. The gallant manner, however, in which he acted during the fight, gained him the esteem of our hero, who subsequently discovered that he was a French nobleman, and, at one time, high in favour at court, but who had fallen under the displeasure of the King, in consequence of having killed a knight in the royal presence; for which offence his estates were forfeited, and himself banished from the kingdom. Smarting under these indignities, he had commenced a system of piracy, for which he was outlawed, and every avenue to the royal clemency shut against him. Wallace, on arriving at Paris, found himself so well received by the French monarch—who no doubt expected his assistance against the English in Guienne—that he ventured to solicit, and, after some difficulty, obtained a pardon for Longueville, who had accompanied him to Paris in disguise.

Various stories are told of the adventures of Wallace in France; but as the histories of that country are in general silent regarding them, most of our authors have considered them fabulous; and some even carry their incredulity so far as to doubt of his ever having been there. But as he appears evidently, on one or more occasions, to have withdrawn himself from Scotland, and as those writers who doubt of his being in France have not accounted for the chasms that his absence naturally makes in his history, nor appear to have any thing to urge against his visits to that country but their *doubts*; we cannot allow unsupported *misgivings* to stand in opposition to the recorded testimony of ancient writers, who ought to have known more of transactions near their own days than authors who wrote many ages after them—particularly as the circumstance in question could serve no political or party purpose at the time; and of course, could afford no temptation for mis-statement. We may also remark, that the adventure with Longueville is corroborated by traditions still existing in the country, as well as by the fact of a family in Scotland, not long extinct, having derived their pedigree from that brave man; who, according to the law of arms in those days, thought himself bound to follow the fortunes of his conqueror. Longueville is said to have accompanied Wallace to Scotland, where he had

lands assigned him; and the following notice in the Statistical Account of the parish of Kinfauns, goes a considerable way to establish the truth of what is here related:—"In the Castle of Kinfauns is kept a large old sword, probably made about five hundred years ago, and to be used by both hands. It is shaped like a broadsword, and is five feet nine inches long, two and a half inches broad at the hilt, and of a proportionable thickness, with a round knob at the upper end, near eight inches in circumference. This terrible weapon bears the name of *Charteris's Sword*, and probably belonged to Sir Thomas Charteris, commonly called Thomas de Longueville, once proprietor of the estate of Kinfauns. Sir Thomas Charteris, *alias* Longueville, was a native of France, and of an ancient family in that country. If credit can be given to accounts of such remote dates, when he was at the court of Philip le Bel, in the end of the thirteenth century, he had a dispute with, and killed a French nobleman, in the King's presence. He escaped, but was refused pardon.

"Having for several years infested the seas as a pirate, known by the name of the Red Reiver, from the colour of the flags he carried on his ship, in May 1301 or 1302 (by Adamson's chronology), Sir William Wallace, in his way to France, encountered and took him prisoner. At Wallace's intercession, the French King conferred on him a pardon, and the honour of knighthood. He accompanied Wallace on his return to Scotland, and was ever after his faithful friend, and aiding in his exploits. Upon that hero's being betrayed and carried to England, Sir Thomas Charteris retired to Lochmaben, where he remained till Robert Bruce began to assert his right to the crown of Scotland. He joined Bruce, and was, if we may believe Adamson, who refers to Barbour,⁵⁰ the first who followed that King into the water, at the taking of Perth, January 8, 1313.

"Bruce rewarded his bravery by giving him lands in the neighbourhood of Perth, which appear to be those of Kinfauns, and which continued in the family of Charteris for many years. It is to this ancient knight, and to the antique sword above-mentioned, that Adamson refers in these lines (Book VI.) of his 'Muses Threnodie:'

——‘*Kinfauns*, which famous *Longoveil*
Sometime did hold; whose auncient sword of steele
Remaines unto this day, and of that land
Is chiefest evident.’—p. 158.

“About forty years ago, upon opening the burying vault under the aisle of the church of Kinfauns, erected by this family, there was found a headpiece, or kind of helmet, made of several folds of linen, or some strong stuff, painted over with broad stripes of blue and white, which seems to have been part of the fictitious armour wherein the body of Sir Thomas Longueville, or Charteris, had been disposed.⁵¹

“Some persons of the surname of Charteris,” says the editor of the Perth edition of Wallace, “lairds of Kinfauns, and of Cuthilgourdy, were provosts of Perth, and would make a distinguished figure in the heroic annals of Perth, if the old writs of that city were properly displayed.”

According to the same authority, there were families of the name of Charteris in Scotland, long before the time assigned to Thomas de Longueville. Andrew de Charteris, who swore fealty to Edward in 1296, is said to have been the ancestor of the noble family of Wemyss.

CHAPTER VIII.

EDWARD AGAIN INVADES SCOTLAND.—SIR SIMON FRAZER DESERTS THE ENGLISH,
AND JOINS HIS COUNTRYMEN.—WALLACE RETURNS TO SCOTLAND.—BATTLE OF
ROSLIN.

The truce which circumstances had extorted from Edward, was no sooner expired, than the campaign was opened by a fresh invasion of Scotland. The English army again advanced as far as Linlithgow, where, fixing their head-quarters, they commenced building a fortress for the same object as had induced them to rear similar structures in the south. The treaty of peace had not yet been concluded with the King of France; and Edward anxiously endeavoured to detach him from the interests of the Scots. In this he was successful; for, by giving up his allies, the Flemings, to the chastisement of Philip, and sacrificing a lucrative branch of trade, in order to gratify his enmity against the Scots, he obtained the King of France's consent to a separate peace, stipulating only for a truce with Scotland, to endure till St Andrew's day, 1302,—after which period, Edward was left at liberty to prosecute his views against that country.

In the meantime, the cause of independence acquired a valuable accession in the person of Sir Simon Frazer, who at last—awakened to the injuries of his country, and a just sense of his own unnatural conduct—deserted the standard of Edward, and enrolled himself among the asserters of the liberty of Scotland.⁵² The talents and bravery of this leader more than counterbalanced the loss which the patriots had sustained in the defection of the Bishop of Glasgow; who, on the 7th October 1300, at Holmcoltrum, had renewed his former fealty to Edward, swearing upon the consecrated host, and upon the *Croyz Gneytz*⁵³ and *Black Rood* of Scotland; in consequence, as is supposed, of a remonstrance from Boniface, who now thought proper to espouse the interest of Edward.

On hearing of the situation of Scotland, Wallace withdrew from the French court, and returned home. What services he was enabled to render his country during his absence, do not appear in any of our records.

1302. After the expiry of the truce, Edward sent John de Segrave with an army of 20,000 men into Scotland, who, having advanced to the neighbourhood of Roslin, divided his troops into three divisions, for the purpose of procuring forage. In the meantime, John Cumyn and Simon Frazer, having collected a body of eight thousand Scots, suddenly fell upon the first division, which they defeated with great slaughter. While engaged in collecting the spoil, the second division came in sight, on which the Scots, elated with the success they had already obtained, stood resolutely to their arms, charged, and, after a desperate conflict, again drove their enemies from the field. After this double victory, the Scots, exhausted with the fatigues of the day, were preparing to refresh themselves, when their scouts brought notice that the third division of their enemies was at hand. Their leaders flew from rank to rank, beseeching them to make one effort more to preserve the glory they had acquired; and having equipped the followers of the camp in the arms of their slain enemies, they again commenced the bloody strife, with that enthusiasm which the remembrance of their former victories inspired. The fury of the Scottish charge decided the third battle: the English were once more thrown into confusion, and fled in the greatest terror, leaving behind them all their camp-equipage a prey to the conquerors. The advantages resulting from this day's successes were not thrown away: the Scots every where flocked to the assistance of their countrymen; and the fortresses which Edward possessed in the south of Scotland, were quickly recovered, and garrisoned by their lawful masters.

Respecting the events of this day of triumph for the Scottish arms, the historians of the two countries are not exactly agreed. According to Langtoft, Sir John de Segrave, with his son and brother, were surprised in their beds by the Scots, who captured sixteen knights, among whom were Sir Thomas Neville and Sir Ralf de Cofferer, the treasurer of Edward, who, on interceding with Sir Simon Frazer for his life, was sternly reminded by him of the defalcations he had committed in his office, by defrauding himself and others of their wages. Having upbraided him with his unpriestly conduct, he struck off his hands, as being polluted with the wages of

iniquity, and afterwards severed his head from his body, by a blow with his sword.



CHAPTER IX.

SECOND VISIT OF WALLACE TO THE FRENCH COURT.—ENCOUNTERS AN ENGLISH PIRATE.—THE ENGLISH AGAIN ENTER SCOTLAND.—SUBMISSION OF THE NOBLES.—WALLACE RETURNS.—CONFLICTS WITH THE ENGLISH.—EDWARD DESTROYS AND CARRIES OFF THE RECORDS OF THE MONASTERIES.—MARCHES THROUGH THE COUNTRY.—WALLACE FOLLOWS THE INVADERS.

There is no certain account of Wallace having been present at the battle of Roslin:—if he was, it must have been only in a private capacity, he not being mentioned by any author as holding a command on that occasion. According to some, he was absent from the country at the time; but this, however, seems to be contradicted by the *Scotichronicon*, where it is said, that, *after* the battle of Roslin, he went on board of a merchant vessel, and, with a few companions, again sailed for France. Henry, whose strong partiality would not have omitted so excellent an opportunity for aggrandizing his hero, had there been any authority in the narrative of Blair for so doing, passes over the circumstance in silence. This conduct in an author so strongly biassed in favour of the subject of his biography, is not only a proof of the absence of Wallace from the field of Roslin, but a strong argument in favour of the general accuracy of his own details. The laurels, therefore, that were gathered at Roslin, will fall to be divided between Sir Simon Frazer and the lord of Badenoch.

That Wallace returned a second time to the court of France, is asserted in the most positive manner by the *Minstrel*, and is in part corroborated by the *Scotichronicon*. The particular periods of his history, however, which those visits occupied, it is rather difficult to ascertain. That the first occurred after the battle of Falkirk is without doubt; and the second immediately before, or soon after the affair of Roslin, is almost equally certain. As, in the first voyage, Wallace is said to have fallen in with and captured a French pirate, in the second, he is represented as having a similar rencounter with an Englishman of the same profession, who earned on his depredations principally against the Scottish vessels. Had the *Minstrel's*

work been one of pure fancy, this *sameness* of incident, we presume, would not have occurred;—for the judgment of the poet would no doubt have suggested the propriety of a change of adventure. The English pirate, who is called John of Lyn, is first seen by the Scots, making his way out of the Humber, displaying a red sail, and a flag at his mast-head bearing three leopards courant, the well-known insignia of Edward. The Scottish merchants, who knew his ferocious disposition, were appalled at first; but encouraged by Wallace and his companions, they prepared themselves for action, by stuffing sheep-skins with wool, which appears to have been their cargo; and thus making a kind of defensive armour, to protect them against their better equipped assailants. On their refusing to surrender, the battle commenced by a heavy discharge from bows and cross-bows on the part of the English; and the Scots, who were not so well supplied with missiles, kept themselves as much as possible out of the way of the shot, till it was nearly expended;—when, laying their vessel along side of the enemy, Wallace and his companions threw themselves on board the pirate, and attacked the crew with the greatest fury. The commander, seeing the desperation of the Scots, and the havoc they were making amongst his men, would gladly have made off; but the sword of Wallace was not to be evaded. The two leaders, therefore, engaged, and after a short rencounter, John of Lyn was cut down by his opponent, and his men submitted to the conqueror. In this conflict none distinguished themselves more than Longueville, and John Blair, the chaplain of Wallace—the latter of whom, with three successive arrows, shot three of the enemy, and otherwise conducted himself with the greatest heroism. As it would not have been becoming in Blair to have narrated such deeds of himself, we are told by Henry, that the account of them was inserted in the memoir of Wallace by Thomas Gray, who acted as steersman on the occasion. In this there is consistency, as we are elsewhere informed, that Gray occasionally assisted in writing the achievements of the champion of the Scots.⁵⁴

On arriving “in the Sloice-hawyn,” says Henry, Wallace made a division of the spoil among his followers, and, presenting the merchants with the ship, took his departure for Paris.

The reception he met with from Philip is reported to have been highly flattering; and our hero soon became involved in a number of adventures, all sufficiently romantic; but as the French historians appear, from their

silence, to have been ignorant of them, we must refer the curious reader to the pages of the Minstrel. We shall only remark, that it has been asserted by various writers, that the name of Wallace was frequently found in the songs of the ancient Troubadours. This, however, may have arisen as much from the fame he had acquired in his own country, as from any chivalrous exploits he had performed in France. But in whatever manner he was employed in the service of Philip, the proceedings of Edward soon recalled him to his native land.

The mortification which the reverses at Roslin occasioned the King of England, was greatly increased by the praises that were every where bestowed upon the gallantry of the Scots; and the noise which their triple victory made at the different courts of Europe, excited a deeper and more determined inveteracy in his mind. It is probable, that, but for the discomfiture at Roslin, the resolution which he had so long displayed, of reducing Scotland to subjection, might have gradually given way before the reflections occasioned by the immense losses which he had sustained in his various expeditions;⁵⁵ and perhaps he would have contented himself with retaining possession of that part of Scotland which bounded his own kingdom. The defeat, however, of his lieutenant, and the subsequent proceedings of the victors, awakened afresh all the rancorous hostility of his ambitious and unprincipled mind; and he resolved, by one mighty effort, to overwhelm the Scots, and efface their name from the number of the nations. In order to accomplish this project, all the ultramarine vassals of his crown were summoned to his standard. In his own kingdom of England, large levies of men and horses were raised, and the din of preparation was heard from one extremity of the land to the other. A powerful fleet was also equipped, to attend the motions of the land army, and prevent the chance of scarcity from interfering with that work of destruction he had in contemplation.

1303. Wallace heard with sorrow, of the mighty preparations that were making for the annihilation of his country's independence; and he resolved again to join his old associates, and brave along with them the fury of the storm that was about to burst upon their heads. To his friends, who listened with increasing apprehension to the progress of the coming war, the hope of his return came like a sunbeam through the tempest that was blackening around them. Before, however, the French monarch would permit his

departure, the countless host of the invader had crossed the Tweed, and spread its desolating squadrons over the adjacent country;⁵⁶ and those places which manifested the slightest disposition to defend their liberties, were consigned to indiscriminate carnage. Among the few which made any resistance, the castle of Brechin appeared eminently conspicuous. Under the command of the governor, Sir Thomas Maule, this garrison maintained a most heroic defence, and did not give in till the death of their commander obliged them to surrender.

Wherever the army of Edward now appeared, the chieftains were found anxiously waiting to tender their submission, and again repeat their oaths of allegiance. Some of the principal nobility, in order to claim the merit of an early repentance, even met the invader on the borders, and thus procured more advantageous terms than they otherwise would have obtained. Among those who thus started for the goal of slavery, few shared more largely in the wages of iniquity than Sir John Menteith. Having met Sir Aymer de Valence at Annan, he found means to acquire so much of his confidence, as to induce that favourite of Edward to obtain for him, not only a confirmation of the governorship of Dumbarton castle, but also an extension of his authority, over the whole of the district of Lennox.

While affairs were in this situation, accounts were brought to the English camp, that the bugle of Wallace had been heard at midnight among the woods on the banks of the Tay; and a body of troops, under the command of Sir John Butler, were despatched in pursuit of him. This officer, two of whose relations had already fallen by the hand of Wallace, set forward with alacrity to execute the service assigned to him. But, after ranging the country in all directions, he was at last obliged to return without having once seen the object of whom he was in search, although the reports brought him by his scouts, as well as the evasive answers of the inhabitants, convinced him of the certainty of Wallace being in the country.

In the early part of our narrative, we alluded to the admirable discipline which Wallace had introduced among his countrymen, and the facility with which, by the sound of his horn, he could rally them around him in cases of emergency. From the frequency with which these calls had been made, there was scarcely a district in Scotland where his war-note was not understood and obeyed with alacrity. Though this was the case, we do not

mean to say, that all who attended its summons were animated by pure and disinterested patriotism. To the ears of many, it probably sounded only as an invitation to divide the property of their more wealthy enemies; whom—under so daring and fortunate a leader—they never doubted of being able to conquer; and it is likely that they would have obeyed the call with the same promptitude, had it summoned them to a foray against some neighbouring clan: but the generosity with which he divided his own share of the booty among those who had suffered most, or had borne themselves with the greatest gallantry in the conflict, gained him a complete ascendancy over the discordant materials of which his little armies were frequently composed; and rendered him more formidable to an invader, than all the jarring aristocracy put together. It is therefore not surprising that the report of his return should have caused alarm among the English.

On the night referred to, Wallace had landed in Scotland, accompanied by Sir Thomas de Longueville, John Blair, Thomas Gray, and a few other friends who had attended him in France; and being near one of his old places of resort, he wished to gain some knowledge of the state of the country, to enable him to regulate his further proceedings; for this purpose he raised his bugle, and before the reverberations had died away among the woodlands, a rustling was heard among the underwood, and presently an unarmed Scot stood before him. From this ready adherent, who had been watching the landing of the party, Wallace learned the situation of the kingdom, the slaughters committed by Edward, the submission of the regency, and the terror that pervaded the nobility. Finding, from the number of the English that were in the neighbourhood, the necessity of betaking himself to some place of concealment, he and his party were conducted by their informer to a farm-house in a secluded part of the country, occupied by a relation of Wallace, of the name of Crawford. Here he was joyfully received, and a hiding-place artfully constructed in the barn, for him and his companions, where they lurked during the search made for them by Butler.

In this retreat they might have remained, till some favourable occurrence had enabled them to appear more openly; but it seems the unusual quantity of provisions which Crawford was obliged to purchase for the maintenance of his guests, awakened the suspicions of the English at Dundee; and on his return, having mentioned the examination he was subjected to, Wallace and his party thought it prudent to retire to a

neighbouring thicket, and wait the result. They had not long adopted this precaution, before a body of the English made their appearance; and having surrounded the dwelling of Crawford, they discovered, in the course of search, the lair of the fugitives.

The wife of Crawford having refused to answer their inquiries regarding the route of her visitors, they were proceeding, by violent measures, to compel her to disclose the place of their retreat, when Wallace, ascertaining the danger to which she was exposed, advanced from the thicket, and sounded a bold defiance to the enemy. The situation he had chosen was such as could only be assailed from three narrow and rugged paths. These he proposed to guard, by dividing his little party, which consisted only of about twenty men, into three divisions;—with the smallest of these he undertook to defend the path that was most exposed to the enemy's attacks. Butler was not long in commencing the assault, which he did by a simultaneous movement on all those little parties of the Scots. The resistance, however, which he met with, aided by the rugged nature of the ascent, rendered all the ardour of his troops unavailing. As the evening advanced, he called them off; and having beat a chamade, he attempted to persuade Wallace to surrender, by representing the folly of continuing a resistance which must at last terminate in the ruin of himself and his friends. Our hero replied, by advising him to stand to his arms; for in place of surrendering, he intended, before morning, to become the assailant; and he gave him this warning, in return for the care which he had shown for himself and his companions. Irritated by this coolness, Butler determined to take every precaution to prevent his escape; and for this purpose kept his men under arms all night. Wallace, however, was as good as his word; for at daybreak, under cover of a thick mist, he descended at the head of his little band, and, before the enemy was aware of his approach, broke into that quarter where Butler had his station. The surprise occasioned by his sudden appearance, threw the English into confusion, which their uncertainty as to the number of their assailants greatly increased; and availing himself of the disorder into which they were thrown, Wallace pressed forward, and came in contact with Butler, who, after a slight resistance, fell beneath his arm. The Scots having forced their way through the enemy, Wallace now discovered that their faithful host Crawford had been left behind. Returning, therefore, to the charge, he was fortunately in time to save him from the spear of an English soldier, whom he slew; and grasping his wounded

friend in one of his arms, he carried him off in triumph to his companions. Favoured, by the denseness of the fog, the gallant little band were soon lost to their pursuers. Though thus relieved from their perilous situation, they are said to have suffered the greatest privations in the wild and unfrequented solitudes to which they were now obliged to retire. However, their indefatigable chief, always fertile in expedients, found means to preserve them from actual starvation, till Edward withdrew his troops, for the purpose of resuming his march of subjugation throughout the kingdom.

The time which the English monarch spent in the southern part of Scotland, it appears had not altogether been employed in the chastisement of those who were most active in the late insurrection. With a policy worthy of himself, he endeavoured to obliterate the remembrance of national independence, by ransacking the monasteries, and carrying off, and committing to the flames, all the ancient records they contained; so that the Scots in future, might have no documents to produce which could falsify his claims to sovereignty over them.⁵⁷ In this proceeding he might have been partly influenced, by the discussion he had been engaged in with Boniface. Having, to his spiritual father, so solemnly asserted the justice of his claim, it was but natural that he should wish to possess or destroy every evidence which might establish his asseverations; and this object being, as he conceived, so far accomplished, he proceeded with his army, by slow marches, towards the North, exercising the same Gothic barbarity as he went along, and demolishing those fortresses which made any show of resistance.

According to Henry, a number of the old associates of Wallace, before his return from France, had fled for shelter to the islands and other places for security. Seton, Lauder and Lundy, retired to the Bass. Malcolm Earl of Lennox, and Sir Niel Campbell, had sought concealment along with Bishop Sinclair in Bute;⁵⁸ and these last mentioned worthies, on hearing of the arrival of Wallace, despatched a messenger to find him out, and explain the difficulties of their situation, and their readiness to join him as soon as he approached their present places of refuge. They had not to wait long, before our hero issued forth with his little band, and collected those who were still inclined to struggle for the liberties of Scotland. At the head of such he followed the invading army, and appearing now in front, and now in rear,

made frequent and impressive attacks upon them as they struggled through the deep and rugged defiles of the country. But all his efforts could not retard the march of the invaders. They advanced to the extremity of the kingdom, unmolested by any save the hardy followers of our hero, who, however, as they had attended the motions of their foes in their laborious progress through the rough and mountainous regions of the North, now waited their return, and resumed the same harassing system of warfare. Often, from an eminence, Edward could distinguish the lofty plume of the Scottish leader, as he dashed forward to charge some isolated corps of the English army; and while he beheld the enthusiasm with which his conduct inspired his followers, and saw the disorder of his own soldiers, hurrying to gain the protection of the main body, his heart misgave him as to the stability of his conquest, while Scotland contained a man whose appearance alone was capable of inspiring his friends with so much confidence, and his enemies with so much dread.

CHAPTER X.

EDWARD'S POLICY RESPECTING THE SETTLEMENT OF SCOTLAND.—ENDEAVOURS TO GAIN WALLACE TO HIS INTEREST.—SIEGE OF STIRLING.—IT SURRENDERS.—CONDUCT OF EDWARD TOWARDS THE PRISONERS.—HALIBURTON UNDERTAKES TO BETRAY WALLACE.

Edward having returned from the bleak regions of the North, took up his quarters in Dunfermline,⁵⁹ judging that his presence in the country, during the winter, would contribute much towards establishing his authority, as he had formerly observed, that the places he had conquered from the Scots in summer, were generally retaken when the severe weather set in. He accordingly took every precaution for the comfort of his troops; large supplies of provisions being ordered, both by sea and land, that his army might not be placed in such difficulties as had formerly compelled him to retreat into England.

In order, also, to secure his present conquest, he began to assimilate the state of the country as much as possible to that of his other dominions; and, for this purpose, he abrogated all the old laws and customs—substituting those of England in their stead.⁶⁰ In the prosecution of this object, he announced a parliament at St Andrew's, which was attended by all Scotsmen of any note, except Sir William Wallace, Sir Simon Frazer, and Sir William Oliphant, governor of Stirling Castle, the latter of whom refused either to appear or surrender the trust, which had been committed to him by Lord Soulis, who happened then to be in France. Of this fortress, which was now the only one that held out against him, Edward determined to gain possession as soon as the season would permit. As to Wallace, it is said, that, at this time, among other great offers, he tendered him the crown of Scotland, provided he would accept of it in fee of the crown of England; to which, with his usual dignity, Wallace replied, that as he had been born a free man, he was determined to die one; and that he preferred rather to be the subject of his lawful sovereign, than the crowned slave of one who had

no right to his allegiance.⁶¹ That Edward was sincere in this offer, is a matter of considerable doubt;—he had already cajoled others by similar proposals, and he might naturally conceive, that although Wallace should not be caught by the bait, the offer would have the effect of exciting the suspicions of his countrymen, and thereby weakening his influence among them. But whatever his motives may have been, Wallace sternly rejected all compromise, and remained the only Scotsman who never acknowledged his authority. On the present occasion, Sir Simon Frazer followed his example, for which the tyrant passed sentence of banishment and outlawry against him. This gallant gentleman, who now adhered to the fortunes of Wallace, had given great offence to Edward, by the conspicuous part he had acted at the battle of Roslin, as it was generally believed to have been owing principally to him that the English sustained the mortifying defeat.

1304. Early in the spring Edward discovered, that, through the exertions of Wallace and Frazer, a body of troops had been got together; in order to disperse which, before it became too formidable, he took the field, and proceeded towards Stirling, in the neighbourhood of which it had assembled. The force under the patriots, however, when compared with the enemy, was so very insignificant, that they prudently retreated to their former places of refuge. On the 21st April the siege of Stirling commenced, and continued without intermission till the 24th July; thus occupying Edward and his army for three months and three days, during which time every artifice was put in practice, and every piece of mechanism then known was directed against the besieged.

The stubbornness of the garrison, however, seemed to increase as the means of annoyance multiplied around them; and the anxiety of Edward to gain this last stronghold of the liberties of Scotland was displayed, by his close and unremitting attendance on the details of the siege. Though now advanced in years, he is represented as exposing himself with all the imprudent gallantry of a youthful warrior; and on one or two occasions he had nearly fallen a victim to his temerity. While riding near the walls, a stone, from one of the engines at work on the rampart, struck the ground before him with so much violence, that his horse backed, and fell under him; and at another time, a javelin, thrown by a soldier on the wall, struck him on the breast, and stuck between the plates of his armour. The point of the missile, however, had not pierced the skin. Pulling it out with his hand,

he shook it in defiance, and loudly proclaimed that he would hang the villain who had hit him. In the mean time, the engines belonging to the castle were so well managed, and the enormous stones which they threw, so skilfully directed, that great numbers of the besiegers were destroyed.

Edward now saw, that, without still greater efforts, the place was not likely soon to capitulate. He therefore wrote to London, and other towns in England, ordering the most powerful engines to be sent him, with supplies of javelins, quarrells, and other missiles; and the lead was torn from the roof of the Cathedral of St Andrew's to furnish materials for the siege. Thirteen engines of the largest size were at last brought to bear upon the castle, one of which, called by Langtoft "the Ludgare,"⁶² or Lurdare of Strivelyn," was of the most formidable description. This "hidous engyn," when put in operation, made tremendous breaches in the walls, which the besieged in vain attempted to repair; and after many destructive sallies, and "fulle and hard affrays," and a siege unparalleled in the history of the war—their provisions exhausted, and their walls torn to pieces—Sir William Oliphant and his brave little garrison were forced to surrender at discretion. Every possible indignity which a tyrannical mind destitute of generosity, and exasperated by opposition, could inflict, was now heaped upon the gallant defenders. They were compelled to go in procession to the tent of Edward, and—denuded of every garment save their shirts, their heads and feet uncovered—on their bended knees, with uplifted hands, had thus to implore his clemency; upon which their *magnanimous* conqueror condescended to spare their lives, and sent them to expiate their offences in the dungeons of England. The garrison, according to Langtoft, consisted of Sir William Oliphant, Sir William Duplin, twenty gentlemen of inferior degree, a preaching friar, a monk, and thirteen "maydens and ladies." The common soldiers are said to have amounted to 140, whose names, it is to be regretted, have not been preserved. The following are all that remain on record:

Domini Willielmus Olyfard.

Willielmus de Dupplyn, milites.

Fergus de Ardrossan.

Robinus de Ardrossan, frater ejus.

Willielmus de Ramseya.

Hugo de Ramseya.
Radulfus de Haleburton.
Thomas de Knellhulle.
Thomas Lellay.
Patricius de Polleworche.
Hugo Olyfard.
Walterius Olyfard.
Willielmus Gyffard.
Alanus de Vypont.
Domini Andreas Wychard.
Godefridus le Botiller.
Johannes le Naper.
Willielmus le Scherere.
Hugo le Botiller.
Johannes de Kulgas.
Willielmus de Anart.
Robertus de Ranfru.
Walterus Taylleu.
Simon Larmerer.
Frater Willielmus de Keth, ordinis Sancti Dominici Prædicatorum.
Frater Petrus de Edereston de domo de Kelsou, ordinis Sancti
Benedicti.

The proceedings of Edward at length gave umbrage to Cumyn and Bruce. These chieftains, after Baliol, had the nearest pretensions to the crown, and they had both been amused by Edward with hopes of the kingdom. In the destruction, however, of the fortresses, and the alterations he had made in the constitution of the country, they saw little that tended towards the fulfilment of the promises he had made them. Cumyn, therefore, having found an opportunity, broke the matter to Bruce, by lamenting the state to which their country was reduced by the power or policy of Edward, who endeavoured to sow discord among those whose interest it was to be friends; and by taking advantage of the animosities he thus excited, furthered his own ambitious and tyrannical designs.

These remarks begat the confidence of his rival, who communicated without reserve the promises that had been held out to him by Edward; which drew from Cumyn a proposal for the delivery of their country, in

which he offered to give Bruce his estates, on condition that he relinquished his claim, and assisted him to gain the crown; or to accept of Bruce's estates on the same terms. Bruce, who considered his claim to be better founded than that of Cumyn, agreed to make over his estates on attaining to the kingdom through the assistance of Cumyn; and a private bond was entered into between them for this purpose.⁶³ In order to cover their intentions, Bruce agreed to accompany Edward to London, and leave his brother, Edward Bruce, to attend to his interest in Scotland.

The English monarch having now, as he thought, completely depressed the spirit of the Scots, and brought them effectually under his yoke, began to make preparations for his return to England; and with this view, he appointed Adomer de Valence regent or viceroy of the kingdom, filling all places of trust with Englishmen, or such creatures among the Scots as he found suitable to his purpose. Having made these, and such other arrangements as his policy suggested, he returned home in triumph, firmly persuaded that he had finally reduced the kingdom of Scotland to the condition of a province of England.

Edward, however, had scarcely arrived in London, before accounts from the North convinced him of the uncertain nature of his conquest, so long as Wallace remained at large in the country; and as neither threats nor promises could subdue his inflexible fidelity to the liberties of his native land, large rewards were offered for securing his person, dead or alive.⁶⁴ Influenced by the great promises held out to him, Ralph de Haliburton, one of the prisoners whom Edward had carried with him into England, undertook the perfidious office, and for that purpose was allowed to return to Scotland. Of his after proceedings, we have, however, but a very imperfect outline; and from all that we can collect, his exertions in his villanous mission appear to have been limited to one or two attempts; in the last of which, from his knowledge of Wallace and his retreats, he contrived to have him beset by a strong body of cavalry, in a situation where he had no way of escape, but by springing his horse over a precipice. This he effected; and his pursuers, drawing back with horror, left him to pursue his retreat on foot, his gallant steed having perished in the fearful enterprise.

After this, it is supposed that Haliburton, alarmed for the consequence of his conduct, and dreading the vengeance of his countrymen, returned

with precipitation to England.



CHAPTER XI.

STATE OF THE COUNTRY.—BRUCE INVITED TO TAKE THE CROWN.—CONDUCT OF CUMYN TOWARDS BRUCE.—NOTICE OF CUMYN.—TRADITION RESPECTING THE CLAN CUMYN.—NOTICE OF KERLE.—WALLACE BETRAYED BY MENTEITH.

The situation of Scotland, after the departure of Edward, was such as well warranted the representation that had been transmitted to England. Though there had as yet been no open insurrection, still there was that in the bearing of the people, which betokened any thing but good will towards the existing state of things. The national sports and customs of the English, which it had been attempted to introduce among them, were shunned and disregarded by the oppressed and scowling population; while those chiefs who had formerly shown the greatest attachment to the cause of independence, were seldom heard of, except when discovered holding their conferences in those sequestered retreats, where they considered themselves secure from all, save the wandering spies employed by the faithless part of their own countrymen.

Wallace now saw that the state of the country required a different remedy from that which had hitherto been applied. Baliol, whom he had acknowledged as his righteous sovereign, though detained a prisoner in England, had, through the menaces of Edward, made over to that monarch his right to the crown and kingdom of Scotland. This act, in the opinion of Wallace, released him from his allegiance to one who had all along acted a part unworthy of his attachment; for, though he admitted his right to *resign* the crown, yet he could not recognise a right to *transfer* it to a stranger, to the exclusion of the lawful heir; and as Edward, the son of Baliol, was also the prisoner and tool of the King of England, he naturally fixed his attention on Bruce, as the person best fitted, from his birth and talents, to infuse that confidence in the people which necessarily arises from the presence of a person invested with lawful authority. Having found no difficulty in impressing Sir Simon Frazer, and those other chiefs who adhered to him,

with the same sentiments, a negociation was entered into with Edward Bruce, for inviting his brother from England to assume the crown; and it is also said, that a special herald⁶⁵ from Wallace and his confederates found his way to Bruce in disguise, who appointed to meet with our hero on a certain night on the burrow-muir of Glasgow.

1305. In the meantime, Wallace and his friends were active in organizing the insurrection, which was to burst forth as soon as Bruce appeared among them, and who was at the same time to have been proclaimed king. How far Cumyn was consulted on the occasion, by Wallace and his associates, does not appear. From the very little intercourse which seems to have subsisted between them since the fatal battle of Falkirk, it is highly probable that the accession of our patriot and his party, to the proposal for placing Bruce on the throne, was communicated to Cumyn through the medium of Edward Bruce—the fiery temperament of whose mind, was not always in unison with those maxims of sound policy necessary for conducting affairs of such moment. Whether Cumyn had ever been sincere in the agreement entered into with the Earl of Carrick, or whether he afterwards repented of the bargain he had made, is a point not easily to be ascertained; but with a duplicity worthy of his conduct on a former occasion, he is said to have despatched the bond between himself and Bruce to Edward; urging, at the same time, the arrestment of his rival, as necessary to prevent the disturbance that was on the eve of breaking out in Scotland.

It might be considered by our readers an omission, were we to bring our labours to a close, without embodying in our pages a more particular account of this subtle and talented baron, than what has hitherto appeared in the course of the narrative. To obviate this objection, perhaps the following brief outline, in addition to what has already been stated, may suffice.

John Cumyn, or as he is called by the Gaël, *Ian Ruadh Mhac Ian Ruadh Chiumein* (Red John, the son of Red John Cumming), was Lord of Badenoch, Lochaber, and other extensive districts, and the head of the most potent clan that ever existed in Scotland. His power was more formidable than any of his fellow-competitors for the crown. Upwards of 60 belted knights and their vassals were bound to follow his banner; and the influence

of the family was such, that during the minority of Alexander III., after driving from Scotland a strong faction, formed and supported by the interest of England, the Cumyns and their adherents negotiated a treaty with Llewellyn, a prince of Wales. In this instrument, John, the father of the subject of the present notice, appears as Justiciary of Galloway. This document is preserved in Rymer's *Fœdera*, vol. i. p. 653. Those, however, who may not have access to that work, may have their curiosity gratified, by referring to Tytler's *History of Scotland*, vol. i. p. 424.

It is uncertain at what time John Cumyn succeeded to his father. He appears, however, in 1289, as joint agent along with James the Steward, in the letter of the community of Scotland, directed to Edward I., from Brigham. According to Henry, he was married to a cousin of the King of England; and this, from all authorities, seems to have been the case, for he espoused Joan, the sister of Aymer de Valence, whose father, William de Valence, Earl of Pembroke, was uterine brother to Henry III. With this powerful connection, he no doubt expected a different decision in the submission respecting the throne of Scotland. This disappointment, in all probability, made him afterwards more ready to join the insurrection under Wallace; and if it had not been for the odium which he afterwards drew upon himself by his conduct at the battle of Falkirk, he might have figured in the annals of his country with a fair and honourable reputation. While regent of Scotland, his behaviour was not only unexceptionable, but often praiseworthy. This, however, may have been partly owing to the strict surveillance which Wallace still exercised in the affairs of the country, or partly from a wish to conciliate his countrymen in the event of a favourable opportunity occurring for his obtaining the crown,—an object of ambition of which it is pretty evident he never lost sight.

The treachery towards Bruce, which has been charged against him by all authorities except Lord Hailes, also tended to deepen the stain on his character. This charge, whether true or false, we have no means of ascertaining. A number of the objections stated by his Lordship against it are, however, of considerable weight. That a bond existed between them of the tenor already described, there is little doubt; and that the terms of this bond became afterwards matter of dispute, there is some reason to believe, as the fulfilment of it would have been dangerous to both. For had Bruce been placed on the throne by the assistance of Cumyn, and the latter had

received the estates of Bruce, according to agreement, he would have been a subject far too powerful for the crown; and *vice versa* in the case of Bruce. The quarrel, therefore, which subsequently took place in the chapel of Dumfries, and which ended in the death of Cumyn, (the particulars of which are known to every reader), might have arisen in an altercation respecting the difficulties involved in the completion of the bond, without either party having been guilty of a breach of faith. It was no doubt the policy of Bruce and his confederates, that the stain of treachery should be affixed on the name of Cumyn, as it afforded the only plausible excuse for committing a murder in a place of such reputed sanctity. Indeed the circumstance of the latter having requested an interview within the precincts of a church, showed nothing like a premeditated intention to quarrel; but since the deed was committed, it seemed necessary to the future safety and views of Bruce and his faction, that with the influence the character of the Cumyns should be diminished. That they assisted in this last object themselves, is but too apparent; otherwise it would be difficult to account for that odium which afterwards became attached to them. For while the Scots, in the Low country, cried out against the “fause Cumyn’s Kyn,” their vassals in Badenoch and Lochaber re-echoed the charge, till the very name became cognominal with deceit; so much so, that the following proverb is at this day remembered in those parts of the Highlands to which their influence extended:

*“Fhad’s a bhios crann an cóille,
Bi’dh fóill an Cuimeineach.”*

“While there are trees in a wood, there will be deceit in a Cumyn.”

We will not however assert, that the enmity of the Gaël arose from the conduct of the Cumyns in the Low country; for if we may credit tradition still current in the West Highlands, this once powerful and oppressive family gave sufficient cause, in their own territorial bounds, for the antipathy of their neighbours and vassals. The atrocities which they committed in their castles of Inverlochy, Badenoch, and other strongholds which they polluted with their crimes, at last roused the slumbering vengeance of the people; and tradition, in her vague manner, dates the downfall of this potent clan, from the time of “Cumyn’s flight from

Onnich.” At what period this occurred, cannot now be exactly ascertained; but with the particulars of the story we shall close this imperfect notice:—

The Cumyns, it seems, in the plenitude of their power, paid little attention, when it suited their wishes, to the abrogation of the infamous law of Evenus, and the “*mercheta mulierum*” was generally spurned, when the charms of the bride happened to please the eye of the chief. It would seem that three marriages were about to take place at Onnich, a little town on the borders of Lochaber. The women were beautiful, and the men spirited and brave. The half-merk had been tendered at the gates of Inverlochy, by the bridegrooms and their friends, and the refusal of it by the chief gave them reason to apprehend the fate that was intended for them. The case excited deep interest. The day of marriage approached, and brought along with it the Lord of Badenoch and his two sons, with their usual retinue. The half-merk was again tendered, and refused. The men drew their swords, determined to guard the purity of their fair ones. A conflict ensued; friends gathered to the assistance of the injured; the two sons of Cumyn were killed; while he, with the remains of his myrmidons, betook himself to flight. The country arose and made after him, till the affair swelled to a general insurrection. All his train were sacrificed to the fury of the pursuers, many, no doubt, having more serious grievances to revenge. The flight continued till their obnoxious chief reached a hill near the present site of Fort Augustus;—where, overcome with fatigue, he was seen to sit down apparently to rest himself. On coming up to him, however, they found that the wretched man had already paid the forfeit of his crimes. He was carried down and buried on the spot where the fort now stands, which is still known to old Highlanders by the name of “*Cill Chiumein*,” or the burial-place of Cumyn; and the hill on which he died retains to this day the appellation of “*Suidh Chiumein*,” or Cumyn’s Seat. Very few of the clan are now to be found in these districts.

To return to our narrative: Wallace, who, as he conceived, among other friends, had secured the co-operation of Sir John Menteith to the measures then in agitation, for the purpose, it is supposed, of giving as early notice as possible of the arrival of Bruce, had retained near his person a young man related to Menteith,⁶⁶ who was to have been despatched with the news to Dumbarton, as soon as their future monarch should arrive, when that important fortress was to have declared in his favour.

Confiding in the arrangements thus made, Wallace, as the time appointed by Bruce drew near, collected his followers round Glasgow, and disposed of them in such a manner, as to be able to bring them together on the shortest notice,⁶⁷ For the better concealment of his design, he retired to a small lonely house at Robroyston, about three miles north-west of Glasgow. Here he waited with impatience for the night on which Bruce had appointed to meet him, little dreaming of the danger to which his intended sovereign was exposed, through the conduct of Cumyn, nor of the treachery that was hatching against himself.

The means which were employed to accomplish the destruction of Bruce, would have been of very little avail towards securing the objects intended, so long as his brother and our hero—who had now identified himself with the interest of the Brucian party—remained to head the insurrection that was expected to break out; and as all the magnificent promises of Edward had been unable to subdue the stern virtue of the patriot, his emissaries now bethought themselves of assailing the fidelity of those friends in whom he seemed chiefly to confide. Unfortunately for the cause of liberty, their allurements were but too successful; and the honour of his early friend, Sir John Menteith, gave way to the arts of the tempter.

On the night of the 5th of August 1305, Sir William, and his faithful friend Kerlé,⁶⁸ accompanied by the youth before mentioned, had betaken themselves to their lonely retreat at Robroyston;⁶⁹ to which place their steps had been watched by a spy, who, as soon as he had observed them enter, returned to his employers.

At the dead hour of midnight, while the two friends lay fast asleep, the youth, whose turn it was to watch, cautiously removed the bugie from the neck of Wallace, and conveyed it, along with his arms, through an aperture in the wall; then slowly opening the door, two men-at-arms silently entered, and, seizing upon Kerlé, hurried him from the apartment, and instantly put him to death. Wallace, awakened by the noise, started to his feet, and, missing his weapons, became sensible of his danger, but grasping a large piece of oak, which had been used for a seat, he struck two of his assailants dead on the spot, and drove the rest headlong before him. Seeing the fury to which he was roused, and the difficulty they would have in taking him

alive, Menteith now advanced, to the aperture, and represented to him the folly of resistance, as the English, he said, having heard of his place of resort, and of the plans he had in contemplation, were collected in too large a force to be withstood; that if he would accompany him a prisoner to Dumbarton, he would undertake for the safety of his person;—that all the English wished, was to secure the peace of the country, and to be free from his molestation;—adding, that if he consented to go with him, he should live in his own house in the castle, and he, Menteith, alone should be his keeper;—that even now, he would willingly sacrifice his life in his defence; but that his attendants were too few, and too ill-appointed, to have any chance of success in contending with the English. He concluded by assuring Wallace, that he had followed in order to use his influence with his enemies in his behalf, and that they had listened to him on condition of an immediate surrender; but that if he did not instantly comply, the house would soon be in flames about him. These, and other arguments, were urged with all the seeming sincerity of friendship; and our patriot, confiding in early recollections, and the private understanding that subsisted between them, allowed himself to be conducted to Dumbarton Castle.

On the morrow, however, no Monteith appeared to exert his *influence*, in order to prevent the unfortunate hero from being carried from the fortress; and strongly fettered, and guarded by a powerful escort, under the command of Robert de Clifford and Aymer de Vallance, he was hurried to the South, by the line of road least exposed to the chance of a rescue.

CHAPTER XII.

TRIAL, EXECUTION, AND CHARACTER OF WALLACE.

As the capture of Wallace was an event wholly unexpected by the English, the news of it, which spread with the rapidity of lightning, produced, in every part of the kingdom, a deep and universal sensation. Labour of every kind was abandoned, and people of all ranks flocked to those points of the road where it was expected the illustrious captive would pass. At Carlisle the escort halted for a night; and the tower in which he was secured, long afterwards retained his name. As the *cortège* approached London, the crowds became more numerous; and, on entering the capital, his conductors found their progress retarded by the multitudes that were collected;—while every elevation or projection, however perilous, from which he could be seen, was occupied with, or clung to, by anxious spectators, eager to behold a man who had filled England with terror, and the fame of whose achievements had resounded through every country in Europe. After much exertion, the cavalcade at length reached the house of William Delect, a citizen in Fenchurch Street, where their prisoner was lodged for the night. From the circumstance of his having been taken to a private house, rather than to a place of greater security, it has been imagined by some, that Edward intended to make a last effort to gain Wallace over to his interest. This conjecture, however, is not sufficiently supported by subsequent proceedings, to entitle it to any degree of credit; and we are more inclined to believe, that the difficulty which the party encountered in making their way through the dense multitudes who had blocked up the streets and lanes leading to the Tower, may, with greater probability, be assigned as the cause for taking him to the house of Delect.

The thirst for revenge existed too keenly in the ruthless mind of Edward, to admit of much delay in the sacrifice of his victim. Though a consideration for the opinion of the more enlightened of his subjects, and the manner in which his conduct might be viewed at foreign courts, obliged

him to have recourse at least to the formality of a trial—the indecent haste with which it was brought on, made the mockery of judicial procedure but too apparent. The day after his arrival, he was conducted on horseback, from the house which his brief residence had made the scene of universal attraction, to take his trial in Westminster Hall. His progress from Fenchurch Street, according to Stowe, appears to have been a sort of procession, Lord John de Segrave, the fugitive of Roslin, acting as Grand Marshal of England, and armed cap-à-pè, rode on one side, while Geoffrey de Hartlepool, Recorder of London, equipped in a similar manner, rode on the other. The Mayor, Sheriffs, and Aldermen followed, attended by a number of official characters on horseback and on foot, arranged according to their respective grades.⁷⁰

On reaching the spot where the solemn farce was to be performed, he was placed on the south bench of the great hall; and, in consequence of an absurd report,⁷¹ which had been circulated in England, of his having said that he deserved to wear a crown in that place, a crown of laurel was put upon his head. The noble appearance of the man, joined to his calm and unruffled demeanour, entirely disarmed this silly attempt at ridicule of its intended effect.⁷²

Sir Peter Malory, the King's Justice, then rose, and read the indictment, wherein the prisoner was charged with treason against the King of England, burning of towns, and slaying of the subjects of his Majesty. To the first of these counts Wallace answered, that, as he had never been the subject of the King of England, he owed him no allegiance, and consequently could be no traitor. As to the other offences, he frankly admitted, that, in the discharge of his duty to his country, he had done all that was stated. On this admission, the following atrocious sentence was pronounced:—

For treason, he was to be first dragged to the place of execution. For murder and robbery, he was to be then hung a certain time by the neck; and, because he had burned abbeys and religious houses, he was to be taken down alive from the gibbet, his entrails torn out, and burnt before him, his body to be quartered, and the parts afterwards to be disposed of as the clemency of Majesty might suggest.⁷³

When the necessary preparations were made for carrying this sentence into execution, the late champion of Scottish independence was brought forth from the place where he had been kept in confinement, heavily ironed, and chained to a bench of oak. He was then placed on a hurdle, and, surrounded by a strong guard of soldiers, ignominiously dragged to the Elms, in Smithfield. That self-possession and undaunted demeanour which he evinced during the trial, appeared equally conspicuous on the scaffold. Looking round with undisturbed composure on the assembled multitude, he addressed himself to a person near him, and asked for a priest to whom he might make confession. This request, on being made known to Edward, he is said to have sternly refused; and the rancorous old man forbade *any clergyman to retard the execution* for such a purpose. On hearing this undignified command of his sovereign, Winchelsea, Archbishop of Canterbury, the same individual who so faithfully discharged his duty at Carlaverock, stepped boldly forward, and, after earnestly remonstrating with Edward, declared his determination to officiate himself. When the ceremony usual on such occasions was finished, Wallace rose from his knees, and the Archbishop having taken leave of him, instantly departed for Westminster, thus declining to witness the sequel of an act so revolting to humanity, and which he no doubt considered as fixing a deep stain on the character of his country.

The spectacle which was now exhibited to the gaze of the inhabitants of the metropolis of England, was such as perhaps has never before been presented to the populace of any land. The *LAST FREEMAN* of an *ANCIENT PEOPLE*, not less renowned for their bravery, than for their love of independence, stood a calm and unshrinking victim, ready to be immolated at the shrine of despotism. That powerful arm which had long contended for liberty was now to be unstrung beneath the knife of the executioner; and that heart, replete with every ennobling virtue, which never quailed in the sternest hour of danger, was doomed to quiver in the purifying flames of martyrdom.

During the pause which preceded the unhallowed operations, Wallace turned to Lord Clifford, and requested that a Psalter,⁷⁴ which had been taken from his person, might be returned. His desire being complied with, he asked a priest to hold it open before him. This book had been his

constant companion from his early years, and was perhaps the gift of his mother or his uncle, the parson of Dunipace.

After hanging for a certain time, the sufferer was taken down, while yet in an evident state of sensibility. He was then disembowelled; and the heart, wrung from its place, was committed to the flames in his presence. During this dreadful process, his eyes still continued to linger on the Psalter, till, overpowered by his sufferings, he expired among their hands with all that passive heroism which may be supposed to belong to so elevated a character. The body was afterwards dismembered; the head fixed on London bridge, the right arm on the bridge of Newcastle-upon-Tyne, the left at Berwick, the right leg at Perth, and the left at Aberdeen.

Thus fell this great and exemplary patriot, a martyr to the rights and independence of his country, than whom, if we consider his extraordinary personal and mental endowments,—joined to his inextinguishable and disinterested love of liberty, a greater hero is not to be found in the annals of any people. Born to a slender inheritance, and unconnected by birth with the opulent families of his country, he derived no advantage from those circumstances which often assisted other distinguished characters in attaining that place in the temple of fame to which their ambition was directed. To his own genius he was indebted for a system of tactics eminently calculated for the contest he had in view; and with his own arm he gave the first impulse to the cause of freedom, which afterwards, on the field of Bannockburn, was crowned with such glorious and decisive success under a kindred spirit—on whom the inspiring mantle of our patriot descended, as he winged his flight to the regions of immortality.

In person, Wallace was admirably fitted to grace that elevated station among mankind, for which his genius and talents so eminently qualified him. His visage was long, well proportioned, and exquisitely beautiful; his eyes were bright and piercing; the hair of his head and beard auburn, and inclined to curl: that on his brows and eye-lashes was of a lighter shade; his lips were round and full. Under the chin, on the left side, was a scar,⁷⁵ the only one visible, although many were to be found on his person;⁷⁶ his stature was lofty and majestic, rising the head and shoulders above the tallest men in the country. Yet his form, though gigantic, possessed the most perfect symmetry; and with a degree of strength almost incredible, there

was combined such an agility of body and fleetness in running, that no one, except when mounted on horseback, could outstrip, or escape from him, when he happened to pursue. All-powerful as a swordsman, and unrivalled as an archer, his blows were fatal, and his shafts unerring: as an equestrian, he was a model of dexterity and grace; while the hardships he experienced in his youth, made him view with indifference the severest privations incident to a military life. In common intercourse, his accents were mild, and his manners grave and urbane. In the field, when addressing his soldiers, his discourse was brief and animating, and the sound of his voice thrilled through their hearts like the spirit-stirring notes of the clarion.⁷⁷ Great and varied, however, as were the accomplishments nature had lavished on his person, the graces with which she had enriched his mind threw a radiance over all the rest of her gifts. Untaught himself in the military art, he became the instructor of his countrymen, and his first efforts were worthy of the greatest captain of the age.

If we may judge from his regard to the sanctity of an oath, his ideas of morality appear to have been much at variance with the corrupt practice of the age. Uncontaminated by the pernicious example of the great men of the country, he rather chose to bear hunger and every other privation the unsheltered outlaw might be exposed to, than purchase the advantage so much prized by others, at the expense of taking an oath he had no intention of holding sacred:—still, this inflexible rectitude of soul could not shame the aristocracy from their convenient perjuries; for the bands by which he strove to unite them together, became like ropes of sand in the hour of trial. Notwithstanding, however, all the difficulties that were thrown in his way, the vigour of his own character, and the wisdom of his measures, enabled him to achieve the deliverance of his native land. To the charges of ambition and usurpation that were brought against him, he gave the noblest refutation, by resigning the bauble of power into the hands of those little spirits, who would otherwise have betrayed the cause of national independence, or involved their country in all the horrors of civil war. Thus, his virtuous self-denial preserved the people whom his valour had set free.

In the biographical notices that have been submitted, the reader will perceive the formidable array of talent and power with which Wallace had to contend. To an aristocracy, at that time perhaps unrivalled in Europe, and headed by a monarch as distinguished for ambition, sternness of purpose,

and warlike propensities, as he was notorious for the absence of those virtues which constitute the redeeming traits in the character of a soldier—the magnanimous patriot had at first little to oppose, save the innate energies of his own invincible heart, and the resources of a genius which Heaven seems peculiarly to have fitted for the task. That Scotland, distracted by faction, and deprived of all foreign aid, should, under the guidance of one who ranked among the humblest of her nobles, have again advanced herself to the dignity of an independent state, in defiance of the power of England, backed by the resources of Ireland and Wales, was considered by her adversaries as too humiliating to their national character to admit of their relinquishing the contest.⁷⁸ The renewal of every invasion was, however, met by an increasing stubbornness of opposition; and the chivalrous conqueror in Palestine, the “high-souled” Plantagenet, at last condescended to *steal* away the enemy he could neither bribe nor subdue, and thus purchase the brief and delusive semblance of a victory, at the price of everlasting dishonour.

The mind of Wallace was imbued with the most exalted ideas of independence; and the stern and inflexible spirit with which he guarded his own and his country’s honour, could only be equalled by the scrupulous delicacy he exercised towards the feelings of others. Loving freedom for her own sake, he considered her sanctuary, wherever placed, as too sacred to be violated. Among the many proofs of this elevation of mind, the following may be mentioned:—On the surrender of de Longueville, the high-spirited Frenchman was anxious to know the name and the character of his conqueror. On the name of Wallace being announced to him, he fell on his knees, and thanked God that so worthy an enemy had been his victor; and, according to the custom of the age, he tendered his service, along with his sword. “Service from you, Sir Thomas,” said the gallant Scot, with an accent of kind familiarity, “I cannot accept; your friendship is what I desire.” On another occasion, in the heat of an engagement, having, as he conceived, given orders to Sir John Graham in a manner too peremptory—after the victory had been secured, he came up to his brave friend, and surprised him with a humble apology for any thing like harshness he might have displayed in his manner of expressing himself. Graham, however, was quite unconscious of hearing any thing that he had reason to take amiss; and

expressed a hope that he would always act towards him and others in the same manner, when the interest of their country was at stake.

In the division of spoil, the portion that fell to the share of Wallace he set apart as a fund from which those were rewarded who had distinguished themselves by their valour or good conduct, while contending for the liberty of their country—thus stimulating their efforts in their own cause, by the sacrifice of his personal advantage. The delicacy, also, which he evinced, in excluding his relations from any participation in those grants and emoluments with which he rewarded the services of others, showed him exempt from any selfish or mercenary feeling, and decidedly averse to the

aggrandizement of his family⁷⁹ at the national expense. In those times, when driven to the woods and natural fastnesses of the country, where his little party were exposed, from the scarcity of provisions, to the greatest distress, the expedients he had recourse to for their relief, and the self-denial he exercised in order to husband the slender supplies for their use, impressed his followers with sentiments of admiration and gratitude. The system which he introduced, during the short period of his regency, of disciplining and subdividing the nation, evinced the clear and comprehensive views he entertained of the true interests of the country; and had his successors in power followed up the same measure, it would doubtless have been productive of incalculable benefit to the kingdom; as, independent of the great force the Legislature might thus have been enabled to bring into the field in cases of emergency, it would have undermined, and eventually overthrown, the feudal superiority of the barons, and those petty confederations among clans, which have been for so many ages the bane and curse of Scotland. His views, however, for the immediate and permanent prosperity of the country, took even a more extensive range than what is embraced by the above wise and salutary measure. Aware of the benefit which Scotland had formerly derived from her commercial intercourse with the Continent, we find his attention, within a month after the battle of Stirling, seriously turned towards the re-establishment of this important object; and while the nation was mustering at Roslin for the invasion of England, her leader was actively engaged in despatching intimation to the different Hanse-towns, that the ports of Scotland were

again open to the trade of all friendly powers.⁸⁰ The plan which he pursued in his invasions, was the most efficient for exhausting the enemy's country,

enriching his own, and encouraging his countrymen to flock to his standard. Though often severe in his retaliations, yet, towards women and children, he always exercised the greatest humanity.

During his Guardianship, the country was beginning to feel the return of her former prosperity. With the spoil of the enemy he had diffused plenty over the land; the poor were protected; thieves were promptly and severely punished; cheats and liars were discouraged; and good men met the reward of their virtues. The vigilance with which he watched over the public weal was unremitting, and never for a moment gave place to any object of personal consideration. Even those duties which are often considered paramount to every other, were with him secondary to the interest of his country; for, on the death of his mother, his presence being required elsewhere, he intrusted the performance of her obsequies to his friend John Blair and a confidential servant;—which duty they discharged with becoming solemnity in the cathedral of Dunfermline. To this cemetery, it is conjectured, the fragments of his own body were secretly collated by his companions, after the barbarous and impolitic exposure had taken place. At his execution, that self-command and nobleness of soul, which formed such luminous traits in his character, never for a moment forsook him. Without deigning to breathe a murmur, either at the injustice of the tyrant who condemned, or the unhappy man who betrayed him,⁸¹ he submitted to his fate with that becoming dignity which extorted even from his enemies expressions of unqualified admiration.

A revulsion, the natural consequence of the inhuman cruelty of Edward, and the undaunted demeanour of his victim, took place in the minds of the people of England immediately after his execution; and the story of an English⁸² monk who pretended to have seen a vision of angels conducting Wallace out of purgatory with much honour, was quickly circulated, and received with pleasure, all over Britain.

The following lines, translated from the original Latin by Hume of Godscroft, are understood to have been composed some time after the execution of our illustrious patriot, by his afflicted friend and chaplain John Blair; and with this elegant and pathetic tribute of genius at the shrine of departed greatness, we shall close the present chapter:—

“Envious death, who ruins all,
Hath wrought the sad lamented fall
Of Wallace; and no more remains
Of him—than what an urn contains!
Ashes for our hero we have—
He, for his armour, a cold grave.
He left the earth—too low a state!
And by his acts o’ercame his fate.
His soul Death had not power to kill,
His noble deeds the world do fill
With lasting trophies of his name.
O! hadst thou virtue loved, or fame,
Thou could’st not have insulted so
Over a brave, betrayed, dead foe,
Edward, nor seen those limbs expos’d
To public shame—fit to be clos’d
As relics in an holy shrine.
But now the infamy is thine.
His end crowns him with glorious bays,
And stains the brightest of thy praise.”

CHAPTER XIII.

CONCLUSION.

The wisdom of the ancient Egyptians has been much celebrated, but in no respect does it appear more conspicuous than in the uses to which they applied the historical records of their country. By their laws, the hand which kept a faithful transcript of passing events, and registered with strict impartiality the transactions and characters of their kings, was removed from the knowledge and influence of those whose deeds were thus related. On the accession of every new monarch, it was part of the ceremonial to read in his presence the records of his predecessor's reign. By this means he was apprised of the faults he ought to avoid, and admonished of the virtues it was incumbent on him to emulate; while the reflection arising from the certainty that after death his name also would be consigned over to posterity—either to receive the meed of grateful remembrance, or the impress of merited reprobation, according to his actions—operated on the royal mind as a useful and salutary restraint.

Other nations aspired to imitate the Egyptians; but national imitation is too often like that among individuals. The faults and blemishes of the original are more readily caught than its beauties and perfections. Thus, while the grossness of Egypt's mythology was most servilely copied, *one* practice which gave dignity and utility to her history was entirely overlooked, and the pen of the historian, in place of being wielded by the impartial, fearless, and untrammelled friend of public virtue, was more frequently found in the hand of the needy parasite; employed in the base and degrading occupation of varnishing the enormities of the ermined tyrant, whose ambitious progress to distinction had been marked by the subversion of the rights, and the carnage of his fellow-men. This prostitution of the historic muse is not unknown among modern authors, and may be often attributed to an unworthy desire of administering to the feelings of a favourite party, or a wish to conciliate the national prejudices

of their readers. Though compelled, by the general increase of knowledge, to give a more faithful narrative of facts than the writers of antiquity, when it may suit any of the purposes that have been mentioned, the subject of their biography is seldom dismissed without being made to undergo a sort of purgation in the general estimate of his character, and which is often found to be at antipodes to the actions with which it stands connected. Perhaps the annals of England cannot afford a more striking instance of this perversion of all that is valuable in historical literature, than in the portraits which some historians have drawn of Edward I.

Without attempting to delineate the character of this ambitious disturber of the peace of Britain, the writer will merely notice a few of the leading circumstances of his history, and leave the reader to discover by what curious process of literary chemistry those crudities have been made to harmonize, in order to produce so fair a display of political sagacity and kingly greatness.

The littleness which appears to have been inherent in the mind of Edward was laid open to the Londoners in 1263, by his breaking into the treasury of the Knights Templars, and carrying off 1000*l.* deposited there by the citizens. This robbery was looked upon by the people as an act so thoroughly base, that they instantly flew to arms, and assaulted the houses of those among the nobility who were supposed accessory to the theft. Edward was at this time in his 26th year; of course youthful indiscretion cannot be advanced as an excuse for the crime.

His aggression upon Scotland has been indulgently placed to the account of those enlightened and statesman-like views which he entertained of the true interests and general welfare of Britain, and the advantages he discovered would result from the resources of the two countries being consolidated under one head. This “reason of state,” has been held up in extenuation of the nefarious means which he resorted to for the accomplishment of his purpose. But by the extracts which we are about to make from the pages of an author every way inclined to treat the faults of Edward with lenity, the reader will perceive, that though the enlightened views “which he took of the solid interests of his kingdom,” may have found a place in the imagination of the historian, they do not appear to have occurred to the monarch. The extinction of every thing like rational liberty, and the establishment of an extensive and uncontrollable autocracy, seem to

have been the undisguised objects of his ambition. In proof of which, we have only to refer to his demeanour towards his barons, and the unwarrantable appropriation of the effects of his subjects, mentioned in the extracts alluded to. His conduct in respect to Scotland being thus stripped of the only palliation that can be offered, it stands forward on the page of history in all its native deformity, unrelieved by one solitary extenuating circumstance, while the following transaction gives it, if possible, a darker and more disgusting complexion.

In 1267, Henry and Prince Edward, being driven to the greatest extremity by the Earl of Gloucester and other Barons, whom their oppressions and unlawful exactions had forced to take up arms, when every hope failed them, and even the Tower of London was besieged by a numerous army of enraged assailants, they were very opportunely relieved from their perilous situation by the assistance of 30,000 Scots, whom Alexander sent to their relief; and with these auxiliaries they were enabled to withstand, and afterwards to subdue, their exasperated and refractory subjects. The debt of gratitude which was thus incurred, Edward had not an opportunity of discharging, till after the death of Alexander, when the Scots, with a generous confidence, which their own conduct naturally inspired, applied to him to act as umpire in settling the succession to the crown. How honourably he acquitted himself in the discharge of the duties of the trust thus reposed in him, and how generous was the return he made for their good offices, the reader requires not to be told. Two nations, who had for nearly a century regarded each other with feelings of mutual good-will, and had lived in a state of friendly intercourse highly beneficial to both, were suddenly transformed into the most inveterate enemies; and an implacable spirit of animosity engendered between them, which it required the slow revolution of ages to soften and obliterate. The guilty ambition of this short-sighted tyrant entailed upon the British states a quarrel the most bloody, the most expensive, and the most insane that perhaps ever existed between two nations. By the ridiculous pretensions of the one, the improvement of both countries was retarded, and their frontier populations demoralized into cut-throats or plunderers, who wandered in search of their prey over a land barren as the desert, which might otherwise have been teeming with the fruits of honest and profitable industry.

Edward's ideas of honesty we have already seen in the affair of the Templars, and his feelings of gratitude in his conduct towards the Scots. His sense of justice may be gathered from his proceedings against the Jews. The silver pennies of the realm having been clipped, the offence was traced to some of that unfortunate people, and in one day 280 of both sexes were executed in London, besides a great many more in different parts of the kingdom, where it seems simultaneous measures had been taken against them. That this crime was confined entirely to the Jews, is not likely. The implements by which it could be committed were certainly not beyond the reach of English intellect; nor could the latter be supposed, in every instance, superior to the temptation which the gains presented. That the guilt of all who suffered was ascertained, is impossible; and a wholesale butchery of this kind, authorized by law, as it could not answer the ends of justice, can only be considered as gratuitously administering to the worst of human passions.

The estimation in which Edward held those arts which are calculated to instruct, refine, and elevate the human mind, may be learned from his treatment of the Minstrels of Wales. The remorseless and sanguinary policy which suggested that unhallowed act, could only have found place in the breast where every virtuous and honourable feeling had disappeared before the withering influence of a selfish and detestable ambition. In an age when the Minstrel's profession was a passport to the presence and protection of the great, and the persons of those who exercised the calling were held sacred even among tribes the least removed from barbarism, the mind must have reached a fearful state of depravity, that could break through those barriers with which the gratitude and veneration of mankind had surrounded the children of genius, and thus immolate at the shrine of an heartless despotism, the innocent and meritorious depositories of a nation's lore.

* * * * *

The reader may form some idea of the treasures squandered by Edward in the Scottish wars, from the Statement of Receipts and Disbursements for the year 1300, inserted in Appendix M, at the end of this volume. The military operations of that year were not on a more expensive scale than those connected with the preceding and subsequent invasions; and by this statement, it will be found, that the disbursements for the campaign of 1300,

exceeded, “within one department of the national expenditure,” *one fifth* of the national income. That the expenses of this campaign pressed equally hard on other departments of the exchequer, is sufficiently obvious from the singular expedients which were resorted to for the purpose of carrying it on. The year 1300 is remarkable for the first attempt to depreciate the currency of the realm, it having been then ordered that 243 pennies should be coined out of the pound of silver, in place of 240 as formerly. In this year, also, as will be seen by the statements already alluded to, the Wardrobe department was in arrears to the amount of 5949*l.* 4*s.* 3*d.*, which circumstance—taken in connexion with the fact, that Sir Simon Fraser and other knights soon after deserted the English service, because their pay and other allowances were withheld—proves that the treasury of England at this time must have been in a very depressed state. This profitless expenditure was continued with little interruption, from 1296 till 1320, in pursuit of an object, which, happily for the future prosperity of both countries, was unattainable.

We have already alluded to the treacherous designs of Edward, regarding the liberties of his own subjects; and, in illustration of the opinion then expressed, we shall now subjoin the account of his behaviour, after his triumphant return from the north, as it appears in the pages of Dr Lingard, an author who certainly cannot be considered as a friend to Scotland:—we wish we were able to call him a *candid* adversary.

“Had Edward,” says this learned, though often disingenuous writer, “confined his rapacity to the clergy, he might perhaps have continued to despise their remonstrances; but the aids which he had annually raised on the freeholders, the tallages which he so frequently demanded of the cities and boroughs, and the additional duties which he extorted from the merchants, had excited a general spirit of discontent. Wool and hides were the two great articles of commerce; the exportation of which was allowed only to foreign merchants, and confined, by law, to eleven ports in England, and three in Ireland. In the beginning of his reign, the duty had been raised to half a mark on each sack of wool; but the royal wants perpetually increased; and, during his quarrel with the King of France, he required five marks for every sack of fine, three for every sack of coarse wool, and five for every last of hides. On one occasion, he extorted from the merchants a loan of the value of all the wool which they exported; on two others, he seized and sold both wool and hides for his own profit. He even stretched

his rapacious hands to the produce of the soil, and the live-stock of his subjects; and, to provision his army in Guienne, he issued precepts to each sheriff to collect, by assessment on the landholders of his county, a certain number of cattle, and two thousand quarters of wheat. Though this requisition was accompanied with a promise of future payment, the patience of the nation was exhausted: Consultations began to be held: and preparations were made for resistance. Edward had assembled two bodies of troops, with one of which he intended to sail for Flanders, the other he destined to reinforce the army in Guienne, (1297, Feb. 24.) At Salisbury, he gave the command of the latter to Bohun Earl of Hereford, the constable, and to Bigod Earl of Norfolk, the mareschal of England; but both these noblemen refused the appointment, on the alleged ground, that, by their office, they were bound only to attend on the King's person. Edward, in a paroxysm of rage, addressing himself to the mareschal, exclaimed—'By the everlasting God, Sir Earl, you shall go or hang.'—'By the everlasting God, Sir King,' replied Bigod, 'I will neither go nor hang.' Hereford and Norfolk immediately departed: they were followed by thirty bannerets, and fifteen hundred knights; and the royal officers, intimidated by their menaces, ceased to levy the purveyance. Edward saw that it was necessary to dissemble, and summoned some,—requested others, of his military tenants to meet him in arms in London.

“The two Earls, in concert with the Archbishop of Canterbury, had arranged their plan of resistance to the royal exactions. On the appointed day the constable and John de Segrave, as deputy-mareschal, (Bigod himself was detained at home by sickness) attended the King's court; but when they were required to perform their respective duties (July 8th), they returned a refusal in writing, on the ground that they had not received a legal summons, but only a general invitation. Edward appointed a new constable and mareschal; and, to divide and weaken his opponents, sought to appease the clergy, and to move the commiseration of the people (July 11th). He received the primate with kindness, ordered the restoration of his lands, and named him one of the council to Prince Edward, whom he had appointed regent. On a platform before the entrance of Westminster Hall, accompanied by his son, the Archbishop, and the Earl of Warwick, he harangued the people, (July 14.) He owned that the burdens which he had laid on them were heavy; but protested that it had not been less painful to him to impose, than it had been to them to bear them. Necessity was his

only apology. His object had been to preserve himself and his liege men from the cruelty and rapacity of the Welsh, the Scots, and the French, who not only sought *his* crown, but also thirsted after *their* blood. In such case, it was better to sacrifice a part than to lose the whole. ‘Behold,’ he concluded, ‘I am going to expose myself to danger for you. If I return, receive me again, and I will make you amends; if I fall, here is my son; place him on the throne, and his gratitude shall reward your fidelity.’ At these words the King burst into tears; the Archbishop was equally affected; the contagion ran through the multitude; and shouts of loyalty and approbation persuaded Edward that he might still depend on the allegiance of his people. This exhibition was followed by writs to the sheriffs, ordering them to protect the clergy from injury, and to maintain them in the possession of their lands.

“He now ventured to proceed as far as Winchelsea on his way to Flanders. But here he was alarmed by reports of the designs of his opponents, and ordered letters to be sent to every county, stating the origin of his quarrel with the two earls, asserting that he had never refused any petition for redress, and promising to confirm the charter of liberties and charter of the forests, in return for the liberal aid of an eighth which had been granted by the council in London. Soon afterwards a paper was put into his hands, purporting to be the remonstrance of the archbishops, bishops, abbots, and priors, the earls, barons, and whole commonalty of England. In it they complained that the last summons had been worded ambiguously; that it called on them to accompany the King to Flanders, a country in which they were not bound to serve by the custom of their tenures; that even if they were, they had been so impoverished by aids, tallages, and unlawful seizures, as to be unable to bear the expense; that the liberties granted to them by the two charters had been repeatedly violated; that the ‘evil toll’ (the duty) annually on wool amounted alone to one-fifth of the whole income of the land; and that, to undertake an expedition to Flanders in the existing circumstances, was imprudent, since it would expose the kingdom without protection to the inroads of the Welsh and Scots. Edward replied, that he could return no answer on matters of such high importance, without the advice of his council, a part of which had already sailed for Flanders; that if the remonstrants would accompany him, he would accept it as a favour; if they refused, he trusted they would raise no disturbance during his absence, (Aug. 19.) Before his departure he appointed commissioners in each county with powers to require security

from all persons for the payment of aids due to the crown, and to imprison the publishers of false reports, the disturbers of the peace, and such of the clergy as might presume to pronounce censures against the royal officers for the discharge of their duty.

“At length the King set sail, accompanied by the barons and knights who had espoused his cause; and two days later, Bohun and Bigod, with a numerous retinue, proceeded to the exchequer. The constable, in the presence of the treasurer and judges, complained of the King’s extortions, of his illegal seizures of private property, and of the enormous duty imposed upon wool; and forbade them, in the name of the baronage of England, to levy the last eighth which had been granted by the great council, because it had been voted without his knowledge and concurrence, and that of his friends. From the exchequer they rode to the Guildhall, where they called upon the citizens to join in the common cause, and to aid in wresting the confirmation of the national liberties from a reluctant and despotic sovereign. The tears which the Londoners had shed during Edward’s harangue, were now dried up; considerations of interest suppressed the impulse of pity; and they gave assurances of their co-operation to the barons, who immediately retired to their respective counties. Both during their progress to the capital, and their return from it, they had marched in military array. But at the same time they had been careful to preserve the peace; and had threatened, by proclamation, to punish every lawless aggressor with immediate amputation of a hand, or the loss of the head, according to the quality of the offence.

“The King was soon informed of these proceedings, and ordered the barons of the exchequer to disregard the prohibition. But in a few weeks his obstinacy was subdued by a succession of untoward events. The people and clergy universally favoured the cause of the earls; the Scots, after their victory at Stirling, had burst into the northern counties; and Edward himself lay at Ghent in Flanders, unable to return to the protection of the kingdom, and too weak to face the superior force of the French king. In these circumstances, the lords who composed the council of the young Prince, invited the archbishop, six prelates, twenty-three abbots and priors, the constable and mareschal, and eight barons, to treat with them on matters of the greatest moment, and summoned a parliament to meet in London a week later (Sept. 30.), and witness the confirmation of the two charters. In

the conferences which preceded, the two parties, though opposed in appearance, had the same interests and the same views; a form of peace (so it was called) was speedily arranged; and, to the ancient enactments of the charters, were appended the following most important additions:—"No tallage or aid shall henceforth be laid or levied by us or our heirs in this our realm, without the goodwill and common assent of the archbishops, bishops, and other prelates, the earls, barons, knights, burgesses, and other free men in our realm. No officer of us or our heirs shall take corn, wool, hides, or other goods, of any person whatsoever, without the good will and assent of the owner of such goods. Nothing shall henceforth be taken on the sack of wool, under the name or pretence of the evil toll. We also will and grant for us and our heirs, that all both clergy and laity of our realm shall have their laws, liberties, and free customs, as freely and wholly as at any time when they had them best; and if any statutes have been made or customs introduced by us or our ancestors contrary to them, or to any article in the present charter, we will and grant that such statutes and customs be null and void for ever. We have, moreover, remitted to the Earl Constable, and Earl Mareschal and all their associates, and to all those who have not accompanied us to Flanders, all rancour and ill will, and all manner of offences which they may have committed against us or ours before the making of this present charter. And for the greater assurance of this thing, we will and grant for us and our heirs, that all archbishops and bishops in England for ever, shall, twice in the year after the reading of this charter in their cathedral churches, excommunicate, and cause, in their parochial churches, to be excommunicated, all those that knowingly shall do or cause to be done, any thing against the tenor, force and effect of any article contained in it.

"When the parliament assembled (Oct. 10.), these additions to the charter were received with enthusiasm; and provided the King would assent to them, the laity voted him an eighth, the clergy of Canterbury a tenth, and the clergy of York a fifth. The prince, by a public instrument, took the Earls and their associates under his protection; and the Lords of the Council bound themselves to indemnify them against the effects of the royal displeasure. A common letter was written to the King, soliciting him to appease all differences by giving his assent, and assuring him that his faithful barons were ready at his command either to join him in Flanders, or to march against his enemies in Scotland; but at the same time requiring, in

a tone of defiance, an answer against the sixth day of December. It cost the haughty mind of Edward several struggles, before he could prevail on himself to submit: three days were spent in useless deliberation and complaints; but at last, with a reluctant hand, he signed the confirmation of the two charters with the additional articles, and a separate pardon for the Earls and their followers, (Nov. 5.)

“This was perhaps the most important victory which had hitherto been gained over the Crown. By investing the people with the sole right of raising the supplies, it armed them with the power of checking the extravagance, and controlling the despotism of their monarchs. Whatever jealousy might be entertained of Edward’s intentions, his conduct wore at first the semblance of sincerity. As soon as an armistice had been concluded between him and the King of France, he returned to England, and appointed commissioners to inquire into the illegal seizures which had been made previously to his departure. They were to be divided into two classes. Where the officers acted without warrant, they were, at their own cost, to indemnify the sufferers; where the goods had been taken by the royal orders, their value was to be certified into the exchequer, and prompt payment was to be made. Still it was suspected that he only waited for a favourable moment to cancel the concessions which had been wrung from him by necessity; and it was whispered that among his confidential friends he had laughed at them as being of no force, because they had been made in a foreign country, where he possessed no authority. When he met his parliament at York, the Earls of Hereford and Norfolk required that he should ratify his confirmation of the charters. He objected from the necessity of hastening to oppose the Scots, solemnly promised to comply with their request on his return, and brought forward the Bishop of Durham and three Earls, who swore ‘on his soul,’ that he should fulfil his engagements.” A. D. 1299. March. The victory of Falkirk and a long series of success gave a lustre to his arms; but when the parliament assembled the next year, the King was reminded of his promise. His reluctance employed every artifice to deceive the vigilance, or exhaust the patience, of the two Earls. He retired from the parliament in anger; he returned and proposed modifications; at last he ratified his former concessions, but with the addition of a clause, which, by saving the rights of the Crown, virtually annulled every provision in favour of the subject. Bohun and Bigod instantly departed with their adherents; and the King, to ascertain the

sentiments of the people, ordered the sheriffs to assemble the citizens in the cemetery of St Paul's, and to read to them the new confirmation of the charters. The lecture was repeatedly interrupted by shouts of approbation; but when the illusory clause was recited, the air rung with expressions of discontent, and curses were poured on the head of the prince, who had thus disappointed the expectations of his people. Edward took the alarm; summoned a new parliament to meet him within a fortnight; granted every demand; and appointed a commission of three Bishops, three Earls, and three Barons, to ascertain the real boundaries of the royal forests.”⁸³

In the foregoing extract, we find Edward, on the 14th July, holding up the Scots as a bugbear to terrify his subjects into an acquiescence with his oppressive demands; and on the 30th September the English, in turn, are found making the very same use of the Scots, for the purpose of extorting from *their* reluctant and unprincipled “Justinian,” the confirmation of their national liberties. It did not, however, appear to strike them that the subversion of freedom in Scotland was totally inconsistent with its existence in the southern part of the island.

By the same author we are also told, that after the surrender of Stirling Castle in 1304, Edward sent a secret deputation to the Pope, craving that a dispensation might be granted him from the oaths he had taken. This request appears to have been complied with; but the learned author adds, “Whether the papal rescript did not fully meet the King's wishes, or that he was intimidated by the rebellion of the Scots, he made no public use of its contents; but suffered the concessions, galling as they were, to remain on the statute-roll at his death, and descend to future sovereigns as the recognised law of the land. Thus, after a long struggle, was won, from an able and powerful monarch, the most valuable of the privileges enjoyed by the commons of England at the present day. If we are indebted to the patriotism of Cardinal Langton, and the Barons at Runnymede, the framers of the great charter, we ought equally to revere the memory of Archbishop Winchelsey and the Earls of Hereford and Norfolk. The former erected barriers against the abuse of the sovereign authority; the latter fixed the liberties of the subject on a sure and permanent foundation.”⁸⁴ In his list of meritorious characters, the learned author ought certainly not to have omitted the Knight of Elderslie and his patriotic followers, who, in standing

nobly forward for the independence of their own country, were also instrumental in securing such invaluable and lasting privileges for their neighbours.

From the evidence adduced in the quotations made, of the powerful diversion effected in favour of English liberty by the stubborn opposition of the Scots, it appears, that the success of the arms of the latter was the palladium on which the most important of England's chartered rights depended. When the people of England, therefore, think of erecting monuments to the characters the worthy Doctor has enumerated, it is to be hoped that a tablet to the memory of the Guardian of Scotland will not be forgotten, on which, with propriety, may be inscribed

“LIBERTÉ CHÉRIE, quand tu meurs *en Ecosse*,
Certes, l'Anglais, *chez lui*, peut bien creuser TA fosse.”

APPENDIX.



A.

ORIGINAL LETTER FROM SIR WILLIAM WALLACE AND SIR ANDREW MURRAY.

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It affords the writer no little pleasure, to be able to lay before his readers the following authentic document, which establishes beyond a doubt the early and deep interest which Wallace took in the re-establishment of the commercial prosperity of Scotland. As this important writing, however, has not hitherto appeared in the works of either English or Scottish historians, nor even been alluded to in any former account of Wallace, it will be necessary to give some explanation respecting the source from which it has been obtained. In the *Foreign Quarterly Review* for August 1829, the following notice appeared:—"Our Scottish antiquarian friends will be gratified to hear, that Dr Lappenberg of Hamburg, in his researches among the ancient records of that city, has discovered a letter, of the date 1287, addressed by *Robert Wallace* and Andrew Murray to Hamburg and Lubec." An intimation of this kind could not fail to excite a considerable degree of interest in the writer; and the possibility that a mistake might have occurred respecting the date, as well as the name of one of the parties, encouraged the hope, that a letter of William Wallace and Andrew Murray, with which the public were unacquainted, might still be in existence. Under this impression, the writer communicated with an intelligent friend, through whose means application was made to Dr Lappenberg on the subject, who, with that genuine politeness which seldom fails to accompany distinguished merit, promptly communicated a copy of the letter in question, taken from the *original*, which still exists among the archives of the Hanseatic city of Lubec.⁸⁵ The letter is to the following effect:—

“Andreas de Morauia et Willelmus Wallensis, duces exercitus regni Scotie et communitas eiusdem Regni, prouidis viris et discretis ac amicis dilectis, maioribus et communibus de Lubek et de Hamburg salutem et sincere dilectionis semper incrementum. Nobis per fide dignos mercatores dicti regni Scotie est intimatum, quod vos vestri gratiâ, in omnibus causis et negociis, nos et ipsos mercatores tangentibus consulentes, auxiliantes et favorabiles estis, licet nostra non precesserent merita, et ideo magis vobis tenemur ad grates cum digna remuneratione, ad que vobis volumus obligari; rogantes vos, quatinus preconizari facere velitis inter mercatores vestros, quod securum accessum ad omnes portus regni Scotie possint habere cum mercandiis suis, quia regnum Scotie, Deo regraciato, ab Anglorum potestate bello est recuperatum. Valete. Datum apud Badsingtonam in Scotia, undecimo die Octobris, Anno gracie, millesimo ducentesimo nonagesimo septimo. Rogamus vos in super vt negocia Johannis Burnet, et Johannis Frere, mercatorum nostrorum promoueri dignemini, prout nos negocia mercatorum vestrorum promovere velitis. Valete dat: ut prius.”

TRANSLATION.

“Andrew Murray and William Wallace, commanders of the army of the kingdom of Scotland, and the community of the same kingdom—To the prudent and discreet men, and well-beloved friends, the Mayors and Commonwealths of Lubeck and of Hamburg, greeting, and perpetual increase of sincere friendship.

“To us it has been intimated, by trust-worthy merchants of the said kingdom of Scotland, that, as a mark of your regard, you have been favourable to, counselling and assisting in, all matters and transactions relating to us and said merchants, though [such good offices] may not have been preceded by our deserts, and on that account we are the more bound to tender you our thanks, and a suitable return. This we have willingly engaged ourselves to [perform towards] you, requesting, that in so far you would cause your merchants to be informed, that they will now have safe access to all the ports of the kingdom of Scotland with their merchandise, as the kingdom of Scotland, thanks to God, has during the war been recovered

from the power of the English. Farewell.—Given at Badsington [Haddington?⁸⁶], in Scotland, this eleventh day of October, in the year of grace one thousand twelve hundred and ninety-seven.—We have moreover to request, that you would condescend to forward the interests of our merchants John Burnet and John Frere in their business, in like manner as you may wish us to act towards your merchants in their commercial transactions. Farewell.—Dated as above.”

Dr Lappenberg, in his valuable communication, remarks, that this letter “appears to be the oldest document existing relative to the intercourse of Hamburg and Lubec, or other Hanseatic cities, with Scotland.”⁸⁷ As the reader will perceive,—a mistake had occurred in the date, and also in the name of Wallace.

From the above interesting muniment, various important points in our history may be established. In the first place, it seems evident, that Wallace and Murray, *up to the 11th October 1297*, acted only as “duces exercitus regni Scotie,” in behalf of the *community of said kingdom*; and that *the commission from John Baliol*, authorizing them to act under his sanction, must have been received by them *on their march to England*, or *during the time the devastation of that country was going forward*; that is to say, between the 11th October and 7th November, on which day the charter was granted to the monks of Hexham,⁸⁸ where we find “the name of the illustrious Prince John, by the Grace of God King of Scotland,” is added to the authorities mentioned in the above letter. And again, that between the 7th November 1297, and the 29th March 1298, *another commision* must have been forwarded from *Baliol* to *Wallace* constituting him the *sole Regent of the Kingdom of Scotland*, as we find him on *that day* at Torphichen granting, in that capacity, a charter to Alexander Scrimgeor, and affixing to it the *seal of Baliol*; which circumstance is mentioned in the charter, while no mention is made of any seal being used in that at Hexham.⁸⁹

From the circumstance of Andrew Murray’s name having precedence in the letter to the Hanse Towns, and in the charter of Hexham, it may with great probability be inferred, that these two documents were either written by Wallace himself, or under his direction. That he was qualified for the

task is evident, from the care which had been bestowed on his education; first by his uncle, and afterwards at the seminary of Dundee. If Murray had either written them, or ordered them to be written, it is not likely that he would have placed his own name before one whose merits were so generally acknowledged, as to procure him the appointment of Regent in so short a time afterwards; while Wallace, in placing, or causing the name of Murray to be placed, before his own, appears acting in perfect consistency with those amiable traits in his character which we have already noticed. As these writings are also free from that monkish pedantry, and mystification which pervades in the literature of that age, they may with great probability be considered as the composition of the talented Liberator.⁹⁰

It may be remarked, that the envy which a number of the magnates of Scotland entertained towards the Guardian, seems to have arisen after his appointment to the Regency. How Sir Andrew Murray demeaned himself on the occasion, does not appear; but the conduct and feelings of Cumyn, his near relation,⁹¹ were too unequivocally expressed to be misunderstood.

The above letter, besides affording a good specimen of the diplomatic talents of our hero, is at the same time highly complimentary to the friendly feelings and mercantile integrity of the merchants of the two Hanse cities, and exhibits a singular contrast to the policy of Philip, who, though bound by treaties, allowed his allies to struggle on against their powerful adversary, without affording them the slightest assistance.

B.

MEMOIR OF PATRICK EARL OF DUNBAR.⁹²

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This powerful and warlike baron was descended from Gospatrick, the Governor of Northumberland, in the time of William the Norman, who deprived him of that office in consequence of his joining the Danes in 1069, on their invasion of England. He afterwards retired to Scotland, and sought the protection of Malcolm III., who conferred on him the Castle of Dunbar and the lands adjoining. In virtue of this grant, his descendants were styled Earls of March, and sometimes of Dunbar; the former title being derived from the lands, the latter from the name of the principal castle belonging to the family. They were also possessed of the castle of Coldbrands-path, a fortress of almost equal importance.

Patrick, or (Corspatrick, as he is sometimes called), the subject of the present notice, was the eighth Earl of Dunbar; he succeeded to his father in 1289, being then about forty-seven years of age. He was one of the nobles who consented to the projected marriage between prince Edward and Margaret the young Queen of Scotland. In 1291, he put in his claim to the crown, among the other competitors, founding his right on being the great-grandson of Ilda or Ada, the daughter of William king of Scots. On the commencement of hostilities between Edward and Baliol, he adhered to the former; but his castle of Dunbar being left in possession of his wife Margery, daughter of Alexander Comyn, Earl of Buchan, she delivered it over to Baliol—conceiving the duties she owed her country paramount to the injunctions of her husband.

Whatever blame may be attached to this Earl, for the active part he took against the interest of Scotland, still the merit of consistency must be awarded to him in the crooked line of policy he adopted; for, having sworn fealty to Edward in 1291, he adhered to the interests of his over-lord with

zeal and fidelity. The answer⁹³ which he returned to Wallace and the Scottish barons assembled at Perth, is quite in accordance with that tone of independence assumed by the family, and which, according to Lord Hailes, was so prejudicial to Scotland.

After being driven from Scotland, as has already been stated, he continued to molest his countrymen as he found occasion. In 1298, he was actively engaged in the Scottish wars, and in November was appointed one of Edward's Lieutenants in Scotland. In 1300, he and his son,⁹⁴ a youth at that time about 15 years of age, were present at the siege of Carlaverock castle, when he must have been at least 58 years old. In 33d Edward I., he was to have attended the parliament as one of the representatives of the Commons of Scotland; but from some reason or other, he did not appear. On the 30th September 1308, he was commanded by Edward II. to assist in suppressing the insurrection of Bruce, but what efforts he made, cannot well be ascertained. In the following year he died, and was succeeded by Patrick, his son by the daughter of the Earl of Buchan.

C.

CHARTER OF PROTECTION GRANTED TO THE PRIOR AND CONVENT OF HEXCELDSHAM.

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“Andreas de Moravia et Willelmus Wallensis, *Duces exercitûs Scotiæ, nomine præclari Principis Domini Johannis, Dei gratiâ, Regis Scotiæ illustris, de consensu communitatis regni ejusdem*, omnibus hominibus dicti regni ad quos præsentēs literæ pervenerint, salutem. Sciatis, nos, *nomine dicti Regis*, Priorem et Conventum de Hexhildesham in Northumbria, terras suas, homines suos, et universas eorum possessiones, ac omnia bona sua, mobilia et immobilia, sub firma pace et protectione ipsius Domini Regis, et nostra, justè suscepisse. Quare firmiter prohibemus, ne quis eis in personis, terris, seu rebus, malum, molestiam, injuriam, seu gravamen aliquod, inferre præsumat, super plenaria forisfactura ipsius Domini Regis, aut mortem eis, vel alicui eorum, inferat, sub pœna amissionis vitæ et membrorum; præsentibus post annum minimè valeturis. Dat. apud Hexhildesham, vii. die Novembris.”—*W. Hemingford*, t. i. p. 135.^{[95](#)}

D.

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The intentions of Edward to curtail the power of his barons, and render them more subservient to his will, were most unequivocally displayed in his proceedings towards Bigod, Earl of Norfolk, immediately after his return from the conquest of Scotland. The imperious language of the tyrant, and the bold and determined conduct of the vassal, the reader will find narrated in the extracts from Dr Lingard, inserted in the concluding chapter of the narrative. The plans of Edward for the extinction of British freedom, were such as have been generally resorted to by other despots, who have encroached upon the rights of their subjects or neighbours. While the Scots were summoned to fight his battles in France, the Welsh were marched to Scotland to assist in the subjugation of that country; and had the former remained passive under the yoke, there is every reason to believe that they would soon, in their turn, have been employed to enforce the arbitrary measures of the ambitious monarch upon the subjects of his native kingdom. Thus Scotland, England and Wales, would have mutually assisted in rivetting the fetters of each other.

E.

THE SETONS.

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With respect to the fate of Christell of Seyton, some little inquiry may be necessary. It is well known, that a person of his name appears to great advantage in the history of the struggles of Bruce, and afterwards became a martyr in his cause; of course, he could not have been the individual mentioned in the text. It appears from various sources, that there were three of the Seyton family, of the name of Christell, grandfather, father, and son. If any of these were killed in the above battle, it must have been the second, for the first, “a man given more to devotion nor worldliness,” died in the reign of Alexander III. As the other two were both engaged in the contest for independence along with Wallace, the following account of them may be interesting to the reader. It is taken from the History of the House of Seyton, by Sir Richard Maitland of Lethington, and lately printed by the Maitland Club, from the MS. in the Advocates’ Library.

“OFF CHRISTELL SEYTOUN,

THE SECUND OF THAT NAME.

“Christell the secund of that name succedit to Christell the first, his father, in the tyme of Allexander the Thryd, and was ane nobill man, and did mony gud actis aganis the Inglismen, quhen the Crowne was desolat and in pley betuix the Bruce and the Balioll. Quhilk Christell, quhen he nicht nocht brouk the lawland of Lowthyane, quhair was his duelling place, duelt and remainit wyth his kyn and freyndis in Jedburgh forrest, ay

awating his tyme contrare the Inglismen; and deit in the tyme of William Wallace.”

“OFF CHRYSTELL SEYTOUN,

THE THRYD OF THAT NAME.

“Christell the thryd succedit to Christell the secund, his father, in the tyme of Williame Wallace; quhilk Christell was efter maid knycht be King Robert Bruce, and for his monye gude actis done againis the Inglismen, was callit Gud S^r Christell. Quha quhen King Robert Bruce was tane presonare in handis be the Inglismen at ane feild besyde Methven, and thay that tuke him cryit in scorne and derisioun, Quha will help the new maid King? quhilk cry the said S^r Chrystell hard, and come in all haist and straik at erd him that had the king in handis; and thair he and his freindis reskewit the said King Robert, and pat him to libertie. This Chrystell maryit the said King Robert Bruce sister, and thairfor the said King Robert gaif to the said S^r Chrystell the dowbil tresour of flour de lycis, to be worne about his armes and the armes of his posterité, lyk as the King weris thame. Efter mony grit and notabill actis done be the said S^r Chrystell contrair Ingland, he was tane at the last, and had to Londoun, and thair put to deid in maist cruell maner. In this mene tyme, King Robert Bruce hapnit to be in the toun of Dunfreis, and passand furth till ane lytill knoll besyd the said toun to tak the air, quhair the word and tythingis come to him of the crewell slauchter of the said S^r Chrystell, quhilk the king heirand maid grit lamentatioun wyth sum teiris, saying, It is ane pieté that sa nobill ane knycht suld die sa crewell ane deid. And incontinent, in the samin place quhair he wes standand quhen the tythingis come to him, gart found ane chapell in honour of the Virgene Marie; and in remembrance of the said S^r Chrystell foundit ane preist to do devyne service thairin perpetuallie, and pray for the said Schir Chrystell; and gaif to the said preist and his successouris the sowme of fyve pundis Streviling, to be tane of the baronie of Carlsruok, for thair sustentatioun. Quhilk fundatioun I haue had oft in my handis, and red it sindrie tymes. The quhilk chapell was standand haill and vndecayit in the yeir of God J^m v^c lii yeiris, as I saw my self; and as I beleve standis yit in

the samin maner, and is callit be all the inhabitaris in that cuntre Christallis chapell.

“ANE EIK OF SR CHRISTOPHER OF SETOUN,

THE THRID OF THAT NAME.

“It is to wit that efter that I had wryttin the Historie of the Hous of Setoun, I haue fund in the greit Cronicles of Ingland, set furth sen I wret the historie of Setoun, quhilk ar as efter followis:

“Efter this was the castell of Lochdore taiken, and wythin it Christopher Seitoun, that had married the sister of Robert le Bruce; [and bicause he was no Scot, but an Englishman borne,] the King of Ingland commandit that he suld be led wnto Dunfreis, quhar he had killit on of the Kingis knychtis, and thair to be hangit drawin and quarterit: The wyf of this Christopher Seitoun he apoyntit to be keipit in the monesterie of Thixell in Lyndsay.”—“Morouer, the manor of Seitoun, in Quhytbestroud, he gaue wnto the Lord Edmonde de Mawlay, and those wther landis that belongeth to the said Christopher Seitoun in Northumberland he gaue wnto the Lord Williame Latemer.”

“And howbeit that I wret of before as I was informit for the tyme, That the first tyme that King Robert the Bruce com to Dunfreis efter that Sr Christopher Setoun was crewellie slane in Ingland, that in the sam place quhar the King was quhen the thydingis com till him he garde bige ane chapell, and dottit the samyng perpetuallie to pray for the said Sr Christopher; bot now it apeiris be the Inglis Cronicles, That quhan the said King com to Dunfreis, that quhan it was reportit till him be the inhabetaris of the said toun the crewell marterdome of the said Sr Christopher, that he garde bige the said chapell in the samyng place quhar the said Sr Christopher was pute to deid and executtit. Of the quhilk chapell I haue red the foundatioun and infythment of ane priest onder the saidis kingis greit seill; and hes hard Mes in the samyng chapell, quhilk standis as I beleif to this present day.”—P. 18–21.

F.

MEMOIR OF FITZ-MARMADUKE.

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“This stern soldier was the eldest son of Marmaduke Fitz-Geoffrey, Lord of Hordene, in the bishoprick of Durham, who, in the 45th Henry III., 1260–1, obtained the King’s license to embattle his mansion-house there. In August 1282, John Fitz-Marmaduke, with nine other knights, performed services due from the Bishop of Durham, who styled him, on another occasion, “Nostre tres cher bachelier, Mons^r. Jehan le Fitz-Marmaduk;” but from that time nothing is recorded of him, until February 1301, when he was a party to the Letter from the Barons to the Pontiff, in which he is called “Lord of Hordene,” excepting that he was at the siege of Carlaverock in June 1300, where his bravery was particularly conspicuous. He came, we are told, to assail the castle with a great and full troop of good and select bachelors, and stood as firm as a post, and his banner received many a rent difficult to mend.

“It is most extraordinary, that for nearly twenty years, no notice can be found in the records of an individual who, at the end of that period, was a party to an instrument from the Baronage of the realm; and it was from this circumstance, the similarity of their arms, and his surname, that he was confounded with Marmaduke de Thweng in the “Synopsis of the Peerage.”

“In the 31st Edward I., Fitz-Marmaduke was commanded to appear before the King on the first Sunday in Lent, with full powers from the community of the Bishoprick of Durham, to accept his Majesty’s mediation between them and the Bishop; and, in April in the same year, he was appointed a Commissioner of Array. On the 30th September, 1st Edward II. 1307, he was ordered, with others, to proceed to Galloway, to repress the rebellion of Robert de Brus; and, in October following he was commanded to serve with horse and arms against the Scots; after which time his name

does not occur among the writs of service. He continued in the wars of Scotland, “comme une estache;” and, on the 21st June 1308, was again enjoined to oppose the attempts of Bruce. On the 16th February, 3d Edward II., 1310, he was authorized, with others, to treat with the Scots for a truce. Fitz-Marmaduke died in 1311, at which time he was governor of St John’s Town of Perth; and a very curious fact is recorded respecting his funeral. He particularly requested to be interred within the precincts of the cathedral of Durham, but, as the state of the country prevented the removal of his corpse in the usual manner, his domestics adopted the expedient of dismembering the body, and then boiling the flesh from the bones; by which means they preserved his reliques, until an opportunity offered of transmitting them with safety across the border. For this outrage against an ecclesiastical canon, which had been promulgated in consequence of the frequency of the practice, Cardinal Berengarius, Bishop of Jerusalem, imposed on the offenders the mild penance of attending their master’s obsequies in the cemetery of the cathedral of Durham, having first used the authority of the church to ensure the quiet transportation of his remains.

“Fitz-Marmaduke was twice married; first, to Isabella, sister, and heiress of Robert Brus of Stanton, by whom he had Richard, his son and heir, and a daughter, Mary, who married — Lumley; and, secondly, Ida, who survived him, and was living his widow in 1313. Richard Fitz-Marmaduke was Seneschal of the Bishoprick of Durham, and was slain, in 1318, by his kinsman Robert Neville, on the Old Bridge of Durham, as he was riding to hold the county court, which event is described as “a most strange and detestable action.” Though married to Alianora —, he died without children, when Mary, his sister, became his heiress. She left issue Robert Lumley of Ravensholm, who married Lucia, the daughter and co-heiress of Marmaduke de Thweng. They had issue a son, Marmaduke Lumley, whose representative is the present Earl of Scarborough.”

Siege of Carlaverock.

G.

MEMOIR OF BRIAN FITZ-ALAN.

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“Brian Fitz-Alan succeeded his father Brian before the 5th Edward I., and on the 6th April, 10th Edward I. 1282, and 14th June 1287, was summoned to serve with horse and arms in Wales. In the 19th Edward I., he obtained permission to make a castle of his house at Kilwardeby in Yorkshire; and in the following year, being one of King Edward’s vicegerents in Scotland, he, with others, received that monarch’s precept to give John de Balliol possession of the kingdom. He was a witness to that personage’s surrender of his crown on the 10th July 1296, about which time he was constituted the King’s Lieutenant in Scotland. Fitz-Alan was present at the siege of Carlaverock in June 1300; and in the ensuing February, was a party to the Letter from the Barons to Pope Boniface, in which he is styled, “Lord of Bedale.” His seal affixed to that document has been the subject of remark, for instead of containing his arms, it presents a whimsical assemblage of animals, apparently consisting of two birds, a rabbit, a stag, and a pig or boar, all of which are looking to the dexter excepting the latter, which is regarding the chief, and is inscribed with this curious legend,

TOT.CAPITA.TOT.SENTENCIE.

“The inference to be drawn from this singular seal tends to establish, that its owner was eccentric or satirical; for it must either have been used from unmeaning caprice, or with the intention of ridiculing the devices in the signets of his contemporaries. The allusion in the poem (The siege of Carleverock) to the arms of Fitz-Alan, is too important to be allowed to pass unnoticed. It not only informs us of an event in his life, by proving that he had been involved in a dispute with Hugh Poyntz, but shows that it was always one of the fundamental laws of arms, that no two persons should

bear the same ensigns, and that there was then sufficient pride felt on the point to resent its infringement.

“All that is farther known of Fitz-Alan is, that he was summoned to Parliament from the 23d June 23d Edward I. 1295, to the 22d January, 33d Edward I. 1305, though he died in 1302. The name of his wife is not stated, but it is almost certain that he married late in life; for, according to a note of the inquisition held on his death, Maud his daughter was his heir; though, at the death of his brother Theobald Fitz-Alan, on the 1st Edward II. 1307–8, his heirs are said to have been Maud and Katherine, the daughters of his brother Brian Fitz-Alan, the former of whom was then aged seven years, and the latter five; so that Katherine, who made proof of her age on the 12th Edward II., was probably a posthumous child. A discrepancy, however, exists on the subject; for, agreeable to a note of the inquisition on the death of this baron, his daughter Maud was then eight years old, and Dugdale says that Katherine was at the same time aged six, which, if the other statement be correct, was impossible. Of these daughters, Maud married Sir Gilbert Stapleton, and, according to a pedigree in Dodsworth’s MSS., secondly Thomas Sheffield; and Katherine became the wife of John Lord Grey of Rotherfield. Brian Fitz-Alan was buried in the south aisle of Bedale church in Yorkshire, and a sumptuous monument was there erected to his memory, a beautiful engraving and accurate description of which are given in Blore’s “Monumental Remains.” Sir Brian is said to have possessed a very elegant figure, and manners highly polished for the age.”

Siege of Carlaverock.

H.

MEMOIR OF AYMER DE VALENCE, EARL OF PEMBROKE.

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“AYMER DE VALENCE was the third son of William de Valence, who was created Earl of Pembroke by his uterine brother King Henry the Third. He was born about 1280, and succeeded his father in his honours on the 13th June 1296, both of his elder brothers having previously died without issue. The earliest notice of him which is recorded, is, that on the 26th January, 25th Edward I., 1297, he was summoned to Parliament as a baron, though, according to modern opinions on the subject, he was fully entitled to the earldom of Pembroke, nor was the title ever attributed to him in public records, until the 6th November, 1st Edward II. 1307; and the first writ to Parliament addressed to him as “Earl of Pembroke,” was tested on the 18th of the following January. Upon this remarkable circumstance, some observations have been recently made; but it is wholly impossible to explain the cause of the anomaly in a satisfactory manner. Although never styled “Earl of Pembroke” until the accession of Edward II., it is manifest, that from the death of his father, he ranked above all barons excepting Henry of Lancaster, who being of the blood royal, is uniformly mentioned next to Earls; hence it appears, that notwithstanding his claim was not positively acknowledged, he was considered to be entitled to a higher degree of precedence than belonged to the baronial dignity. In the 25th Edward I., he was in the expedition into Flanders, and, in the same year, was appointed a commissioner to ratify an agreement between the King and Florence, Count of Holland, relative to some auxiliaries from the Count in that war; and was likewise one of the ambassadors sent by Edward to treat for a truce between England and France. In the 26th and 27th Edward I., he was in the Scottish wars, and in June 1300, in the 28th Edward I., was present at the siege of Carlaverock, when he must have been about twenty-

one years of age; but the poet pays him no other compliment than what a pun upon his name suggested.

“Le Valence Aymars li Vaillans.”

“In the following year, he was a party to the Barons’ letter to the Pope, in which, though his name occurs immediately after that of the Earl of Arundel, and before Henry de Lancaster’s, he is only styled ‘Lord of Montiniac.’ Shortly afterwards, he was appointed to treat with the ambassadors of the King of France on the subject of peace. In the 31st Edward I., he was again in the wars of Scotland; and, in the same year, received permission to leave the realm upon his own affairs. He obtained a grant, in 1305, of the Castles of Selkirk and Traquair, and of the borough of Peebles in Scotland, to hold by the service of one knight’s fee, together with other possessions in that kingdom; and, in the 34th Edward I., was constituted Guardian of the Marches of Scotland towards Berwick, when he was intrusted with the sole command of the English forces which had been levied against Robert Bruce. In the instrument by which he was appointed to that important duty, as well as in most others, he is styled “Dilectum consanguineum et fidelum nostrum.” The appellation of “Cousin” was not then a mere title of honour, when addressed to a peer, but was used in its most literal sense; and Aymer de Valence’s claim to it is shown by the following slight pedigree.

Hugh le Brun, == Isabel, daughter, and heiress == King	
John,	
Count of the	of Aymer, Count of
1216,	ob.
Marches of the	Angouleme.
husband.	1st
Aquitaine, 2d	
husband.	
+-----+	+-----+
William de Valence, created == K. Henry III. ob. 1272.	
==	
Earl of Pembroke, ob. 1296.	
+-----+	+-----

+
 |
 AYMER DE VALENCE, Earl == KING EDWARD I. ob. 1307 ==
 of Pembroke, ob. 1323. |
 +-----+
 |
 KING EDWARD II.

“The successes which attended this nobleman against Robert Bruce, are described by a contemporary chronicler; and it is said that Valence, after a severe contest, pursued Bruce, and presuming that he would take refuge in Kildrummie castle, he gained possession of that place, but finding only Nigel de Bruce, brother of Robert, there, he caused him and all who were with him, to be immediately hung. This action has given rise to some pertinent remarks by the able biographer of the Earl in the beautiful work before noticed,⁹⁶ who has satisfactorily shown that Nigel was not put to death by him, but that at least the forms of law were practised on the occasion. On the deathbed of Edward I., Pembroke, with some other personages, received the King’s dying injunctions to afford his son their counsel and support, and not to permit Piers de Gaveston to return into England. His strict adherence to this command, naturally excited the favourite’s displeasure; and he is said, in derision of his tall stature and pallid complexion, to have termed him “Joseph the Jew.” In the first year of the young monarch’s reign, Valence was, as has been before observed, allowed and summoned to Parliament by his proper title of Earl of Pembroke; and at the coronation of that monarch, he carried the King’s left boot, but the spur belonging to it was borne by the Earl of Cornwall. In the same year, after performing homage upon the death of his mother for her lands, he was joined with Otho de Grandison in an embassy to the Pope; and in the 3d Edward II., was found heir to his sister Agnes, or more probably Anne. It has been considered, from the circumstance of the Earl being a witness to the instrument by which the King recalled Gaveston, and bestowed the possessions of the Earl of Cornwall upon him, that he approved of, or at least consented to, those acts; but this idea rests upon far too uncertain evidence to be relied upon; and if he ever changed his opinion it was of short duration, for in the 3d Edward II., he joined the Earl of Lancaster against Gaveston, and when he was banished the realm in 1311,

the Earl of Pembroke was one of the persons deputed to petition the King that he should be rendered incapable of ever holding any office.

“In the 6th Edward II., he was again sent on a mission to Rome, and in the same year obtained a grant of lands in London, in which was included the New Temple. In the 7th Edward II. he was appointed Custos and Lieutenant of Scotland, untill the arrival of the King, and was present at the fatal battle of Bannockburn. Two inedited MSS. cited in the “Monumental Remains,” allude to the Earl’s conduct on that occasion, in words fatal either to his loyalty or his courage: the one stating that “*Insuper Comes de Pembrok, Henricus de Bellomonte, et multi magnates, cordetenus Pharisei, a certamine recesserunt;*” and the other, that “*in pedibus suis evasit ex acie et cum Valensibus fugientibus se salvavit.*” In all probability, however, the language was in both instances that of an enemy, and deserves but little credit; though, even if it were true, “there is no great disgrace,” as the learned biographer, from whose memoir these extracts are taken, has truly remarked, “in seeking safety by flight when defeat was inevitable, and the whole army pursued a similar course.”

“In the 9th Edward II., the Earl was a commissioner for holding a Parliament in the King’s absence, and he took an active part in the proceedings therein. Being sent to Rome on a mission to the Pontiff, a singular misfortune befel him, as he was taken prisoner on his return by a Burgundian called John de Moiller with his accomplices, and sent to the Emperor, who obliged him to pay a ransom of 20,000 pounds of silver, upon the absurd pretence that Moiller had served the King of England without being paid his wages. Edward used every exertion to procure the Earl’s liberty, and wrote to several sovereign princes, soliciting them to interfere on the subject; but he did not immediately succeed. In the 11th Edward II., Pembroke was once more in the Scottish wars, and was appointed governor of Rockingham castle; and upon the King’s purposed voyage in the 13th Edward II., to do homage to the King of France for the Duchy of Aquitaine, he was constituted Guardian of the realm during his absence, being then also Custos of Scotland. In the 15th Edward II., he sat in judgment on the Earl of Lancaster at Pontefract; and for his conduct on the occasion, was rewarded with the grant of several manors.

“In March 1309, the Earl of Pembroke was one of the peers appointed to regulate the royal household; in the 5th Edward II., he was commanded

not to approach the place where the Parliament was held with an armed retinue, or in any other manner than was observed in the time of the late King; in the 8th Edward II., he was a commissioner to open and continue a parliament at York; in the 12th Edward II., he was sent to Northampton with others to treat with the Earl of Lancaster, for the better government of the realm, and was one of the peers then appointed to be about the King's person, at which time he signed the agreement between the King and that Earl; he advised the reversal of the judgment against Hugh le Despencer the younger; by writ tested on the 19th January, 14 Edward II. 1321, he was appointed a commissioner to treat for peace with Robert de Brus; and in the 18th Edward II., the Earl, as Justice in Eyre of the Forest of Essex, claimed the appointment of Marshal thereof.

“The Earl of Pembroke accompanied Isabel, Queen of England to France in 1323; and is said to have lost his life in that year, at a tournament given by him, to celebrate his nuptials with his third wife, Mary, daughter of Guy de Chastillon, Count of St Paul's; though, from the obscure manner in which his death is mentioned by some chroniclers, and the attempt which they have made to consider it as a mark of the vengeance of Heaven for his conduct relative to the Earl of Lancaster, Dugdale asserts that he was murdered on the 23d June 1324, “by reason he had a hand” in that affair. But the former statement his recent biographer considers to be corroborated by the following lines in a long MS. poem, containing a life of the Earl, in the Cottonian collection, written by Jacobus Nicholaus de Dacia, who calls himself a scholar of Mary de St Paul, Countess of Pembroke; by which he probably meant that he belonged to Pembroke Hall, which she had founded.

*Mors Comitem Comitum necuit, mors ipsa cruenta
Ipsa cruore rubrum campum facit et rubicundum.*

“From the annexed account of the Earl's death, however, by another contemporary writer, it would appear that he died of apoplexy:

“Ea vero tempestate primorum consultu direxit ad partes transmarinas Rex Almaricum de Valencia Comitem de Penbrokia, virum siquidem ad queque nepharia peragenda iuxta sue propinquitatis nequiciam continue paratum, regis Francorum presencie nuncium super dictis negociis assistendum vt eiusdem regis Francorum animum ab inceptis, revocaret, ut ipsius benevolenciam affectum regis Anglorum varijs blandiciis inclinaret.

Quo perveniente, ac iuxta proposita suorum verborum responsis acceptis, per Pykardiam rediens, ad quoddam municipium mi. villa, id est, *dimidia villa*, nuncupatum, tribus leucis a Compyne distans, in vigilia Sancti Johannis, declinavit pransurus, ubi Christus voluit virum sanguineum et dolosum non dimidiare dies suos. Sed finita refectionis hora thalamum ingreditur, deambulando statim in atrio corruit, ac sine confessione et viatico salutari infelicem animam subito in solo sufflavit.”⁹⁷

The following account of the Earl of Pembroke is from the pen of Hutchinson. “This Earl” (Adomer de Valence) “seemed to have a divine interdict depending over him, and the immediate vindictive hand of Providence to be upon him and his posterity for his atrocious deeds. He was a tool to his prince, and servilely submitted to the mandate of the crown, contrary to the dictates of humanity, honour, and justice. He sat in judgment on Thomas Earl of Lancaster, and impiously acquiesced in his sentence. He was a chief instrument in apprehending the famous Scottish patriot Wallace in 1305; accomplishing his capture by the treachery of his most intimate associates, and those in whom he placed his utmost confidence, Sir John Menteith and others of infamous memory. *Adomer*, on his bridal day, was slain in a tournament, held in honour of his nuptials; and left a wife at once a *maiden*, *bride* and *widow*. It is said that, for several generations of this family, *a father was never happy enough to see his son*, the proscribed parent being snatched off by the hand of death before the birth of his issue.” (*Hutchinson’s History of Northumberland.*)

It may be also remarked as a singular coincidence, the fatality which attended the Stuarts after they came to the throne, not one of whom, for many generations, died a natural death. John Menteith was the son of Walter Stuart, Earl of Menteith, and of the same family which afterwards swayed the Scottish sceptre.

Aymer, or Adomer de Valence, is likewise charged by the Minstrel, as being the instrument made use of for corrupting the fidelity of Menteith; and he mentions, that the infamous bargain was finally concluded in “*Ruglyne Kirk*,” where the two met by appointment, and that Menteith received from Valence three thousand crowns of gold as the price of his friend. “*Ruglyne*” is situated nearly mid-way between Bothwell and Dumbarton castles; the former being the place where the Earl of Pembroke

usually resided when in Scotland, and was quite convenient for his keeping an appointment at "*Ruglyne*" with the governor of Dumbarton Castle. When it is recollected, that John Comyn, who, according to "*Douglas's peerage*," married a sister of Valence, was hatching the treason which he afterwards put in practice against Bruce, at the time when his brother-in-law was tampering with the friend of Wallace, it will not be doing him great injustice, if we suppose him *at least* in the secret of the infamous transaction with Menteith. In fact, both of these deeds of darkness appear to have been part of the same plan for placing Comyn, and consequently the sister of the Earl of Pembroke, on the Scottish throne.

The Earl was thrice married; first, to Beatrix, daughter of Ralph de Noel, Constable of France; secondly, to a daughter of the Earl of Barre; and thirdly, to Mary, daughter of Guy de Chastillon, Count of St Paul; but he had no issue; and the descendants of his sisters, Isabel, the wife of John Baron Hastings, and Joan, who married John Comyn of Badenoch, are consequently his representatives. His eldest sister, Anne, married, first, Maurice Fitz-Gerald; secondly, Hugh de Balliol; and, lastly, John de Avennes; and probably died, S. P. in the 3d Edward II.

Mary, Countess of Pembroke, is chiefly known to the present age by an action, which seldom fails to ensure immortality. She was the foundress of a College for the purposes of learning and religion, which still bears the name of Pembroke Hall; and was likewise a benefactress to several religious houses. She died about 1376; and on the 13th March in that year made her will at Braxted, in Essex, by which she ordered her body to be buried in the church of the sisters of Denny, where she had caused her tomb to be made; and bequeathed to the church of the Abbey of Westminster, where her husband was interred, a cross, with a foot of gold and emeralds, which Sir William de Valence, Knight, brought from the Holy Land.

The body of the Earl of Pembroke was conveyed to England, and buried in Westminster Abbey; but upon the beautiful tomb erected to his memory, it is unnecessary to say a single word, ample justice having been done to it by the artist and the author of a biographical notice, which accompanies a recent engraving of his tomb.

Siege of Carlaverock.

I.

MEMOIR OF HENRY DE LACY, EARL OF LINCOLN.

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“HENRY DE LACY was the eldest son of Edmund de Lacy, Earl of Lincoln, by Alice, the daughter of the Marquess of Saluces in Italy. He succeeded his father in the earldom in 1257, at which time he was probably about nine years of age, his parents having been married in May 1247. The first circumstance relating to the Earl after his birth, of which we have any notice, was his marriage, in 1256, to Margaret, the eldest daughter and co-heiress of William de Longespee, the covenants of which are given by Dugdale. In 1269, the Earl became involved in a dispute about some lands with John Earl Warren, and each party prepared to establish his claim by force of arms; but their intention becoming known to the King, he commanded his Justices to hear and determine the cause, who decided it in favour of the Earl of Lincoln. William de Longespee, his wife’s father, died in the 52d Henry III.; and soon afterwards the Countess and her husband performed homage for, and obtained livery of, all the lands which had in consequence devolved upon her. In her right he is considered to have become Earl of Salisbury, the said William de Longespee having been entitled to that dignity, though he was never allowed it, as son and heir of William de Longespee, the natural son of King Henry II., by the well-known Rosamond Clifford, who obtained the Earldom of Salisbury by his marriage with Elizabeth, the daughter and heiress of William d’Evereux. On the feast of St Edward, 18th March 1272, the Earl of Lincoln received the honour of knighthood, and in the same year was appointed Governor of Knaresborough Castle. In 5th Edward I. he had livery of the fee which his ancestors had usually received ‘*nomine comitatûs Lincoln*’ with all the arrears from the time he was invested by King Henry III. with the sword of that earldom. Upon several occasions, between the 6th and 10th Edward I., he obtained grants of fairs, markets, and free-warrens in different parts of

his domains; and in the year last mentioned, he accompanied the expedition then sent into Wales. Leland asserts that the Earl built the town of Denbigh, the land of which had been granted to him “from his having married into the blood of those princes, and that he walled it, and erected a castle, on the front of which was a statue of him in long robes; and that anciently prayers were offered in Saint Hillary’s chapel in that place, for Lacy and Percy.”

“Dugdale considers, that his surrender of the castle and barony of Pontefract to the King, with all the honours thereto belonging, in the 20th Edward I., arose from his “having been long married, and doubting whether he should ever have issue, but upon condition, as it seems,” for the king, by his charter, dated at Newcastle-on-Tyne, 28th December, 21. Edward I., re-granted the same to him and to the heirs of his body, with remainder to Edmund Earl of Lancaster, the King’s brother, and to the heirs of his body, failing which, to the king and his heirs. In almost the next paragraph, however, that eminent writer says, “that in the 22d Edward I., the Earl received a grant of several manors from the King, with remainder to Thomas, the son of Edmund Earl of Lancaster, and Alice his wife, sole daughter of the Earl, and to the heirs of their two bodies lawfully begotten, and failing such issue, to the right heirs of the said Thomas” from which it would appear, that, at the time of the surrender by the Earl of Lincoln to the King, the said Alice was living; and which is further confirmed by his saying, in a subsequent page, that she was 28 years of age at the death of her father in 1312, in which case she must have been above seven at the time in question. In the 20. Edward I., the Earl was sent as ambassador to the King of France, to treat on the subject of the restraint of those pirates who robbed some French merchants; and in the 22d year of that monarch he again attended him into Wales, and was likewise in the expedition sent into Gascony. He accompanied the Earl of Lancaster, in the 24. Edward I., into Brittany, and was present at various successes of the English forces. On the death of that nobleman, he succeeded him in his command, and besieged the town of Aux with great vigour, though without success, and was forced to retreat to Bayonne; from which place he marched, with John de St John, towards Bellegard, which was then besieged by the Count d’Artois. The engagement which took place in the vicinity of that town, does not, from Dugdale’s relation of it, appear to have added to the reputation of the Earl, as he informs us, upon the authority of Walsingham, that “approaching a wood about three miles from Bellegard, he divided his army into two parts,

whereof the van was led by John de St John, and the rear by himself; but having past the wood where St John, meeting the enemy, began the fight, discerning their strength, he retreated to Bayonne, leaving the rest to shift for themselves, so that St John and many others were by reason thereof taken prisoners.” Whatever stain this circumstance might have cast upon his military character, seems to have been partially removed towards the end of that year, by his having obliged the enemy to raise the siege which they had laid to St Katherine’s, in Gascony; soon after which he proceeded into Flanders, and thence returned to England. In the ensuing year, 27. Edward I., he was summoned by writ, tested 17th September, 27. Edward I., 1299, to be at York, with horse and arms, on the morrow of the Feast of St Martin, to serve against the Scots; and, in the next year, he is stated to have been sent to the Pope, with Sir Hugh Spencer, to complain of injuries received from the Scots; and about the same time he was appointed Lieutenant of Gascony. In the 29. Edward I., he was made Governor of Corfe Castle, from which year until the 31. Edward I., when he was joined in commission with the Bishop of Winchester to treat of peace between England and France, Dugdale gives no account of him.

“It was, however, on the 24th June, in the 29. Edward I., anno 1300, when the Earl must have been above 50 years of age, that he commanded the first division of the army which besieged Carlaverock Castle. The only characteristic trait recorded of him by the poet, is that of valour, which, we are told, was the principal feeling that animated his heart, and in so rude an age, this attribute was perhaps the highest and most gratifying praise that could be imagined. His name does not afterwards occur in that production, from which we may conclude, that his services at the siege and assault were not very conspicuous. In 1305, the Earl was again employed on a mission to the Pope, being deputed with the Bishops of Lichfield and Worcester to attend the inauguration of the Pontiff at Lyons, and to present him, in the name of the King, with several vessels of pure gold. After having executed this command, it appears that he was once more in the wars in Gascony, and in the ensuing year was similarly employed in Scotland. Upon the death of the King, at Burgh in Cumberland, the Earl was one of the Peers who attended him in his last moments, and received his solemn request to be faithful to his son, and not to allow Piers de Gaveston to return into England. Immediately after Edward’s demise, he joined some Earls and Barons in a solemn engagement to defend the young King, his honour and

authority; and at his coronation he is recorded to have carried one of the swords borne at that ceremony; shortly after which he was appointed Governor of Skipton Castle. His conduct seems to have secured the confidence of the new monarch, for, upon his expedition towards Scotland in the 3d and 4th years of his reign, the Earl of Lincoln was constituted Governor of the realm during his absence.

“The preceding account of this personage has been almost entirely taken from Sir William Dugdale’s *Baronage*. The only facts which have been ascertained relating to him, not stated in that work, are, that he was one of the Mainpernors for the Earl of Gloucester in 1292; that he was a Receiver and Trier of Petitions in 1304; that he was present in the parliament held at Carlisle in February, 35th Edward I., 1307; and that he was one of the Peers appointed to regulate the King’s household in May, 3d Edward II., 1309.

“His works of piety were proportionate to his extensive possessions, and, adopting this criterion of his religious sentiments, we may conclude that he was not behind his contemporaries in superstition or devotion. Amongst his more substantial gifts to the church, was his large contribution to the “new work” at St Paul’s Cathedral in London; and three gilt crosses and a carbuncle, and a cup of silver gilt, which was said to have belonged to the shrine of St Edmund, in the abbey of Salley.

“The Earl of Lincoln closed a long and active career in 1312, at Lincoln’s Inn, ⁹⁸ in the suburbs of London, being then about sixty-three or sixty-four years of age, and he is reported to have called his son-in-law, the Earl of Lancaster, to him, upon his death-bed, and, after representing how highly “it had pleased God to honor and enrich him above others,” he told him that “he was obliged to love and honor God above all things;” and then added, “See’st thou the Church of England, heretofore honourable and free, enslaved by Romish oppressions, and the King’s wicked exactions? See’st thou the common people, impoverished by tributes and taxes, and, from the condition of freemen, reduced to servitude? See’st thou the nobility, formerly venerable throughout Christendom, vilified by aliens, in their own native country? I therefore charge thee, by the name of Christ to stand up like a man for the honor of God and his church, and the redemption of thy country, associating thyself to that valiant, noble, and prudent person, Guy,

Earl of Warwick, when it shall be most proper to discourse of the public affairs of the kingdom, who is so judicious in counsel, and mature in judgment. Fear not thy opposers who shall contest against thee in the truth, and if thou pursuest this my advice, thou shalt gain eternal honour!" This patriotic speech, which is attributed to him by Walsingham, who wrote in the fifteenth century, is worthy of attention, as conveying the view taken of the affairs of the period by a monk about one hundred years afterwards; for it would require extraordinary credulity to consider that it was really uttered by the dying Earl, whose whole life does not appear to present a single action indicative of the sentiments there attributed to him. His body was buried in the eastern part of St Paul's Cathedral in London, between the chapel of our Lady and that of St Dunstan.

"The Earl of Lincoln was twice married, first to Margaret de Longespee before-mentioned, by whom he had a son, Edmond de Lacy, who was drowned in a well in a high tower, called the Red Tower, in Denbigh Castle, in his father's lifetime; and a daughter, Alice, the wife of Thomas Earl of Lancaster, who was his sole heiress, and, at the Earl's death, was twenty-eight years of age. His second wife was Joan, sister and heiress of William Baron Martin, who survived him, and was remarried to Nicholas Baron Audley.

"Alice, Countess of Lancaster, whose romantic life has been made the subject of a popular novel, styled herself, as sole inheritrix of the extensive possessions of her father and mother, Countess of Lincoln and Salisbury. She was thrice married; first to the Earl of Lancaster; secondly, to Eubolo le Strange; and, thirdly, to Hugh le Frenes; but died without issue on the Thursday next after the feast of St Michael, 22d Edward III., *i. e.* 2nd October 1348, when the representation of the powerful house of Lacy became vested in the descendants of Maud, the sister of Henry Earl of Lincoln, who married Richard de Clare, Earl of Gloucester."

Siege of Carlaverock.

K.

MEMOIRS OF RICHARD SIWARD, AND WALTER DE HUNTERCOMBE.

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We shall here insert some account of Richard Siward and Walter de Huntercombe, two characters who appeared on this occasion. The latter, besides being at the siege of Carlaverock, where he attracted the notice of the poet, who mentions him as the handsome Huntercombe, bearing “ermine with two red gemmells,” was also governor of Edinburgh castle, and engaged in almost every campaign which Edward made in Scotland. The following notice, therefore, abridged from Mr Nicolas, will be useful in supplying that information respecting him which it has been inconvenient to give in the course of the narrative. It is also the more necessary, from the circumstance of the writer being pledged, in the advertisement of the “Life of Wallace,” to furnish “biographical notices of contemporary English and Scottish warriors” who figured in the contest between the two countries.

RICHARD SIWARD.—“Though this individual is frequently spoken of in the records of his day, yet very few particulars are known that can throw much light on his family pedigree. It has been conjectured, that he was descended from Syward, the great Saxon Earl of Northumberland; but of this, however, there is little certainty. His importance appears to have been considerable; for we find that, on 18th November 1292, he was appointed by Edward I. (in his character of Umpire on the question of the Succession) to act as Governor of the Castles of Dumfries, Wigton, and Kirkcudbright. On the 22d April, 1294, he obtained a grant of the marriage of the widow of Simon Fresel, or Frazer; and on the 15th October, in the same year, he was summoned to attend the English monarch, with all his retainers, in the expedition to Wales. Towards the end of 1295, he affected to unite with the Scottish Barons in their attempt to restore their King to the dignity of an independent sovereign, and, in consequence, had the defence of the Castle

of Dunbar assigned to him. How he conducted himself on that occasion, has already been noticed. His subsequent confinement in the Tower, has been adduced by some writers as a powerful argument against the charge of treason brought against him by his countrymen. We cannot, however, see it in that light. His treachery was of the most profligate description. By negotiating the surrender of a fortress, which, from its strength and importance, was reckoned in those days the key of the kingdom, and also using it, at the same time, as a trap to ensnare the greater part of the nobility, was conduct that required the exercise of some *ruse* in order to lessen the odium it was calculated to excite even in the estimation of the English nobility, who must otherwise have looked with disgust on a man who could have acted in so base a manner towards his own countrymen. By the following lines of Peter Langtoft, Siward appears to have had for some time a private understanding with the enemy:—

“A knyght was tham among, Sir Richard Seward,
Tille our faith was he long, & with kyng Edward.
Tille our men he com tite, & said, ‘the Scottis wilde
Thre dayes haf respite, & than the castelle zelde.
To the Baliol suld thei send, ther castelle to rescue,
Bi that bot he vs mend with for zow to remue
The castelle ze salle haue, without any delay.’”

Vol. ii. p. 274–5.

“For the performance of this agreement, hostages were given to the English, and a messenger despatched to acquaint Baliol that a truce had been obtained; which he was instructed to say, was effected entirely by the dexterity of Siward, and his personal influence with a number of the English nobles. Baliol was also advised to advance and attack the English army while “at meat,” and that, at the same time, Siward would make a sally to assist him in destroying the enemy—which the messenger spoke of as a matter of certainty, and moreover counselled Baliol to proceed immediately afterwards and plunder Northumberland.

“On the third day, Siward, from the battlements of Dunbar, discovered the Scottish army rapidly approaching towards him; he therefore hastily sought the English head-quarters, and proffered to go personally and retard the advance of the Scots till the expiry of the time stipulated for by the

agreement. The English, however, were not inclined to believe that he would carry his treason quite so far, and refused him permission to proceed to the Scottish lines.⁹⁹

“Siward, on being relieved from his confinement in the Tower, rose high in the confidence of Edward. On 26th September 1298, 7th May and 16th June 1299, he was summoned, by the title “Baron,” to serve in Scotland. His name appears on several occasions in the Wardrobe Account of 28th Edward I. In that year he received 41*l.* 5*s.* for the services of himself and his followers in the garrison of Lochmaben. Also an allowance of 2*l.* 13*s.* 4*d.* for the value of a horse killed at Kirkcudbright; eight merks for a winter dress (robe); and the like sum appears to have been paid to him for a summer dress. In the same year he was again summoned for the Scottish war, and also in 1301. He was made sheriff of Dumfries-shire in 1305, and was also aiding in the suppression of Robert Bruce in 1308; in which year he was appointed to the charge of a district in Galloway, under Edward II. In 1309 he was governor or constable of Dumfries, and is supposed to have died in 1310.

By his wife Mary he had two sons, Richard and John. They both attained the age of manhood; and John, in particular, appears to have followed the crooked anti-patriotic policy of his father. He accompanied the Earl of Pembroke in his invasion of Fife, as has been already mentioned, and was rewarded by Edward with an appointment as Governor of Perth. Little appears to have been known of Richard. He was married to Elizabeth — in 1296. The arms of Siward, as has been already noticed, were sable, a cross fleury, argent.

“WALTER DE HUNTERCOMBE succeeded his father in his lands in the 55. Henry III., at which time he was of full age; and shortly afterwards married Alice, third daughter and co-heiress of Hugh de Bolebec, and who, in the 2d Edward I., was found to be one of the co-heirs of Richard de Muntfichet, in right of her grandmother Margery, his sister. In the 5th Edward I. he paid 50*l.* for his relief of the barony of Muschamp; and on the 12th December in that year, was summoned to serve with horse and arms against the Welsh: he received similar writs tested 6th April and 24th May, 10th Edward I., and 14th June, 15th Edward I. He was one of the peers who were present in parliament in the 18th Edward I., when a grant was made to the King, for

the marriage of his eldest daughter, of the same aid as had been given to Henry III. for the marriage of his daughter the Queen of Scotland; and shortly afterwards the Isle of Man was intrusted to his charge, but which he only held three years, as, in obedience to the King's commands, he surrendered his trust to John de Baillol in the 21st Edward I. In the 19th Edward I., by writ tested the 16th April at Darlington, he was ordered to be at Norham, equipped for the field by the ensuing Easter; and obtained a charter of free-warren in all his demesne lands in the county of Northumberland before the end of that year. On the 26th June 1294, Huntercombe was ordered to join the expedition then made into Gascony. His military services, during the remainder of the reign of Edward I. were incessant, for he was in the Scottish wars in the 25th, 26th, 28th, 31st, and 34th years of that monarch; was Governor of Edinburgh Castle in the 26th; Lieutenant of Northumberland in the 27th Edward I.; and afterwards Warden of the Marches there. In the 28th Edward I. we find that he was at the siege of Carlaverock; and in the next year he was a party to the letter to Pope Boniface, in which he is called "Walter Lord of Huntercombe." It appears from the Wardrobe accounts of the 28th Edward I., that he was allowed 10*l.* as a compensation for a black nag which was killed by the Scots at Flete, on the 6th August 1299. But the nature and extent of Huntercombe's services are best shown by his own statement of them in his petition to the King in the 35th Edward I., praying a remission of his scutage for the expeditions in which he had been engaged, with which prayer the crown complied. He says, that he had been in all the wars of Scotland up to that time; namely, in the first war at Berwick with twenty horse; then at Stirling with thirty-two horse, in the retinue of the Earl of Warren; then at Le Vaire Chapelle with thirty horse in the retinue of the Bishop of Durham; afterwards at Gaway with sixteen horse; and that he sent eighteen horse to the last battle, though he was not present himself, being then Warden of the Marches of Scotland and Northumberland. From that year nothing more is known of this Baron, excepting that he was summoned to parliament from the 23d June, 23d Edward I., 1295, to the 16th June, 14th Edward II., 1311, and died in 1312; but after the 25th Edward I. he was probably prevented by age from taking an active part in public affairs, for even allowing him to have been but twenty-one in the 55th Henry III., he must have been above sixty in 1307; which calculation makes him to have been about fifty when he was at Carlaverock, and sixty-

four at his decease. Though he was twice married he died without issue. His first wife was Alice de Bolebec, before mentioned; but we only know that the Christian name of his second was Ellen, and that she survived him. Nicholas Newbaud, his nephew, son of his sister Gunnora, was found to be his heir.

“The arms of Huntercombe were ermine, two bars gemells, gules.”

L.

MEMOIR OF SIR SIMON FRASER.

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This warrior appears to have been most actively engaged in the battle of Roslin; and the renown which has in consequence attached itself to his name, will perhaps render the following notice of him acceptable.

* * * * *

Simon de Fraser was the eldest son of Simon de Frazer, the ancestor of the baronial houses of Saltoun and Lovat; and is supposed to have been a near connexion of William Frazer, Bishop of St Andrew's, whose politics he appears in his early years to have adopted; for, when he was taken prisoner on the surrender of the castle of Dunbar in 1296, he swore fealty to Edward, and remained faithful to the English interest till 1302. He was repeatedly summoned to fight against his countrymen, particularly on 26th September 1298, and 7th May 1299. He also figured at the siege of Carlaverock in 1300 as a Baron;—in the same year, he was appointed Warden of the Forest of Selkirk, and, by that designation, the truce between the two countries was announced to him on the 30th October. In the same year, the sum of 64*l.* 18*s.* is charged in the Wardrobe Account, as having been paid him as the wages of himself and a retinue of three knights and twelve esquires, from 13th July till 3d September, at which time his horses were valued, and hire for 59 days allowed him. There is also an allowance of 17*l.* 6*s.* 8*d.* for the maintenance of his wife Lady Mary, her daughters and family, living in the castle of Jedworth, by the grant of the King, from Christmas till St John Baptist's day, 26 weeks, at a merk per week, as per agreement with the Steward of Berwick-upon-Tweed.¹⁰⁰ On his withdrawing from Edward, he joined Comyn, and gained the battle of Roslin, as has already been observed. When the English afterwards succeeded in subduing Scotland, a

severe penalty was inflicted upon him; he was banished from all the territories belonging to, or under the influence of England, for three years, and his rents for that time forfeited. In 1306 he joined Bruce; but having unfortunately fallen into the hands of the enemy, he was conveyed to London and ordered by Edward for execution;—after being drawn and quartered, his head was fixed upon London Bridge. “But,” says Mr Nicholas, “a much more minute and curious account is given of the tragical termination of Frazer’s life in a fragment of an inedited chronicle in the British Museum of the 15th century,¹⁰¹ from which Mr Ritson printed the subjoined extract in illustration of a poem which will be more fully noticed.

“The fryday next before assumpcioun of oure lady, King Edeward mette Robert the Brus bisides seynt Johns toune in Scotland and with his companye, of whiche companye King Edewarde quelde sevene thowsand. When Robert the Brus saw this myschif, and gan to flee, and hovd hym that men mygte nought hym fynde, but Sr Simond Frisell pursuede hym socore, so that he turnede ayen and abode bataille, for he was a worthy knyght and a bolde of body, and the Englysshe men pursuede hym sore yn every syde, and quelde the stede that Sr Symond Frisell rood uppon, and ther toke hym and lad hym to the host. And Sr Symond began for to flater and speke faire, and saide, Lordys, I shall yeve you iiij thousand marke of sylver, and myne hors and harneys, and all my armure and vicome. Tho answerd Theobaude of Pevenes, that was the Kinge’s archer, Now God me so helpe hit is for nought that thou spexte, for alle the gold of Engelande I wold the noght lete gone withoute commaundement of King Edeward. And tho was he lad to the King. And the King wolde not see hym, but commaunded to lede hym away to his dome to London on our Ladyes even nativite, and he was honge and drawe, & his heede smyten of, and honged ayene with chynes of jren oppon the galwes, and his hede was sette oppon London brug on a sper. And ayens Cristesmasse the body was brent, for enchesoun that the men that kepte the body by nyghte sawe menye devellis rampande with jren crokes, rennyngge uppon the gallews, and horribliche tormented the body; and meny that ham sawe, anoon after thei deied for dred, or woxen mad, or sore sykenesse thei had.”

In one of the Harleian manuscripts,¹⁰² there is a ballad written on the subject, a few years after the circumstance took place, and which was

published by Ritson. ¹⁰³ The following stanzas are so extremely interesting, from the manner in which Frazer is alluded to, that, notwithstanding the length to which they extend, it is impossible to avoid inserting them. After noticing the capture and the fate of his unfortunate companions, the poet says:

“Thenne saide the iustice that gentil is ant fre,
Sire Simond Frysel, the Kynges traytour hast thou be,
In water ant in londe that monie myhten se,
What sayst thou thareto, how wolt thou quite the?

Do say.
Sa foul he him wiste,
Nede waron truste
Forto segge nay.

Ther he was ydemed, so hit wes londes lawe,
For that he wes lordswyk furst he wes to drawe,
Upon a retheres hude forth he wes ytuht,
Sum while in ys time he wes a modi knyght,
In huerte.
Wickednesse and sunne
Hit is lutel wunne,
That maketh the body smerte.

For al is grete poer yet he wes ylaht,
Falsnesse and swykedom al hit g’eth to nacht,
Tho he wes in Scotlond lutel wes ys thoht,
Of the harde iugement that him wes bysocht
In stounde.
He wes foursithe forswore
To the King ther bifore,
And that him brohte to grounde.

With feteres and with gyves ichot he wes to drowe,
From the tour of Londone, that monie myhte knowe,
In a curtel of burel aselkethe wyse,
Ant a gerland on ys heued of the newe gwyse,
Thurh Cheepe
Moni mon of Engelsonde,
For to se Symond,
Thideward con lepe.

Tho he come to galewes furst he wes an honge,
Al quick byheueded, thah him thohte longe,
Seth the he was yvened, is he woldes ybrend

Sein the he wes yopened, is boweles ybrend,
The heued to Londone brugge wes send,
To shonde:
So ich ever mote the
Sum while wende he
Thes lutel to stonde.

He rideth thourh the site as y telle may,
With gomen and wyth solas, that wes here play,
To Londone brugge hee nome the way,
Moni wes the wyves chil that ther on laketh a day,
Ant seide alas
That he was ibore,
And so villiche forlore,
So feir mon ase he was.

Now stont the heued above the tubrugge,
Faste bi Waleis, soth forte sugge,
After socour of Scotlond longe he mowe pryde,
Ant after help of Fraunce, met halt hit to lye,
Ich wene.
Betere him were in Scotlond,
With is ar in ys hond,
To pleyen othe grene.

Ant the body hongeth at the galewes faste
With yrnene claspes longe to laste,
Forte wyte wel the body, and Scottysh to garste,
Foure and twenti the beoth to sothe ate laste,
By nychte,
Yef eny were so hardi
The body to remny,
Also to dyhte.”

Fraser left two daughters, his co-heirs, one of whom married Sir Patrick Fleming, ancestor of the Earls of Wigton; and the other named Mary, was the wife of Sir Gilbert Hay, ancestor of the Marquess of Tweeddale. From Alexander Fraser his brother the Barons Saltoun and Lovat descended.

The arms of Simon Frazer were, sable, semée of roses argent; but the descendants of his brother bear, azure, three cinque foils argent.

After this notice of so distinguished a leader among the Scots, the reader may reasonably be supposed to feel some curiosity respecting the English general,

SIR JOHN SEGRAVE.

From the researches of Mr Nicolas, it appears that this eminent Baron was the eldest son of Nicholas Baron Segrave; and at his father's death, in

the 23d Edward I., was thirty-nine years of age. In the 54th Henry III., he married Christian, daughter of Hugh de Plesssets, knight, and at the same time, his sister Amabil became the wife of his brother-in-law, Sir John de Plesssets. Soon after the accession of Edward I., he was engaged in the wars of Scotland, and in the 13th Edward I. he attended the King in his expedition into Wales. In the 19th Edward I. he was with his father in the Scottish wars; and in the 24th Edward I. executed the office of Constable of the English army.

Dugdale asserts, that in the 25th Edward I., John de Segrave was, by indenture, retained to serve Roger le Bigot, Earl of Norfolk, the Earl Marshal, with six knights, including himself, as well in peace as war, for the term of his whole life, in England, Wales, and Scotland, with the following retinue:—In time of peace, with six horses, so long as the Earl should think fit, taking *bouche of court* for himself and six knights; and for his esquires hay and oats, together with livery for six more horses, and wages for six grooms and their horses. He was also to receive two robes for himself, as for a banneret, yearly, as well in peace as in war, with the same robes for each of his five knights, and two robes annually for his other bachelors. In war, he was bound to bring with him his five knights and twenty horses, in consideration of which, he was to receive for himself and his company, with all the said horses, xl s. per diem; but if he should bring no more than six horses, then xxij s. per diem. It was further agreed, that the horses should be valued, in order that proper allowance might be made, in case any of them should happen to be lost in the service; and, for the performance of this agreement, he had a grant from the Earl of the manor of Lodene in Norfolk.

The preceding document has been cited nearly in Dugdale's own words, because at the same time that it affords much information with respect to the retinue by which Segrave was attended to the field, it proves that he was intimately connected with the Earl Marshal, which tends to explain his having in the same year, namely, on the 12th August, 25th Edward I. 1297, been appointed by the Earl to appear in his name before the King, in obedience to a precept directed to him and the Constable, commanding them to attend him on the subject of a body of armed men which had assembled in London. The record states, that on the appointed day, the Earl of Hereford as Constable, and "Mons^r John de Segrave, qui excusa le Comte Mareschal par maladie," came accordingly.¹⁰⁴ In the 25th

Edward I., this baron was also summoned to accompany the King beyond the sea, and afterwards at Newcastle-upon-Tyne, with horse and arms; and, in the next year, was present when the English army gained the victory of Falkirk. In the 28th Edward I., he was again summoned to serve in the wars of Scotland, in which year, when he must have been about forty-five years old, he was at the siege of Carlaverock. The account given of him by the poet, that he performed the Earl Marshal's duties upon that occasion, because that nobleman was prevented from attending, is not only strongly corroborated by the preceding statement of his having acted as deputy of the Earl Marshal in the year 1297, but also by the following extract from Peter de Langtoft's chronicle (p. 309.), when speaking of the expedition into Scotland in 1300.

“After Midesomers tide thorgh comon ordinance,
No lenger suld thei bide, bot forth & stand to chance.
Norreis & Surreis, that seruice auht the kyng,
With hors & harneis at Carlele mad samnyng.
The erle Marschalle Rogere no hele that tyme mot haue,
He went with his banere Sir Jon the Segraue,
To do alle tho service that longed the office tille,
& mayntend alle the prise, ther he sauh lawe & skille.”

After Carlaverock castle surrendered, Segrave's banner, from his having acted as Marshal during the siege, was displayed on its battlements. In the 30th of Edward I., he was a party to the Letter from the Barons to the Pope, in which he is styled “John Lord of Segrave;” and about that time was appointed Governor of Berwick, and Warden of Scotland. In the same year, whilst riding out of Berwick with a small escort, he was surprised by an ambuscade of the Scots, wounded, and taken prisoner; which event is thus noticed by Langtoft (p. 319.)

“Our men in Scotland with sautes sodeynly,
The Segrave myght not stand, Sir Jon tok the gayn stie.
His sonne & his brother of bedde als thei woke,
& sextene knyghtes other, the Scottis alle them toke.”

His captivity was however, it appears, of short duration; for, on Edward's return to England, Segrave was left as his Lieutenant of Scotland.

At different periods during the reign of Edward I., he obtained grants of free warren and other privileges in several of his manors, and possessed that elevated place in his sovereign's confidence and esteem, which his long and zealous services so justly merited. Nor was he less distinguished by his successor, for soon after the accession of Edward II., he was constituted Governor of Nottingham castle, which had belonged to Piers de Gaveston, and was likewise appointed to his situation of Justice of the Forests beyond the Trent, and Keeper of all the Rolls thereto belonging; but he resigned these offices in the following year, when they were conferred upon Henry de Percy. In the 2d Edward II., he was again appointed Warden of Scotland; in the 6th Edward II. he was taken prisoner at the battle of Bannockburn, and about twelve months afterwards Thomas de Moram and several other Scots, then prisoners in the Tower of London, were delivered to Stephen de Segrave, son and heir of the Baron, to be exchanged for him. In the 8th Edward II., commissioners were appointed to hear and determine all disputes relative to the taking up of carriages by him or his agent, in consequence of his offices of Keeper of the Forests beyond the Trent, and of the castles of Nottingham and Derby. He was summoned upon several occasions to serve in the Scottish wars during the early part of the reign of Edward II., and to Parliament from the 26th August, 24th Edward I., 1296, to the 6th May, 18th Edward II., 1325. In the 10th Edward II., in recompence of his great services, and of his imprisonment in Scotland, he received a grant of L.1000; but what was then due to the crown for money received by him from the time of his appointment of Warden of the Forests beyond the Trent and Governor of Nottingham Castle, was to be deducted from that sum.

The tide of royal favour at last turned, and he accidentally fell a victim to the displeasure of his sovereign. Having, in 1325, excited Edward's anger by the escape of Roger Lord Mortimer from the Tower, he sent Segrave and the Earl of Kent into Gascony, under the pretence of defending that province, where he was attacked with a disease then prevalent there, of which he shortly afterwards died, aged about seventy years, leaving John de Segrave, his grandson, son of his eldest son Stephen, who died in his lifetime, his heir.

The preceding unadorned narrative of John de Segrave's services forms a splendid monument of his fame: for, whilst the impossibility of colouring

the biography of his contemporaries with meretricious ornaments of language, is strongly felt when their actions are few or obscure, the absence of such assistance tends to the advantage of those who need no other eulogy than the simple record of the occasions upon which they were present in the field, or were selected to execute high and important duties.

John de Segrave, the next Baron, added to the honours of his ancestors in an unprecedented manner, by marrying Margaret, the daughter and heiress of Thomas de Brotherton, Marshal of England, younger son of King Edward I. Through the marriage of Elizabeth, their daughter and heiress, with John Lord Mowbray, that family attained the Marshalship of England. The present representatives of John Baron Segrave, the subject of this article, are the Lords Stourton and Petre and the Earl of Berkley. The arms of John de Segrave were sable, a lion rampant, argent, crowned or.

M.

EXTRACTS FROM THE WARDROBE ACCOUNTS.

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This, of course, is mere conjecture on the part of the author; but that he has, at least, probability on his side, may be inferred from the extraordinary outlay attending the Scottish expeditions, as proved by the following extracts from the Wardrobe Accounts—exhibiting the Revenue and Expenditure of Edward for the year 1300, and including the disbursements occasioned by the invasion of Scotland during that year:—

Total amount of receipts, p. Exchequer, for this present 28. year of Edward I. —	L.49,048 19 10
Fines levied, and proceeds of stores, horses, &c. sold	9,106 16 2½
Per fo. 15.	<u>L.58,155 16 0½</u>

Charges on Scottish War.

For royal garrisons and castles in Scotland, fo. 154.	L.18,638 1 8
... replacing horses killed or destroyed in King's service, belonging to knights, and officers, and gratification to messengers, servants, &c. fo. 187.	4,386 4 5
... annual fees to knights of King's household, wages of bannerets and simple knights, &c. fo. 210.	3,077 19 0
... wages of engineers, archers, sergeants-at-arms of King's	1,038 10 7

household, esquires, &c. fo. ix. Observ. on W. A.	
... wages of foot-soldiers, crossbow- men, archers, artificers and workmen, fo. 270.	4,446 9 11½
... wages of seamen belonging to the fleet of the Cinque Ports and other towns, employed in the King's service, fo. 279.	1,233 9 8
Amount of charges for the year	L.32,820 15 3½
* * * *	*

Separate Disbursements.

Alms and charitable donations of the King and his family, fo. 47.	L.1,166 14 6
Necessaries for the King's household, travelling expenses, ambassadors, messengers to Court of Rome, wages of King's servants <i>not</i> on the Marshall's roll, &c. (Observ. on W. A. fo. viii.)	3,338 19 3
Expenses of messengers and others, despatched on King's business, fo. 303.	87 11 1
Falconers, huntsmen, &c. fo. 309	77 6 11½
Allowance to bannerets, knights, clerks, and other servants of the King's household for their winter and summer robes, fo. 331.	714 3 4
Expenses of sundry furnishings for the Royal household, including separate expenses of the Queen and her household, amounting to L.3668, 2s. 9d., and Chancellor's fee, amounting to L.581, 9s. 9d. fo. 360.	15,575 18 5½

“The account then states the payments contained in this book to amount to	L.53,178 15 0
“To which are added the expenses of the household contained in a separate account, amounting to	<u>L.10,969 16 0½</u>
And “the whole of the national expenditure, within this department, during one entire year,” is stated at	<u>L.64,105 0 5</u>
It is added, “The account is corrected and approved by the comptroller in every page; but the balance is not struck. If we take, however, the sum told of the money received, which amounted to	L.58,155 16 2
And deduct it from the money paid, we shall find a balance due to the accountant, amounting to	<u>5,949 4 3 ”</u>

On data furnished by the ascertained difference in the value of silver in 1300, which is stated to be “*thrice* as much” as it was in 1700, and the comparative value of certain provisions, estimated, as being in 1300, “*five* times as cheap” as in 1700. Bishop Fleetwood “makes the difference of the value of a shilling between the two periods to be fifteen;” and it is added, “supposing this calculation to be well-founded, computations might be made, so as to form a judgment of the difference between the latter of those periods and the present time.”—(*Vide* p. xii. Observations on Wardrobe Account, 1787.)

An estimate of the expense of the Scottish war, according to this mode of computation, would therefore present the following result, for (1700) the period alluded to by Bishop Fleetwood:—

Charges on Scottish war for 1300	L.32,820 15 3½
For difference in the weight of silver	<u>3</u>
	L.98,462 5 10½
For the variation in the value of money	<u>5</u>
	L.492,311 9 4½

being an increase of the sum of 32,820*l.* 15*s.* 3½*d.* of the year 1300, to 492,311*l.* 9*s.* 4½*d.*, or nearly *one-eighth* of 3,895,205*l.*, the revenue of the kingdom in the reign of William III., according to Sir John Sinclair:—while, from a statement by the same respectable authority, the whole revenue of the kingdom under Edward I. is estimated at 150,000*l.*; the disbursements for the Scottish war will therefore be found to exceed, within one department of the national expenditure, *one-fifth* of the national income.

N.

TRIAL OF WALLACE.

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“William Wallace, which had oft-times set Scotland in great trouble, was taken and brought to London, with great numbers of men and women wondering upon him. *He was lodged in the house of William Delect, a citizen of London, in Fenchurch Street.* On the morrow, being the eve of St Bartholomew, he was brought on horseback to Westminster-hall; John Segrave and Geoffrey, knights, the mayor, sheriffs, and aldermen of London, *many, both on horseback and on foot,* accompanying him; and in the great hall at Westminster, *he being placed on the south bench,* crowned with laurel, for that he had said in times past that he ought to wear a crown in that hall, as it was commonly reported; and being appeached as a traitor by Sir Peter Malorie, the King’s Justice, he answered *that he was no traitor to the King of England;* but for other things whereof he was accused, he confessed them, and was, after, headed and quartered.”—*Stow. Chron.* p. 209.

O.

ON THE MARTYRDOM OF WALLACE.

[Page 159.](#)

The following account is given by Langtoft of the capture, sentence, and execution of Wallace:

“A! Jhesu, when thou wille how rightwis is thi mede?
 That of the wrong has gilt, the endying may thei drede.
 William Waleis is nomen, that maister was of theues,
 Tething to the Kyng is comen, that robberie mischeues.
 Sir Jon of Menetest sewed William so nehi.
 He tok him whan he wend lest, on nyght his leman bi.
 That was thorght treson of Jak Schort his man,
 He was the encheson, that Sir Jon so him nam,
 Jak brother had he slayn, the Waleis that is said,
 The more Jak was fayn, to do William that braid.
 Selcouthly he endis the man that is fals,
 If he trest on his frendes, thei begile him als.
 Begiled is William, taken is & bondon,
 To Ingland with him thei cam, & led him vnto London,
 The first dome he fanged, for treson was he drawen.
 For robbrie was he hanged, & for he had men slawen,
 & for he had brent abbies, & men of religion,
 Eft fro the galweis quik thei lete him down,
 & boweld him alle hote, & brent tham in the fire.
 His hede than of smote, suilk was William hire;
 & for he had mayntend the werre at his myght,
 On lordschip lended thore he had no right,
 & stroied those he knewe, in fele stede sers
 His body thai hewe on foure quarters,
 To hang in foure tounes, to mene of his maners
 In stede of Gonfaynouns, & of his baners.
 At London is his heued, his quarters ere leued, in Scotland spred,
 To wirschip her iles, & lere of his wiles, how wele that he sped.
 It is not to drede, traytour salle spede, als he is worthi,
 His lif salle he tyne, & die thorgh pyne, withouten merci.
 Thus may men here, a ladde for to lere, to biggen in pays;
 It fallis in his iye, that hewes ouer hie, with the Walays.”

Vol. ii. p. 329. 330.

“The martyrdom of Wallace,” says the editor of Wyntoun’s Chronicle, “is thus described, in a ballad written about a year after, when the head of Sir Simon Frazer, one of the heroes of Roslin, was set up beside those of Wallace and Lewellyn, the last sovereign of Wales.

“To warny alle the gentilmen, that liueth in Scotlonde.
 The Waleis wes to drawe seththe he wes anhonge, } to abyde.
 Al quic biheuveded, ys boweles ybrend,
 The heued to Londone brugge wes send

* * * * *

Sire Edward oure Kyng, that ful ys of pietè,
 The Waleis quarters sende to is oune contre, }
 On four half to honge, huere myrour to be, Ant drede.”
 Ther-apon to thenche, that manie myhten se,

MS. Harl. No. 2253, f. 59, b. Trivet. p. 340

“Thus did Edward glut his vengeance on the dead body of this worthy man, whose living soul all his power never could subdue.

“Some of the English historians have stained their pages with low invectives against Wallace. Carte, in particular [Hist. v. ii. p. 290.], labours hard to prove him a traitor to King Edward, whose *mercy* he praises. That he was a traitor, he proves from his being a native of Galloway, *or* the Cambrian territories, which, *he says*, the kings of Scotland held in vassalage of the crown of England, and because the subvassals were, in cases of rebellion, subject by the feudal law to the same forfeitures and penalties as the immediate vassal.

“A man must feel himself very much pinched for arguments, when he has recourse to such as are confessedly not founded on reason, and to quibbles and perversion of facts. Clydesdale, the ancient kingdom of Strathcluyd, one of the first independent kingdoms established in Britain by the expulsion of the Romans, which for many centuries withstood the attacks of the Angles, Pichts, Scots, and Norwegians, and had the honour to produce STEWART, DOUGLAS, and WALAYS, was never pretended to be any part of the territories of which the kings of England claimed the superiority. So the pretence that Walays was a traitor, in consequence of the place of his birth, falls to the ground; and the pretence of rebellion is equally unfounded, unless the noble exertions of a free people against the unjustifiable attempts of a neighbouring prince to subject them to his dominion, are to be branded with the name of rebellion. Well may the spirit of the noble Walays forgive those writers for accusing him of inhumanity and rebellion, who have extolled the clemency of Edward I.”—*Notes to Wyntoun’s Chronicle*, vol. ii. p. 503.

The inclination to detract from the merits of Wallace, does not appear to have become entirely extinct among the historians of England. Dr Lingard thus expresses himself respecting our hero: "It may perhaps offend the national partiality of some among my readers, but I greatly suspect that Wallace owes his celebrity as much to his execution as to his exploits. Of all the Scottish chieftains who deserved and experienced the enmity of Edward, he alone perished on the gallows; and on this account his fate called forth and monopolized the sympathy of his countrymen."—Vol. iii. p. 227.

On this Mr Tytler remarks, "It is not true, that of all the Scottish chieftains who deserved Edward's enmity, Wallace was the only one who perished on the gallows. Sir Nigel Bruce, Sir Christopher Seton, John Seton, the Earl of Athol, Sir Simon Fraser, Sir Herbert de Morham, Thomas Boys, Sir David Inchmartin, Sir John de Somerville, Sir Thomas and Sir Alexander Bruce, both brothers of the king, and Sir Reginald Crawford, were all hanged by Edward's orders in the course of the year 1306, within a year of the execution of Wallace. So much for the accuracy of the ground on which Lingard has founded his conjecture, that Wallace owes his celebrity 'to his execution.'"

Respecting the inaccuracies of Dr Lingard on this subject, we shall give another extract from the same authority. "He," Dr Lingard "observes, that after the surprise of Ormesby the Justiciary, by Wallace and Douglas, other independent chieftains arose in different counties, who massacred the English, and compelled their own countrymen to fight under their standards. These other independent chieftains are brought in 'for the nonce' by Dr Lingard. They are utterly unknown to the contemporary historians, English and Scottish. But they do not appear upon the stage without a use. On the contrary, they first multiply like Falstaff's men in buckram, 'into numerous parties,' and then act a principal part in the next sentence; for the historian goes on to observe, 'that the origin and progress of *these numerous parties* had been viewed with secret satisfaction by the Steward of Scotland, and Wishart the Bishop of Glasgow, who determined to collect them into one body, and to give their efforts one common direction. Declaring themselves the assertors of Scottish independence, they invited the different leaders to rally around them; and the summons was obeyed by Wallace and Douglas, by Sir Alexander Lindsay, Sir Andrew Moray, and Sir Richard Lundy,' vol. iii. p. 305. This last sentence is one of pure and gratuitous invention, without a shadow of historical authority to support it. The numerous and independent

parties and chieftains who rose in different counties—the silent satisfaction with which they were contemplated by the Bishop of Glasgow and the High Steward—their determination to collect them into one body, and to give them one common direction—their declaring themselves the assertors of Scottish independence—their summons to the different leaders to rally round them, and the prompt obedience of this summons by Wallace, Douglas, and the rest—are facts created by the ingenuity of the historian. They seem to be introduced for the purpose of diminishing the reputation of Wallace; and the impression they leave on the mind of the reader, appears to me to be one totally different from the truth. The Steward and the Bishop of Glasgow are the patriot chiefs under whom Douglas and Wallace, and many other independent chieftains consent to act for the recovery of Scottish freedom; and Wallace sinks down into the humble partisan, whose talents are directed by their superior authority and wisdom. Now, the fact is exactly the reverse of this. The Steward and Wishart, encouraged by the successes of Wallace and Douglas, joined their party, and acted along with them in their attempt to free Scotland; but neither Fordun, nor Wynton, nor Bower gives us the slightest ground to think that they acted a principal part, or any thing like a principal part, in organizing the first rising against Edward. On the contrary, these historians, along with Trivet and Walsingham, Tyrrel and Carte, ascribe the rising to Wallace alone, whose early success first caused him to be joined by Douglas, and afterwards by the Bishop and the Steward, along with Lindsay, Moray, and Lundy. Indeed, instead of playing the part ascribed to him by Lingard, the patriotism of the Steward and the Bishop, was of that lukewarm and short-lived kind which little deserves the name. It did not outlive eight weeks; and they seized the first opportunity to desert Wallace and the cause of freedom. The attack upon Ormesby the Justiciary took place some time in May 1297; and on the 9th of July of the same year, did Bishop Wishart, this patriot assertor of Scottish independence, negotiate the treaty of Irvine, by which he and the other Scottish barons, with the single exception of Wallace and Sir Andrew Moray of Bothwell, submitted to Edward. Lingard's other hero, the High Steward, who is brought in to divide the glory with Wallace, was actually in the English service at the battle of Stirling; and although he secretly favoured the Scottish cause, he did not openly join his countrymen till he saw the entire destruction of Surrey's army. I may remark, in concluding this note, that the idea of an attack upon Wallace, and an eulogy on the clemency of Edward, has probably not even the merit of originality. It appears to be borrowed from Carte, vol. ii. p. 290; but it is only the idea

which is taken. The clumsy and absurd argument of Carte is discarded, and a far more ingenious hypothesis, with a new set of facts, is substituted in its place. On reading over Hemingford again, I find one expression which may perhaps have suggested this theory of Lingard. Hemingford says, speaking of Bruce, p. 120, that he joined the Bishop of Glasgow and the Steward, ‘qui tocius mali fabricatores exstiterant.’ Yet this is inconsistent with his own account in p. 118, and is not corroborated, so far as I know, by any other historian.”

Among other singular passages in the work of the learned Doctor, we cannot omit taking notice of the following: “The only great battles in which Wallace is known to have fought, are those of Stirling and Falkirk. In the first he was victorious; but he must share the glory of the action with Sir Andrew Murray, who was certainly his equal in command, perhaps his superior. In the second he was defeated, and the defeat was the most disastrous that Scotland ever experienced. In the history of the next five years, his name is scarcely ever mentioned.” Scottish historians never pretended that there was any battle of equal importance to those of Stirling and Falkirk, in which Wallace was engaged. But where Dr Lingard could get his information, that Sir Andrew Murray held a superior, or even an *equal command* with him, it is not easy to conjecture. In Scottish authors, evidences to the contrary are innumerable; and if Dr Lingard had not preferred substituting his own “perhaps,” in place of historical record, he might have proofs in direct opposition to the statement he has made, and that even from English authors, with whom he appears to be familiar.

At the treaty of Irvine, for the submission of the Scottish barons, when all deserted Wallace but Sir Andrew Murray, it is mentioned in the instrument as having been notified to Wallace “Escrit à Sire Willaume,” and the name of Sir Andrew is not even alluded to. This would certainly not have been the case, had he held even an equal command, much less a superior.—*Fædera*, T. ii. p. 774.

In the Chronicle of Langtoft, page 297, we have an account of the battle of Stirling, which is thus introduced:—

“The rascail of ther route bigan to werre alle newe,
Now Edward is oute, the barons be not treue.
The suffred, as it sais, the Scottis eft to rise,
& William the Walais *ther hed & ther justise*.
Thorgh fals concelement William did his wille,
Our castels has he brent, our men slayn fulle ille.”

The chronicler, after telling us that Wallace was the *head and justice of the Scots*—expressions which embrace a pretty extensive prerogative—proceeds to narrate the operations of the day, in which he speaks of Wallace as the only commander opposed to Warren: nor does he even hint of any individual who had a right to “divide the glory” of the victory with him: on the contrary he says,

“The Inglis were alle slayn, the Scottis bare them wele,
The Waleis had the wayn, als maistere of that eschele.”

Sir Andrew Murray is not even mentioned by Langtoft. That he fought bravely, and died nobly in defence of his country, is what no one will attempt to deny, and the same might be said of many more who were present on that occasion; but being the only man amongst a timid and backsliding aristocracy, who acted with patriotism and spirit in so trying a time, his name has been handed down to the grateful remembrance of posterity.

“In the next five years,” adds Dr Lingard, the “name” of Wallace “is scarcely ever mentioned.” When Scottish affairs are concerned, and more particularly when the character of her deliverer is the subject adverted to, a reference to authorities appears to be extremely irksome, or attended with too much trouble to our learned author. In the present instance, however, we shall not ask him to go farther than the pages of his own work, where he will find matter that might lead him to suspect the truth of the above assertion, as well as the correctness of the view he has taken of the grounds on which our patriot’s popularity is founded. We are informed (vol. iii. p. 227), “The only man whose enmity could give him” (Edward) a “moment’s uneasiness, was Wallace, and in few months he was brought captive to London.” And again, vol. iii. p. 329, “If the fate of Wallace was different from all others, it proves that there was something peculiar in his case which rendered him less deserving of mercy.” If we are to credit our author’s statements, Edward must have been a more nervous character than he has ever been supposed to be, if

he could feel “uneasiness” at “the enmity” of a man who had been thus buried in obscurity, and whose “name had scarcely been heard of for five years,”—one who, in the only great battle in which he was successful, held but a subordinate command, and acted during the insurrection in the humble character of a mere partisan, under the direction of others. Surely there was nothing peculiarly aggravating in the case of such a man, to have “rendered him less deserving of mercy” than his more guilty superiors, particularly from *one* whom our author informs us “was *not* a blood-thirsty tyrant.” It is strange that it did not appear to Dr Lingard, as a very high degree of praise, that after Wallace had been deprived, by the severe and sanguinary policy of Edward, of all resources save what arose from his own dauntless heart and irresistible arm, that he should still continue to be the only man *whose* “enmity” could give the oppressor of his country “a moment’s uneasiness.” From this circumstance, and from this alone, arose that “something peculiar” in his case which rendered him obnoxious to the tender mercies of Edward. In conclusion, we cannot help remarking, that the Doctor’s method of substituting, where his prejudices happen to be interested, his own theoretical conjectures, in opposition to the authentic records of the country, is rather an indirect way to the confidence of his reader.

P.

PERSONAL APPEARANCE OF WALLACE.

P. 162.

From the following passage in the Minstrel it would seem, that a portrait of Wallace had been taken during his short stay in France, and forwarded to his friends in Scotland. What afterwards became of this precious relic, cannot now be discovered. Though there are many likenesses of him to be met with in the country, yet the pretensions to originality of all those we have yet seen, are extremely questionable. It would be difficult for a blind man to give his ideas of a picture in more appropriate language than the following.

“The wyt off Frans thocht Wallace to commend;
In to Scotland, with this harrold, thai send
Part off his deid, and als the discriptioun
Off him tane thar, be men off discretioun,
Clerkis, knychtis, and harroldis, that him saw;
Bot I hereoff can nocht reherss thaim aw.”

The description of Wallace, in the following lines, places the genius of Henry in a very favourable light. It is evidently the effort of a master, and might be studied to advantage by the artist who intended to commit his ideas of the hero of Scotland to canvas:—

“Wallace statur, off gretness, and off hycht,
 Was jugyt thus, be discretioun off rycht,
 That saw him bath dissembill and in weid;
 Nyne quartaris large he was in lenth indeid;
 Thryd part lenth in schuldrys braid was he,
 Rycht sembly, strang, and lusty for to se;
 Hys lymmys gret, with stalwart paiss and sound,
 Hys browys hard, his armes gret and round;
 His handis maid rycht lik till a pawmer,
 Off manlik mak, with naless gret and cler;
 Proportionyt lang and fayr was his wesage;
 Rycht sad off spech, and abill in curage;
 Braid breyst and heych, with sturdy crag and gret,
 His lyppys round, his noyss was squar and tret;
 Bowand bron haryt, on browis and breis lycht,
 Cler aspre eyn, lik dyamondis brycht.
 Wndir the chyn, on the left syd, was seyn,
 Be hurt, a wain; his colour was sangweyn.
 Woundis he had in mony diuerss place,
 Bot fayr and weill kepyt was his face.
 Off ryches he kepyt no propyr thing;
 Gaiff as he wan, lik Alexander the King.
 In tym off pes, mek as a maid was he;
 Quhar wer approchynt the rycht Ector was he.
 To Scottis men a gret credens he gaiff;
 Bot knawin enemyss thai couth him nocht disayff.
 Thir properteys was knawin in to Frans,
 Off him to be in gud remembrans.”

Book ix. 1909–1942.

The subjoined extract, from Fordun, fully corroborates the statements from the Minstrel:—

“Erat staturâ procerus, corpore giganteus, facie serenus, vultu jocundus,
 humeris latus, ossibus grossus, ventre congruus, lateribus protelus, aspectu
 gratus, sed visu ferus; renibus amplus, brachiis et cruribus vigorosus; pugil
 acerrimus, et omnibus artubus fortissimus et compactus. Insuper sic eum
 Altissimus et ipsius vultum varium quâdam hilaritate favorabili

insigniverat, ita dicta et facta illius quodam cœlesti dono gratificaverat ut omnia fidorum corda Scotorum solo aspectu sibi conciliaret in gratiam et favorem. Et nec mirum: erat enim in donis liberalissimus, in judiciis æquissimus, in consolatione tristium compatientissimus, in consilio peritissimus, sufferentia patientissimus, in locutione luculentissimus,—super omnia falsitatem et mendacia prosequens, ac prodicionem detestans; propter quod fuit Dominus cum eo, per quem erat vir incunctis prosperé agens; ecclesiam venerans, ecclesiasticos reverens, pauperes et viduas sustentans, pupillos et orphanos refovens, oppressos relevans, furibus et raptoribus insidians, et sine pretio super eos, justitiam exercens et rigorem. Cujuscemodi justis operibus, quia quam maximé Deum gratificabót ipse propterea omnia ejus opera dirigebat.”—*Lib. x. cap. 28.*

Q.

REMINISCENCE OF WALLACE.

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Among the few speeches of Wallace which we have on record, the following is mentioned by English writers, as having been addressed by him to the Scottish schiltrons, on the eve of the battle of Falkirk:—"I haif brocht you to the ring, hap gif you cun." Respecting the meaning of these words, however, there is no agreement between Scottish or English writers. Walsingham has it, "I haif brocht you to the King, hop gif you cun;"—on which Lord Hailes very properly remarks:—

"This speech of Wallace has generally been related and explained in a sense very different. I must therefore give my reasons for having departed so widely from the common opinion. *Walsingham*, p. 75, says, 'Dicens eis patriâ linguâ,—*I haif brocht you to the King, hop gif you cun.*' This short speech has always appeared to me as utterly inconsistent with the character of Wallace. It is commonly understood to mean, 'I have brought you to the King, hope if you can hope.' To say nothing of the impropriety of the appellation of *King*, bestowed by Wallace on Edward, the sentiment, 'hope, if you can hope,' seems only fit for the mouth of a coward or a traitor. Abercrombie, perceiving this, has given a more plausible interpretation of the word *hop*. He renders the phrase thus, '*Fly if you can;*' as if Wallace had meant to say, '*Fight, for you cannot fly.*' There is nothing incongruous in this sentiment; but surely it did not merit to be recorded: Neither was it strictly true; for the Scottish army might have retired with unbroken forces into the forest which lay in the rear. The only satisfactory interpretation of Wallace's address to his troops, is to be found in *W. Westm.* p. 451, 'Ecce adduxi vos ad *annulum* charolate (chorolate) sive tripudiate vos, sicut melius scitis.' *King*, in *Walsingham*, ought to be *ring*. The words of Wallace were, 'I haif brocht you to the ring, hap gif you cun.' *The ring* means the

dance *à la ronde*. Douglas translates ‘Exercet Diana *choros*,’ *Æneid* ii., thus, ‘Ledand *ring-dances*,’ p. 28. l. 42. ‘Te lustrare *choros*,’ *Æneid* vii., thus: ‘To the scho led *ring-sangis* in karoling,’ p. 220, l. 31. Elsewhere, in his own person, he says, ‘Sum sang *ring-sangis*,’ Prologue, xii. B. p. 402, l. 33. That *hap* or *hop* is understood of dancing, is also plain from Douglas. He thus paraphrases ‘Hic exultantes Salios,’ *Æneid*, viii.

‘The dansand Preistis, clepit *Salii*,
Happand and singand.’ P. 267, l. 21.

“I need not prove, that ‘gif you cun’ implies ‘if you have skill,’ or, ‘according to your skill.’ The verb is obsolete; but the noun and the adjective are still remembered. ‘Let my right hand forget its *cunning*,’ ‘a *cunning* artificer,’ ‘a *cunning* man.’ *Langtoft*, vol. ii. p. 305, as translated by Brunne, reports the words thus: “To the renge ere ye brouht, hop now if ye wille.” But he does not seem to have understood the import of the words.”

The above is all learned enough; but his lordship has stopped short in his explanation, and left his readers as much in the dark, as any of his predecessors, respecting the meaning or propriety of such a phrase in the mouth of a general, on the commencement of a great battle. Some of our readers perhaps require to be told that *schiltron* means a body of men drawn up in a circle.¹⁰⁵ The war-dance of the Scots and other northern nations, as is well known, was performed round a large fire. Each warrior’s hand was firmly clasped in that of his neighbour. Their motion was at first slow, and gradually increased, till their rapidity almost rivalled the velocity of the whirlwind. When arrived at this state of fury, if any luckless wight slipped his hold, or otherwise became unsteady, the impetus which he and his fellows had acquired, pitched him headlong amid the flames, when his endeavours to extricate himself from the blaze, and regain his place, formed the chief sport of his companions. To render the *schiltron* the most formidable figure for defensive operations, steadiness was all that was requisite. When Wallace, therefore, on the rapid advance of the English, addressed his soldiers in the manner alluded to, he gave utterance to the happiest thought, in the fewest words, that perhaps ever presented itself to the mind of genius in a case of emergency. The striking similarity between their form of battle and their favourite dance, was apparent to all; and the impending conflict became instantly stript of its terrors, by a playful

allusion to an amusement with which they were familiar, while it flashed upon their minds with all the conviction of experience, that on the preservation of their ranks their safety depended. The behaviour of the schiltrons on that fatal day showed that they understood the address of their leader better than any of its subsequent commentators.

R.

WALLACE'S DESCENDANTS.

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Wallace appears to have left a daughter, whose legitimacy has been called in question, but on very slender grounds. In Chalmers's Caledonia, vol. i. p. 579, we find the following passage:—"It has been said that Wallace left no legitimate issue; but he had a natural daughter, who married Sir William Baillie of Hoprig, the progenitor of the Baillies of Lamington." It has never been disputed, that the lady by whom Wallace had this daughter was the heiress of Lamington, in right of her father, Sir Hew de Bradfute; it would therefore have been satisfactory, if the learned author above mentioned had explained how the Baillies of Hoprig came to the possession of Lamington. If the daughter of Wallace was legitimate their succession appears the natural consequence of the marriage of Sir William Baillie; if not, the manner in which they became possessed of that property requires elucidation. That Wallace and the heiress of Lamington were lawfully married, is asserted by Henry, who draws the following picture of their connubial happiness:—

“Quhat suld I say, Wallace was playnly set
 To luff hyr best in all this warld so wid;
 Thinkand he suld off his desyr to get;
 And so befell be concord in a tid,
 That sho [was] maid at his commaund to bid;
 And thus began the styntyn aff this stryff:
 Begynnyng band, with graith witnes besyd,
Myn auctor sais, sho was his rychtwyss wyff.
 Now leiff in pees, now leiff in gud concord!
 Now leyff in blyss, now leiff in haill plesance!
 For scho be choss has bath hyr luff and lord.
 He thinkis als, luft did him hye awance,
 So ewynly held be favour the ballance,
 Sen he at will may lap hyr in his armyss.
 Scho thankit God off hir fre happy chance,
 For in his tyme he was the flour off armys.
 Fortoune him schawit hyr fygowrt doubill face,
 Feyll syss or than he had beyne set abuff:
 In presoune now, delyuerit now throw grace,
 Now at vness, now in to rest and ruff;
 Now weyll at wyll, weyldand his plesand luff,
 As thocht him selff out off aduersité;
 Desyring ay his manheid for to pruff,
 In cairage set apon the stagis hye.
 The werray treuth I can nocht graithly tell,
 In to this lyff how lang at thai had beyne:
 Throuch natural course of generacioune befell,
 A child was chewyt thir twa luffaris betuene,
 Quhilk gudly was, a maydyn brycht and schene.”

Buke Sext, 41–69.

According to the above authority, the offspring of this marriage was first united in the bands of wedlock to an Esquire of the name of Shaw. Whether this was any connection of William de Shaw, mentioned at page 106, vol. i. of this work, as witnessing the charter of James, Lord High Steward of Scotland, along with some other friends of Wallace, we have no means of ascertaining. We are told, however, that

“Rycht gudly men come off this lady ying.”

Whether these were the issue of the marriage with Shaw, or of that afterwards contracted with Baillie of Hoprig, or of both, it is difficult to determine. It is probable, as Sir William Baillie is designated, of Hoprig, and his descendants as proprietors of Lamington, that they may have succeeded to the inheritance, after the offspring of the first marriage had become extinct. It has also been advanced, as an argument against the legitimacy of the daughter of Wallace, that she inherited none of the property of her father. Those, however, who started this objection, would have done well to have shown, that Wallace possessed property to which she could have succeeded. It does not appear that he was ever personally invested in any of the lands belonging to the family. And mention is made of his brother Malcolm having left a son of the name of John, in whom the succession was prolonged, till it merged in the family of Craigie. In Langtoft's Chronicle, vol. ii. p. 338, we have an account of the capture and execution of a Sir John de Wallace, who is there called a brother of Sir William. This is evidently a mistake, and might very easily arise from the closeness of the connection between the two parties. Another “John Walays of Elryslà” (Elderslie) is taken notice of as among the witnesses to the charter of Robert, Duke of Albany; and, from the family title being preserved, it is highly probable that the stock of Sir Malcolm Wallace had not then become extinct.

S.

ON THE TREACHERY OF MENTEITH.

[Page 169.](#)

In the account of the capture of Wallace, we have thought it advisable to follow, in a great measure, the statement given by the Minstrel. It is, we conceive, the only rational one we are possessed of; and as the authority of the author has been supported by the Tower records, and other incontrovertible muniments, in matters of comparatively trifling importance, it would be unfair to doubt his veracity on so important a part of the history of his hero, particularly when all the notices we have in other writers, tend more or less to confirm the truth of what he asserts. Lord Hailes, however, has attempted to remove the odium which has for these five hundred years been attached to the memory of Menteith; but his efforts to exculpate the Judas of Scotland, have been viewed by the generality of his countrymen in rather an unfavourable light. In the remarks his Lordship has made on the subject, we cannot discover that acuteness which frequently appears in his other writings. Dr Jamieson has thus replied to him:

“The account given of the treachery of Menteth, is one of those points on which Sir D. Dalrymple shows his historical scepticism. He introduces it in language calculated to inspire doubt into the mind of the reader; observing, that ‘the popular tradition is, that his *friend*, Sir John Menteth, betrayed him to the English.’—*Annals*, i. 281. It is rather strange that he should express himself in this manner, at the very moment that he quotes the Scotichronicon on the margin; as if this venerable record, when a modern should be disposed to adopt a theory irreconcilable with its testimony, were entitled to no higher regard than is due to ‘popular tradition.’

“He adds, ‘Sir John Menteth was of high birth, a son of Walter Stewart, Earl of Menteth.’ I can perceive no force in this remark, unless it be meant to imply that there never has been an instance of a man of noble blood acting the part of a traitor. On the same ground, we might quarrel with all the evidence given of the conspiracies formed against Robert Bruce; and even call in question the murder of that amiable and accomplished prince, James I.

“But ‘at this time,’ we are told, ‘the important fortress of Dumbarton was committed to his (Menteith’s) charge by Edward.’ Here, it would seem, the learned writer fights the poor Minstrel with his own weapons. For I find no evidence of this fact in the *Fœdera*, *Hemingford*, or the *Decem Scriptores*; and Lord Hailes has referred to no authority; so that there is reason to suspect, to use his own language, that he here ‘copies’ what ‘is said by *Blind Harry*, whom no historian but Sir Robert Sibbald will venture to *quote*.’ If Harry’s narrative be received as authority, it is but justice to receive his testimony as he gives it. Now, in the preceding part of his work, he represents Menteth as holding the castle of Dunbarton at least with the consent of Wallace, while acknowledged as governor of Scotland. It would appear, indeed, that the whole district of the Lennox had been intrusted to him.

“In the Leynhouss a quhill he maid repayr;
Schyr Jhon Menteth that tym was captane thar.”

B. viii. 1595.

“But even at this time there was something dubious in the conduct of Menteth. While he retained the castle, the English held the town under Edward.

“In peess thai duelt, in trubyll that had beyn,
And trewbut payit till Ingliss capdanis keyn.
Schyr Jhon Menteth the castell had in hand:
Bot sum men said, thar was a prewa band
Till Sotheroun maid, be menys off that knycht,
In thar supplé to be in all his mycht.”

B. ix. 1393.

“It is perfectly conceivable, that, although it was known to Wallace that Menteth had some secret understanding with the English, this artful man might persuade him that he only wished an opportunity of wreaking the national vengeance on them, or at least of more effectually serving the interest of Wallace when he saw the proper time. Although Wallace had been assured that Menteith had taken an oath of fealty to Edward, he would have had no more reason for distrusting him than for distrusting by far the greatest part of the nobility and landholders of Scotland, who, as they believed, from the necessity of despair had submitted to the usurper.

“John de Menteth is designated by Arnold Blair, *immanis proditor*; and the writer proceeds to curse him as if with bell, book, and candle.—*Relations*, p. 8.

“Sir David aims another blow at this account, in the following words; —‘That he had ever any intercourse of friendship or familiarity with Wallace, I have yet to learn.’ But the truth is, the worthy Judge does not seem disposed to *learn* this. It is difficult to say what evidence will satisfy him. The incidental hints, in the preceding part of the poem, in regard to Wallace’s connection with Menteth, all perfectly agree with the mournful termination. Such confidence had he in him, according to the Minstrel, that he not only resided in Dunbarton Castle for two months, while Menteth had the charge of it, but gave orders for building ‘a house of stone’ there, apparently that he might enjoy his society.

“Twa monethis still he duelt in Dumbertane;
A houss he foundyt apon the roch off stayne;
Men left he thar till bygg it to the hycht.”

B. viii. 1599.

“But, independently of the testimony of Blind Harry, Bower expressly asserts the co-operation of Menteith with Wallace, Graham, and Scrymgeour, in the suppression of the rebellious men of Galloway. ‘In hoc ipso anno (1298), viz. xxviii. die mensis Augusti, dominus Wallas Scotiæ custos, cum Johanne Grhame et *Johanne de Menteth*, militibus, necnon Alexandro Scrimzeour constabulario villæ de Dundee, et vexillario Scotiæ, cum quinquagentis militibus armatis, rebelles Gallovidienses punierunt, qui regis Angliæ et Cuminum partibus sine aliquo jure steterunt.’

“These words, which seem to be a quotation, in the *Relationes* of Blair, from the *Scotichronicon*, are not found in the MSS. from which Goodall gave his edition. They appear to have formed the commencement of the xxxii. chapter of the eleventh book, one of the two chapters here said to be wanting. Now this, whether it be the language of Bower, or of Blair, could not have been borrowed from the *Minstrel*, for the circumstance is overlooked by him. It seems to refer to that period of the history of Wallace, in which he is said to have made a circuit through Galloway and Carrick.

“Fra Gamlis peth the land obeyt him haill,
Till Ur wattir, baith strenth, forest, and daill.
Agaynis him in *Galloway* hous was nayne.”

B. vi. 793–5.

“It is to be observed, that John Major expressly affirms the treachery of Menteth, as acting in concert with Aymer de Valloins, Earl of Pembroke. He says, that Menteth was considered as his most intimate friend; ‘*ipsi Vallacco putatus amicissimus.*’ *Hist. Fol.* lxxiii. Now, although he rejects many of the transactions recited by Blind Harry ‘as false,’ so far is he from insinuating the slightest hesitation as to this business, that he formally starts an objection as to the imprudence of Wallace in not being more careful of his person, and answers it by remarking, that ‘no enemy is more dangerous than a domestic one.’ He differs from the *Minstrel* in saying that Wallace was ‘captured *in the city of Glasgow.*’

“It may be added, that Bower expressly asserts that Wallace, ‘suspecting no evil, was fraudulently and treacherously seized *at Glasgow* by Lord John de Menteth.’ *Scotichron.* xii. 8. Bower again refers to the treacherous conduct of Menteth towards Wallace when afterwards relating a similar plan which he had laid for taking King Robert Bruce prisoner, under pretence of delivering up to him the Castle of Dunbarton, on condition of his receiving a hereditary right to the lieutenancy of the Lennox; v. *Lib.* xii. c. 16, 17, Vol. ii. 243. These two chapters are not in all the MSS., but are found in those of Cupar, Perth, and Dunblane. Now, Bower was born anno 1385; *Ibid.* ii. 401. The date assigned to the *Scotichronicon*, as published with his Continuation, is 1447, and that to the *Minstrel’s Poem*, 1470; v. Pinkerton’s *Maitland Poems*, Intr. lxxxvi–lxxxix. It is therefore impossible that Bower could have borrowed the account given of Menteth from Blind

Harry. Bower was born, indeed, only eighty or eighty-one years after the fact referred to; and, considering the elevation of the character of Wallace, and the great attachment of his countrymen even to this day, as well as the multitude of his enemies, it is totally inconceivable that a whole nation, learned and unlearned, should concur in imputing this crime to one man, *without* the most valid reasons.

“Wyntown finished his ‘*Cronykil*,’ anno 1418. He, it is generally believed, was born little more than fifty years after the butchery of our magnanimous patriot. Sir David Dalrymple could not, one would suppose, reasonably object to his testimony. Let us hear it.

A thousand thre hundyr and the fyft yhere
Eftyr the byrth of oure Lord dere,
Schyre John of Menteth in tha days
Tuk in Glasgw Willame Walays,
And send hym in-til Ingland swne.
Thare wes he quartaryd and wndwne
Be dyspyte and hat Inwy:
Thare he tholyd this Martyry.

Cron. viii. c. 20.

“I shall only add an important proof from the Lanercost MS., referred to in the *Preliminary Remarks*.¹⁰⁶ ‘*Captus fuit Willelmus Waleis per unum Scottum, scilicet per dominum Johannem de Mentiphe, et usque London ad Regem adductus, et adjudicatum fuit quod traheretur, et suspenderetur, et decollaretur, et membratim divideretur, et quod viscera ejus comburentur, quod factum est; et suspensum est caput ejus super pontem London, armus autem dexter super pontem Novi Castri super Tynam, et armus sinister apud Berwicum, pes autem dexter apud villam Sancti Johannis, et pes sinister apud Aberden.*’ Fol. 211. *Mentiphe* is obviously an *erratum* for *Menteith*.”

Mr Tytler, in the “Notes and Illustrations” to the first volume of his *History of Scotland*, has also handled this subject with considerable ability. We shall select the following, as affording additional arguments to those already advanced by Dr Jamieson. In alluding to the evidence afforded by the Lanercost MS., that intelligent writer observes, “We cannot be surprised that Lord Hailes should have been ignorant of this passage, as he tells us,

Annals, vol. ii. p. 316, he had not been able to discover where the MS. of Lanercost was preserved.

“The same excuse, however, will not avail him as to the next piece of evidence, of Menteth’s having seized Wallace. It is contained in Leland’s extract from an ancient MS. Chronicle, which Hailes has elsewhere quoted; I mean the Scala Chronicle, preserved in Corpus Christi Library, Cambridge. In Leland’s Collect., vol. i. p. 541, we have this passage from the Chronicle. ‘*Wylliam Waleys was taken of the Counte of Menteth about Glaskow, and sent to King Edward, and after was hangid, drawn, and quarterid at London.*’ This is only Leland’s abridgment of the passage, which in all probability is much more full and satisfactory in the original. Yet it is quite satisfactory as to Menteth’s guilt.

“The next English authority is Langtoft’s Chronicle, which Hailes has himself quoted in his Notes and Corrections, vol. ii. p. 346. It is curious, and as to Menteith’s guilt perfectly conclusive.

‘Sir Jon of Menetest serwed William so nehi,
He tok him whan he wend lest, on nyght his leman bi.
That was thorght treson of Jak Schort his man,
He was the encheson, that Sir Jon so him nam.’ p. 329.

“We learn from this, that Sir John Menteth prevailed upon Wallace’s servant, Jack Short, to betray his master, and came under cover of night, and seized him in bed, ‘his leman bi,’ and when he had no suspicion of what was to happen. How Hailes, after quoting this passage, which was written more than two centuries before Blind Harry, should have represented this poor minstrel as the only original authority for the guilt of Menteth, is indeed difficult to determine.”

“Having given these authorities, all of them prior to Blind Harry, it is unnecessary to give the testimony of the more modern writers. The ancient writers prove incontestably, that Sir John de Menteth, a Scottish baron, who had served along with and under Wallace against the English, deserted his country, swore homage to Edward, and employed a servant of Wallace to betray his master into his hands; that he seized him in bed, and delivered him to Edward, by whom he was instantly tried, condemned, and hanged. It was natural that the voice of popular tradition should continue from century to century, to execrate the memory of such a man. Whether Menteth was the

intimate friend of Wallace, or what precise degree of familiarity existed between them, it is now not easy to determine, nor is it of any consequence as to his guilt. Indeed it is impossible to regard, without a smile the weak and inconclusive evidence, if it deserves so grave a name, on which Hailes has founded what he calls his Apology for Menteith, which, after all, seems to be borrowed from *Carte*, vol. ii. p. 289. Lord Hailes also remarks, "It is most improbable, that Wallace should have put himself in the power of a man whom he knew to be in an office of distinguished trust under Edward;" and almost in the same breath paraphrases the lines of Langtoft, in which it is stated that his capture was effected through the treason of Jack Short, whose brother Wallace is said to have slain. Surely the confidence was as imprudent in the one case as it would have been in the other. It may be observed, however, that if there had been a possibility of rescuing the name of Menteith from the execrations of his country, the task would not have remained for the learned annalist to perform. The great family interest which he possessed, was sufficient to protect him from punishment, not only for his treachery to Wallace, but also for his subsequent perfidy to Bruce. Yet though that interest was powerfully exerted to screen him from the consequences of his demerits, not a single effort was made to remove the dishonourable stain from his character.

The following transaction, which has already been alluded to, is quite consistent with the conduct ascribed to him by the Minstrel. It will also account for the impunity which attended his crimes.

"About this time, there happened a passage not unworthy to be related, in regard to the variety of providences, in a narrow compass of time. John Menteith, who betrayed his friend Wallace to the English, and was therefore deservedly hated by the Scots, received, amongst other rewards, the government of Dumbarton castle from the English. When other forts were recovered, that only, or but very few with it, held out for the English. And because it was naturally impregnable, the king dealt with the governor, by his friends and kindred, to surrender it. He demanded the county or earldom of Lennox, as the price of his treachery and surrender. Neither would he ever so much as hear of any other terms. In this case the King wavered and fluctuated in his mind what to do. On the one side, he earnestly desired to have the castle; yet, on the other, he did not so much prize it, as for its sake to disoblige the Earl of Lennox, who had been his fast and almost his only

friend in all his calamities. But the Earl of Lennox hearing of it, and coming in, soon decided the controversy, and persuaded the King, by all means to accept the condition. Accordingly the bargain was made as John Monteith would have it, and solemnly confirmed. But when the King was going to take possession of the castle, a carpenter, one Roland, met him in the wood of Colquhoun, about a mile from it; and having obtained liberty to speak with the King, concerning a matter of great importance, he told him what treachery the governor intended against him; nay, and had prepared to execute it. It was this:—In a wine-cellar concealed, and underground, a sufficient number of Englishmen were hid, who, when the rest of the castle should be given up, and the King secure, were to issue forth upon him as he was at dinner, and either to kill, or take him prisoner. This being thus related, the King, upon the surrender of the other parts of the castle by John, being kindly invited to a feast, refused to eat; till, as he had searched all other parts of the castle; so, he had viewed that wine-cellar also. The governor excused it, pretending that the smith, who had the key, was out of the way, but that he would come again anon. The King, not satisfied therewith, caused the door to be broke open, and so the plot was discovered. The Englishmen were brought forth in their armour, and being severally examined, confessed the whole matter; and they added also another discovery, viz. that a ship rode ready in the next bay to carry the King into England, The complices in this wretched design were put to death; but John was kept in prison, because the King was loth to offend his kindred, and especially his sons-in-law, in so dangerous a time: for he had many daughters, all of them very beautiful, and married to men rich enough, but factious. Therefore, in a time of such imminent danger, the battle drawing near wherein all was at stake, lest the mind of any powerful man might be rendered averse from him, and thereby inclined to practise against him, John was released out of prison, upon this condition, (for the performance whereof his sons-in-law undertook), that he should be placed in the front of the battle, and there, by his valour should wait the decision of Providence. And indeed the man, otherwise fraudulent, was in this faithful to the King; for he behaved himself so valiantly, that that day's work procured him not only pardon for what was past, but large rewards for the future.”—*Buchanan's Hist.* vol. i. p. 310.

It may here be mentioned, that, since the Note on page 152 was printed off, we have learned from one, whose researches, and connection with the

name, entitle him to express an opinion, that the M'Kerlies of Wigtonshire are descended from Kerlé, or Kerlie, who, with Sir William Wallace and Stephen of Ireland, carried by assault the Fort of the Black-Rock of Cree, or Cruggleton Castle, and who was the last friend that clung to the fortunes of his master. Although the records of the burgh of Witham furnish no information on the subject, being all of a date subsequent to the Reformation, it is still handed down by tradition, that the M'Kerlies were once proprietors of Cruggleton Castle.

T.

SINGULAR LEGEND.

[Page 169.](#)

This monkish legend Henry has carefully preserved; and as it affords a specimen of the superstition of the age, we shall give it a place for the gratification of the curious among our readers.

“Wyss clerkys yeit it kepis in remembrans,
How that a monk off Bery abbay than,
In to that tym a rycht religious man;
A yong monk als with him in ordour stud,
Quhilk knew his lyff was clene, perfyt, and gud.
This fadyr monk was wesyd with seknace,
Out off the warld as he suld pass on cace,
His brothyr saw the spret lykly to pass;
A band off him rycht ernystly he coud ass.
To cum agayn and schaw him off the meid,
At he suld haiff at God for his gud deid.
He grantyt him, at his prayer to preiff,
To cum agayn, gyff God wald geiff him leiff.
The spreyt, changyt out off this worldly payn,
In that sammyn hour cum to the monk agayn.
Sic thing has beyn, and is be woice and sycht.
Quhar he apperyt, thar schawyt sa mekill lycht,
Lyk till lawntryns it illumynyt so cler,
At worldly lycht thar to mycht be no peyr,
A woice said thus:—‘God has me grantyt grace
That I sall kep my promess in this place.’
The monk was blyth off this cler fygur fayr;
Bot a fyr brand in his forheid he bayr,
And than him thocht it myslikyt all the lawe.
‘Quhar art thou spreyt? Ansuer, sa God the sawe.’
‘In purgatory.’—‘How lang sall thow be thair?’
‘Bot halff ane hour to com, and litill mair.
Purgatory is, I do the weill to wit,
In ony place quhar God will it admyt.
Ane hour of space I was demed thar to be;
And that passis, supposs I spek with the.
Quhy has thow that, and all the layff so haill?’
‘For off science I thocht me maist awaill.
Quha prydys tharin, that laubour is in waist,
For science cummys bot off the haly Gaist.’
‘Eftir thi hour, quhar is thi passage ewyn?’
‘Quhen tym cummys,’ he said, ‘to lestand hewin.’

‘Quhat tym is that? I pray the now declar.’
 ‘Twa ar on lyff mon be befor me thar.’
 ‘Quhilk twa ar thai?’ The verité thow may ken,
 ‘The fyrst has bene a gret slaar of men.
 Now thai him kep to martyr in London toun
 On Wednyssday, befors king and commoun.
 Is nayn on lyff at has sa mony slayn.’
 ‘Brodyr,’ he said, ‘that taill is bot in wayn;
 For slauchtyr is to God abhominabill.’
 Than said the spreyt, ‘Forsuth this is no fabill.
 He is Wallace, defendour off Scotland,
 For rychtwyss war that he tok apon hand.
 Thar rychtwysnes is lowyt our the lawe;
 Tharfor in hewyn he sall that honour hawe.
 Syn a pure preyst, is mekill to commend;
 He tuk in thank quhat thing that God him send.
 For dayly mess, and heryng off confessioun,
 Hewin he sall haiff to lestand warysoun.
 I am the thrid, grantyt throw Goddis grace.’
 ‘Brothir,’ he said, ‘tell I this in our place,
 Thai wyll bot deym, I othir dreym or ráwe.’
 Than said the spreyt:—‘This wetnes thow sall hawe.
 Your bellys sall ryng, for ocht at ye do may,
 Quhen thai hym sla, halff ane hour off that day.’
 And so thai did, the monk wist quhat thaim alyt
 Throuch braid Bretane, the woice tharoff was scaylyt,
 The spreyt tuk leyff at Goddis will to be,
 Off Wallace end to her it is peté;
 And I wald nocht put men in gret dolour,
 Bot lychtly pass atour his fatell hour.”

Book xi. 1238–1304.

U.

VERSES ON THE DEATH OF WALLACE.

[Page 170.](#)

The verses on the death of Wallace, which have been attributed to John Blair, stand thus in the original:—

Invida mors tristi Gulielmum funere Vallam,
Quæ cuncta tollit, sustulit:
Et tanto pro cive cinis, pro finibus urna est,
Frigusque pro lorica obit.
Ille quidem terras, loca se inferiora reliquit:
At fata factis suppressens,
Parte sui meliore solum cælumque pererrat;
Hoc spiritu, illud gloria.
At tibi si inscriptum generoso pectus honesto
Fuisset, hostis prodi
Artibus, Angle, tuis, in pœnas, parcior isses,
Nec oppidatim spargeret
Membra viri sacrandæ adytis. Sed scin quid in ista,
Immanitate viceris?
Ut Vallæ in cunctas oras sparguntur et horas
Laudes, tuumque dedecus.

Abercrombie, who confounds John Blair with Arnold Blair, doubts of the above lines being composed by him. Arnold, in his *Relationes*, has certainly given nothing of his own, his brief details, as we have already observed, being merely extracts from the *Scotichronicon*; and it is more than probable, that as he borrowed from Fordun in the one instance, he might also be inclined to take the same liberty with Blair in the other. The verses are evidently the effusion of a superior mind, brooding over a recent calamity. They are attached to the end of Arnold Blair's *Relationes*, to

which the date of 1327 is affixed,—thus bringing them to within 22 years of the execution of Wallace;—that they were composed soon after that event becomes therefore a matter of certainty.

The writer entertained the hope of being able to gratify his readers with some specimens of the chansonnettes, said to have been composed in honour of Wallace by the Troubadours of France. He is sorry, however, that his applications have not been followed by the success anticipated. He will, therefore, conclude his labours with the following lines from an unpublished manuscript:—

ON THE BIRTH-DAY OF WALLACE.

May this day be blest, 'mid the days of the year,
May the sweet smile of heav'n ever brighten its dawn,
And the music that wakes when its first rays appear,
Swell joyously on till those rays are withdrawn.

May the bee's tiny bugle be heard 'round the brier—
Or when in the midst of his favourite rose;
May the breeze full of fragrance around him expire
In sighings too soft to disturb his repose.

While autumn in splendour o'er mountain and vale,
Displays her refreshing enchantment to view;
And each motionless ship, with her white hanging sail,
Is seen to repose on a mirror of blue.

To this sweet scene of peace, all so tranquil and bland,
May the heart-stirring spirit of music be given;
And the joy-song from each flow'ry nook of the land,
Meet and rise in one grand halleluja to heav'n.

For this was the day gave to Scotland a name,—
A hero,—a patriot,—the boon was divine.
The gleam of his sword led her back to her fame,
And brighten'd her pathway to liberty's shrine.

Hail pattern of heroes! thy deeds they shall stand,
Deep-engrav'd on the hearts of the brave and the free,
Till the adamant mountains that girdle the land,
Dissolve as their snows, and run down to the sea.

Like a comet, he came irresistibly forth,
Spreading woe 'mong the foes of his dear native land;
He *set*—yet his *light* lingers still in the *north*,
To rouse and direct ev'ry patriot brand.

THE END.

FOOTNOTES

¹ Langtoft tells an improbable story of the Scots having induced him to surrender, by a promise of returning to the allegiance of Edward. Twenge must have been a noted simpleton indeed, if he could have been so easily imposed upon.—See Langtoft, vol. ii. p. 300.

² Fordun à Goodall, vol. ii. p. 170.

³ See [Appendix, A](#).

⁴ See [Appendix, B](#).

⁵ Of this army the Campbells and M’Gregors formed a part, and no doubt a number of the Perthshire clans were included.

⁶ Fordun states, that the Scots army remained in England from All Saints day till Christmas, 31st October till 25th December. Wyntown also agrees with him, and thus expresses himself on the subject.

“And syne frá the Alhalowmes
In Yngland till Yhule he bydand wes.
All Allyrdáyle as man of Were
That tyme he brynt wyth his Powere:
And wyth gret Prayis owt of that Land,
Come eftyr the Yhule in-til Scotland.”

Wyntown, B. viii. c. 13. v. 177–182.

⁷ In the invasion of England, one Grimesby acted as guide to the Scottish army. This person we have alluded to at page 109, vol. i. as carrying the banner of St John of Beverley, in the army of Edward. He was afterwards rewarded by the Usurper with the promise of the first benefice of twenty merks or pounds which should become vacant in Scotland. This prospect of preferment, however, did not prevent him from joining the liberator of his country. He appears to have been long in the service of England, and was most probably one of those 30,000 Scots who were sent by Alexander III. to the assistance of Henry III., when opposed by his barons. Though it be uncertain if he accompanied Edward to the Holy Land, it is however pretty evident that he attended him in his various expeditions to France; and, in his character of pursuivant, he obtained a very intimate acquaintance with the localities of that country, as well as of England. His intimate knowledge of the latter rendered his services of much importance to his countrymen. Henry represents him as a steady and useful adherent to Wallace, and describes him to be of great stature, and as having acquired among the English the name of Grimesby, on account of his grim or stern visage. This, however, is more fanciful than correct. *Grimesby* is of Danish origin, and though among the Scots he was called Jop, his real name appears to have been Gilbert Grimesby. He acted as herald, as well as guide; and often marshalled the Scottish battalions on the eve of battle.

⁸ Hexham.

⁹ See [Appendix, C.](#)

¹⁰ See [Appendix, D.](#)

¹¹ It is probable that some of our readers may be displeased with our passing over the interview which Wallace is said to have had with Queen Margaret, during the time his army was encamped in the north of England; but we always wish to have some authority for what we commit to our pages; and as

we can find nothing in support of it, either in English or Scottish records, we are inclined to look upon it as a minstrel's tale, introduced for the purpose of effect. The subject excited the inquiries of the learned Dr Jamieson, who has been at considerable pains to ascertain whether or not such an interview actually took place; and all his researches tend rather to throw discredit on the affair, in addition to the doubt which naturally arises from the silence of history. Henry, in whose work the tale is only to be found, represents Edward as being then in Britain, while it is agreed on all hands that he was, at the time, prosecuting the war in Flanders. Though the Minstrel be a favourite with us, still we like to see his statements corroborated; and we conceive, that the English Queen appearing in the Scottish camp in the manner he describes, was a circumstance too flattering to the national pride of the Scots, to be left to the pen of one solitary narrator.

¹² See [Appendix, E.](#)

¹³ Respecting these two meritorious individuals, few particulars appear to be known. Guthrie is said to have been the ancestor of the Guthries of that Ilk, and was frequently employed as the confidential agent of his countrymen.

Bisset is also mentioned as the progenitor of the Bissets of that Ilk; and according to Henry, he was killed on this occasion by the hand of Siward, who, in his turn, was cut down by Wallace. By the chamberlain's accounts it appears, that one John Bisset, a poor monk of Haddington, received from King Robert Bruce a pension of 20s. per annum for clothing. Whether this was given in consequence of any relationship to the gallant patriot of that name, is not stated.

The battle of Blackironside appears to have been a protracted forest-fight for the greater part of the day; and the heat of the weather induced the combatants at times, as if by mutual consent, to pause amid the deadly strife.

On one of those occasions, Wallace it is said unclasped the helmet of a dead Englishman, and, repairing to a neighbouring fountain, still unstained with the carnage of the day, he dipped it into the stream, and continued to carry the water along the ranks of his fainting soldiers. When he had in this manner allayed their thirst, he afterwards partook himself; and declared, that the cooling beverage was more grateful to his palate, than the richest wines he had ever tasted. The effect which this mark of attention produced on the minds of his followers, was evinced by the vigour they displayed in the charge which they soon afterwards made on the enemy.

[14](#)

For the satisfaction of the reader, we will here give the charter referred to, as it is preserved in *Anderson's Diplomata et Numismata Scotiæ*, (Edin. 1739)—from the original at that time in the possession of Mr David Watson, writer, Edinburgh. An engraving from the seal of Baliol, attached to this charter, forms the Frontispiece to our first volume.

CHARTA.

Domini Gulielmi Wallace, Custodis Scotiæ, nomine Johannis Balliol Regis, cum sigillo ejusdem Johannis.

“Willelmus Walays miles, Custos Regni Scocie, et Ductor exercituum ejusdem, nomine preclari Principis Domini Johannis, Dei Gracia Regis Scocie illustris, de consensu communitatis ejusdem Regni. Omnibus probis hominibus dicti Regni ad quos presens scriptum pervenerit eternam in Domino, salutem. Noverit universitas vestra, nos, nomine predicti Domini nostris Regis Scocie, per consensum et assensum magnatum dicti regni, dedisse et concessisse, ac ipsas donationem et concessionem presenti carta confirmasse Alexandro dicto Skirmischur sex marcatas terre in territorio de Dundee, scilicet, terram illam que vocatur campus superior, prope villam de Dundee ex parte boreali, cum acris illis in campo occidentali que ad partem regiam spectare solebant prope villam de Dundee ex parte occidentali, et etiam pratum

regium in predicto territorio de Dunde, et etiam constabulariam castri de Dunde, cum suis pertinenciis, libertatibus et asyamentis sine aliquo retinemento, pro homagio predicto Domino Regi et heredibus suis vel suis successoribus faciendo, et pro fideli servicio et succursu suo predicto regno impenso portando vexillum regium in exercitu Scocie tempore confectionis presentium, tenenda et habenda predicto Alexandro et heredibus suis de predicto Domino nostro Rege et heredibus suis vel suis successoribus, libere, quiete, integre, pacifice et honorifice in perpetuum, cum omnibus pertinenciis, libertatibus et asyamentis ad dictam terram et pratum prenominaum, et prefatum constabulariam spectantibus vel quoquo modo spectare valentibus in futurum, faciendo inde annuatim Domino Regi et heredibus suis vel suis successoribus, scilicet pro predictis terra, prato, et constabularia cum suis pertinenciis, libertatibus, et asyamentis, servicium quod pertinet ad dictam constabulariam tantum pro omnibus que de predictis exigi poterunt in futurum. In cujus rei testimonium, sigillum commune predicti Regni Scocie presenti scripto est appositum. Datum apud Torpheichyn vigesimo nono die Marcii, Anno Gracie millesimo ducentesimo nonagesimo octavo.”

From the above document, it will appear that Wallace was sole Regent; and that, when he associated the name of the younger Sir Andrew Murray along with his own, it may be considered as only a respectful compliment to the memory of the gallant and patriotic father, whose example the young warrior was thereby excited to emulate.

- ¹⁵ This deed Baliol could have no great difficulty in executing; for though residing in the Tower, he enjoyed the full liberty of twenty miles round, and a princely retinue to attend him. That he transmitted a commission of Regency to Wallace, is not only highly probable, but placed almost beyond a doubt, not merely from the suspicions entertained by Edward, and the severe treatment which Baliol latterly experienced in

consequence of his supposed duplicity, but also from the fact of Wallace *possessing* and *using*, in his character of Regent of the kingdom, *the seal* of the dethroned *monarch*; and that in the presence, and with the sanction of the assembled nobility. Evidence to this effect is furnished by the charter granted to Alexander Scrymgeour, given in the preceding note; and as the lands which were at that time conferred are declared to have belonged to the *crown*, the full and unrestricted authority with which Wallace was invested becomes thereby the more apparent.

¹⁶ Lord Hailes, on the authority of Hemingford, says ‘Temple-liston,’ and thus condescends to notice a respectable writer: —“*Sir Robert Sibbald*, Comment. in Relat. et Blair, p. 31, says ‘at *Torphichen*,’ because *Blind Harry* says so. It was an admirable fancy to correct W. Hemingford by *Blind Harry*! Had Edward fixed his head-quarters at Torphichen, his communication with Edinburgh and the Frith of Forth would have been speedily cut off.”

This is scarcely doing Sir Robert justice. It is more reasonable to suppose that he said so, after weighing the probabilities of the case. That Torphichen was a place of some importance, and possessed accommodation, appears certain, from the circumstance of Wallace having, only a few months before, assembled the Scottish Barons to a parliament there; and it was, as has been already mentioned, the station of a preceptory of the Templars, within the precincts of which Edward was more likely to fix his head-quarters, than in any part of the desolated country around him. During his stay, we also find him employed in conferring the honour of knighthood on a number of young esquires;—an idea very naturally produced by his residence in such a spot. That Edward’s communication with Edinburgh and the Frith of Forth became thereby liable to any interruption, is a supposition more to be admired for simplicity, than depth of reflection. The distance between Torphichen and Temple-liston, is but a very few miles.

Edward was at the head of an army consisting of 7000 cavalry, and about 100,000 foot; a multitude that could find little more than tent-room in the space between the two places. Had the English monarch, therefore, been the most imbecile general that ever led men to the field,—with such a force he could have no difficulty in keeping open his communication to a much greater extent than what was required in such a position. That a portion of the English army was stationed at Temple-liston, is not to be doubted; and it seems equally certain, that Edward made the more convenient station of Torphichen his own head-quarters. Sir Robert, therefore, had reason, as well as the authority of Blind Harry, in support of his statement.

¹⁷ See [Appendix, F.](#)

¹⁸ These noblemen, it is said, were the Earls of Dunbar and Angus. With respect to the first, there is certainly a mistake, as he does not appear *ever* to have joined the standard of Wallace, and the other, with more propriety, may be called an Anglo-Scot. What share he may have had in the treason, is uncertain. That the plans of Wallace were betrayed by those in his confidence, is evident; but who the guilty parties were, remains doubtful. The subsequent conduct of Comyn excites a strong suspicion against him.

¹⁹ The banner of the Earl of Lincoln was of yellow silk, with a purple lion rampant. That of the Constable was of deep blue silk, with a white bend between two *cotises* of fine gold, on the outside of which he had six lioncels rampant.—*Walter of Exeter*.

²⁰ In an encampment, this ensign was placed near the royal tent, on the right of the other standards. It was intended to be expressive of destruction to the enemy, and of safety to the weary and wounded among the English. *Vide Illustrations of British History*.

²¹ See [Appendix, G.](#)

²² Langtoft says, the Welsh, amounting to 40,000, would not act against the Scots at Falkirk.

“The Walsch folk that tide did nouthir ille no gode,
Thei held tham alle bi side, opon a hille thei stode.
Ther thei stode that while, tille the bataile was don.”

Vol. ii. p. 306.

²³ Langtoft, vol. ii. p. 305, 306.

²⁴ This warrior is thus described by Langtoft, who claims him as an Englishman:—

“Was no man Inglis maynhed no dede that day,
Bot a templer of pris, Sir Brian the geay
Maister templere he was on this half the se,
He folowed the Scottis pas, whan the bigan to fle
Fer in tille a wod; men calle it Kalenters,
Ther in a mire a mod, withouten help of pers,
Slank thei Sir Brian alone withouten mo.”

Vol. ii. p. 305, 6.

By Rymer, however, he is noticed as swearing fealty to Edward in Edinburgh Castle, July 1291, after the convocation of Brigham, and designated as *preceptor templi in Scotia*; and, by the same authority, it appears his example was followed by *John de Sautre*, and those under his control.

²⁵ Among the various documents which his Lordship appears to consider authentic, is the following, which he thus introduces:—“I have seen the title of a public instrument, which runs thus:—‘Acte contenant les responses faites par Pierre Flotte, Seigneur de Revel, commis par le Roy (de France) pour traiter et conferer avec les Ambassadeurs Anglois, touchant l’execution du traité de treve, et reparation des infractions d’icelle. Simon de Meleun l’arbitre nommé par le Roy, offrit au Roy d’Angleterre de delivrer tous les

prisonniers Anglois en rendant par lui le Roy de Escosse et son fils, et les Escossois detenus en Angleterre et ailleurs, ou les mettant en la garde d'un prelat Francois qui les gardera sous le nom du Pape pendant que le Pape jugera de leur differend.' The original, if extant, says Lord Hailes, might serve to explain several circumstances respecting this treaty; particularly, that Edward Baliol was in captivity, together with his father, and that the Pope proposed himself as umpire between Edward I. and his disobedient vassal."

Now, the above is all good modern French, and the orthography exactly as at present, with the exception of the following words, *responses*, *traitter*, *Escosse*, *sous*, which appear to have had their spelling antiquated a little, to give the document a venerable air;—it has, on the whole, a very clumsy appearance, and shows that it cannot be older than the 17th century. If the "*full evidence*" referred to be liable to similar objections, it will not appear very surprising, that our early writers should have been so much in the dark respecting it.

²⁶ Vol. i. 311, 312.

²⁷ The son of Sir Chrytell, slain at Blackironside.

²⁸ "His Grace the Duke of Montrose (one of whose titles is Viscount Dundaff), possesses an antique sword, on which is the following inscription:—

‘SIR IONE YE GRAME, VERRY VICHT AND WYSE,
ONE OF YE CHIEFES RELIEVIT SCOTLAND THRYSE.
FAVGHT VITH YS SVORD, AND NER THOUT
SCHAME,
COMMANDIT NANE TO BEIR IT BOT HIS NAME.’

"The Duke is also proprietor of Dundaff, where Sir John Graham of Dundaff's castle is seen in ruins.

"The grave-stone of Sir John de Graham is in the churchyard of Falkirk, having the following Latin motto,

with a translation:—

‘MENTE MANUQUE POTENS, ET VALLÆ FIDVS
ACHATES;
CONDITVR HIC GRAMVS, BELLO INTERFECTVS AB
ANGLIS.

XXII. JVLII ANNO 1298.’

*‘Heir lyes Sir John the Grame, baith wight and wise,
Ane of the Cheefs who rescewit Scotland thrise,
Ane better Knight, not to the world was lent,
Nor was gude Grame, of truth and hardiment.’*

“While some of Cromwell’s troops were stationed in Falkirk, an officer desired the parochial schoolmaster to translate the Latin. This he did as follows:—

‘Of mind and courage stout,
Wallace’s true Achates;
Here lies Sir John the Grame,
Felled by the English Baties.’

“There are now three stones upon the grave. When the inscription on the first had begun to wear out by the influence of the weather, a second was put above it, with the same inscription; and a third was lately added by William Graham of Airth, Esq. At a little distance, upon the left, is an unpolished stone, said to cover the remains of the gallant knight of Bonkill.”—*Nimmo’s History of Stirlingshire*.

With regard to Stewart of Bonkill being buried in Falkirk, we are inclined to be a little sceptical, not so much from the silence of the Minstrel, as from the great probability of his having been conveyed to Bute by the surviving tenantry of that island. In a small ruined chapel, about half a mile west of Rothesay, there is still to be seen all that remains of “*the auld Stewarts of Bute*,” where, amidst a number of dilapidated monuments, well worth the attention of the antiquary, appears a stone figure, said to represent the gallant knight of Bonkill, in complete armour of the 13th century. In

a recess in the opposite wall, there is also to be seen another figure, representing *Jean M'Rudrie, heiress of Bute*. This lady appears to have been descended from a sea-officer, or pirate, named *Rudrie*, who is thus noticed in the Norwegian account of the expedition of King Haco:—"The wind was not favourable; King Haco, however, made Andreas Pott go before him, south to Bute, with some small vessels, to join those he had already sent thither. News was soon received, that they had won a fortress, the garrison of which had capitulated, and accepted terms of the Norwegians. There was with the Norwegians a sea-officer called *Rudri*; he considered Bute as his birth-right; and because he had not received the island of the Scots, he committed many ravages, and killed many people, and for that he was outlawed by the Scottish King. He came to Haco and took the oaths to him, and, with two of his brothers, became his subjects. As soon as the garrison, after having delivered up the stronghold, were gone away from the Norwegians, Rudri killed nine of them, because he thought he owed them no good will." After the treaty between Alexander and the Norwegians, it would seem that Rudrie had been allowed to hold the island of Bute as a vassal of the Scottish crown; and there is every reason to believe that the *Janet M'Rudrie* above mentioned was either his daughter or grand-daughter, who, by her marrying Alexander Stewart, became the mother of Sir John Stewart of Bonkill.

The present noble proprietor, whose family came to the possession of Bute in the reign of Robert II., has made some slight repairs about the walls where these figures are reclining. It is, however, to be regretted, that a little more attention is not paid to the preservation of such valuable antiques.

[29](#)

Lamberton appears to have succeeded Frazer in the Bishoprick of St Andrew's. This secret emissary of Edward died at Paris in 1297, to which place he probably thought proper to retire on the success of Wallace. According to his

own request, his heart was brought to Scotland, and “layed in halowyed sepultour” in the wall of the cathedral over which he presided. His body was interred in the cemetery of the Preaching Friars at Paris. Lamberton, his successor, a man of learning and good reputation, had been Chancellor of Glasgow.—*Wyntown*, vol. ii. p. 99.

³⁰ Stowe.

³¹ Observations on the Wardrobe Account of 28 Edward I. p. lx. The monastery of Cupar was also plundered on this occasion. By the inventory of Edward’s jewels taken in 1300, there appear 18 silver cups, and one silk girdle richly ornamented, which are stated to have been taken from the monastery of Cupar. This, no doubt, would form a part of the King’s share of the booty.—Vide *Wardrobe Account*, p. 353.

³² See [Appendix, H.](#)

³³ The strength and importance of Dumbarton castle, is thus described by an English spy who visited Scotland during the regency of the Duke of Albany, and afterwards in the reign of James I. It would appear, that in those days the rock was completely surrounded by water at every influx of the tide.

—passe on forthwarde to Dumbertayne,
A castell stronge and harde for to obteine.

In whiche castell S. Patryke was borne,
That afterwarde in Irelande dyd wyne,
About the whyche floweth, euen and morne,
The westerne seas without noyse or dynne,
Twyse in xxiiii. houres without any fayle,
That no man may that stronge castell assayle.

Vpon a rocke so hye the same dothe stande,
That yf the walles were beaten to the roche,
Yet were it full harde to clymbe with foot or hand,
And so to wyne, yf any to them approche,
So strong it is to get without reproche;
That without hunger and cruell famyshement,
Yt cannot bee taken to my iudgemente.

John Hardyng's Chronicle, p. 426.

³⁴ On the summit of Dumbarton rock is to be seen the ruins of a building, known by the name of Wallace's house. Judging by what remains, it appears to have been of very limited extent, and, though well calculated for security, would afford but scanty accommodation to the inmates. Its form is circular, and the site commands an extensive view; it, however, could make but a precarious resistance to an enemy possessed of the lower fortification. From the following lines in Barbour, it appears very probable that this was the place in which Lord William Soullis was detained a state prisoner for life, in consequence of his conspiring against Robert Bruce:—

The lord the Sowllis has grantyt thar
The deid in to plane parleament,
Tharefor sone eftre he was sent
Till his pennance to Dunbertane;
And deid thar in a tour off stane.

The Bruce, Buke Threttene, 406–410.

³⁵ Henry states, that after Wallace had driven the English out of Dumbarton, which he accomplished by an ingenious stratagem put in execution at night, he proceeded towards the castle of Roseneath, which was occupied by the enemy, and having learned that a marriage was to take place among them on the ensuing day, he posted his men in ambush on the road between the castle and a church, situated on the “Garlouch” where the ceremony was to be performed. The cavalcade approached, accompanied by most of the soldiers of the garrison. The Scots, at the signal of their chief, burst from their concealment, and having with little difficulty overpowered and put their astonished adversaries to the sword, they took possession of the fortress, which they found amply supplied with provisions of all kinds, intended, no doubt, for the joyous occasion.

The above anecdote induces the writer again to remark on the accuracy of Henry’s topography. If his work be not a faithful translation from the narrative of an eye-witness, his knowledge of the localities of the country is truly wonderful.

³⁶ For the gratification of the reader who may feel curious respecting the nature of the supplies required for the support and defence of an English garrison in the 13th century, we have made the following extract from the Wardrobe Account of the munitions, sent on this occasion to Stirling; viz. 1000 stockfish, 610 ling, 4 lasts herrings, 104 cheeses, 6000 onions, 30 cwt. tallow, 1 barrel honey, 11 barrels pitch, 20 lb. wax, 20 lb. cummin, 2 lb. crocus, 6 lb. round pepper, 10 bundles steel or iron, 4 large plates with handles, 100 dishes ditto, 100 cups, 100 salt-cellars, 2 large *baliste*, (*de vicio*) 18 *balistæ*, (*ad unum pedam*) 18 doz. bow-strings, 50 bows, 2 furnace-stones, 22 cwt. hemp, 200 goose-wings for darts and arrows, 3 horse hides untanned, 6 bullocks do. ditto for the bottom of the engines, twine, thread, needles, 1 doz. parchment, 2 lb. inkpowder, 18 pieces cloth, for clothing the men, 1 piece blue cloth, being clothing for John Sampson, constable of the castle, 2 chaplains and 1 clerk, 1000 ells

linen, 30 fur-skins for great-coats for the servants of the King's household, stationed in said garrison, 4 lamb skins for hoods for the use of said constable, chaplains, and 1 clerk, 240 pair shoes, and 500 ells canvas.^A

^A The above goods were sent by John the son of Walter, master of the vessel called the Godale of Beverley.

³⁷ It is very probable that Edward had evidence in his possession of the commission of regency he had granted to Wallace. The English monarch had too many secret emissaries in Scotland, to remain long ignorant of a matter of such importance. What Baliol might say to the contrary would therefore meet with little credit; and his apparent duplicity, no doubt, prompted the following remark, which, according to Walsingham, Edward made use of, on delivering him to the Nuncio. *"I send him to the Pope as a perjured man, and a seducer of the people."*

³⁸ Independent of all the difficulties which Wallace had to encounter in the Low country, the turbulent state of the Highlands prevented him from receiving any assistance of consequence from that quarter. The chieftains there seemed to consider their interests as very little connected with the safety or independence of the Lowlanders; and they carried on their feuds with as much inveteracy, as if no foreign enemy had been in the country. We find, that "about the year 1299, there was an insurrection made against the Earl of Ross, by some of the people of that province, inhabiting the mountains called Clan-Iver-Clan-Tall-wigh, and Clan-Leawe. The Earl of Ross made such diligence, that he apprehended their captain, and imprisoned him at Dingwall: which so incensed the Highlanders, that they pursued the Earl of Ross's second son, at Balnegowen, took him, and carried him along prisoner with them, thinking thereby to get their captain relieved. The Monroes and the Dingwalls, with some others of the Earl of Ross his dependers, gathered their forces, and pursued the Highlanders with all diligence; so,

overtaking them at Beallogh-ne-broig, between Ferrindonell and Lochbrime, there ensued a cruel battle, well foughten on either side. The Clan-Iver, Clan-tall-wigh and Clan-Leaive, were almost utterly extinguished. The Monroes had a sorrowful victory, with a great loss of their men; and carried back again the Earl of Ross his son. The Laird of Kildun was there slain with seven score of the surname of Dingwall. Divers of the Monroes were slain in the conflict; and among the rest, there were killed eleven of the house of Foulis, that were to succeed one another; so that the succession of Foulis fell unto a child then lying in his cradle. For which service the Earl of Ross gave divers lands to the Monroes and Dingwalls.”—*Conflicts of the clans*.

³⁹ In the Wardrobe Account, 28th Edward I., there is an entry of 6s. 8d. paid to Ralph de Kyrkby, the messenger who brought to the King the conditions and surrender of Stirling. The following notice respecting this intended expedition appears in the same document. “To a monk of Durham, to carry St Cuthbert’s banner into Scotland, when the King intended to go in person to raise the siege of Stirling Castle, 20 days, at 1s. per day.” One of the vicars of Beverly College had 8d. per day for carrying St John’s banner, and 1d. per day to carry it back.

⁴⁰ Walter of Exeter, an historical bard, who accompanied the expedition, and of whose interesting work on the siege of Carlaverock Castle, written in old Norman French, an admirable translation has been given to the public, with notes and valuable biographical sketches, by *Nicholas Harris Nicolas*, Esq. a name highly appreciated by all who have any taste for the pleasures arising from antiquarian research.

⁴¹ See [Appendix, I.](#)

⁴² For the sake of illustration, we submit the following items, taken from the wardrobe account of Edward I. for the year

1300, being part of the expenses incurred in the siege of
Carlaverock:—

Extract from Wardrobe Account, Edward I., 1299–1300.

Account of Ade de Glasham, Carpenter,
([p. 267.](#))

For hire of 7 carriages,
for conveying a
certain engine,
belonging to the
Castle of
Lochmaben, from
thence to the Castle
of Carlaverock, for
the use of the
King's army,
employed in the
siege of that castle;
viz.

5 carriages for 7 days, from 6th July	} at 6d. a day for each carriage	L.1 1 6
2 carriages for 4 days, from 9th July		
4 days of a smith and his assistant, employed in the Castle of Lochmaben repairing said engine, at 6d. a day—wages of assistant, 4d.		0 3 4

Coals furnished for			
said repairs	0	1	0
Hire of one			
artilleryman for			
one day,			
making a band			
or strap for said			
engine at			
Carlaverock	0	0	4
		0	4 8
Paid for delivering said engine			
at Skynburness, and putting			
it on board a vessel for			
Lochmaben		0	4 0
Paid at Dumfries, 2d Nov.	L.1	10	2

Account of Stephen Banyng, Shipmaster,
([p. 272.](#))

For freight of a certain engine, from			
Skynburness to Carlaverock—			
master's wages for 2 days, from			
July 10. at 6d. a day—10			
seamen at 3d. a day	L.0	6	0

Account of Richard de Geyton, Master of the
Nicholas de Geyton, ([p. 273.](#))

For freight of 20 bullocks (<i>carcos'</i>			
<i>boum</i>) to Carlaverock, for the			
use of the garrison of Dumfries			
Castle—wages of self and 5			
seamen for 8 days, at the above			
rate	L.0	14	0
Pilotage between Kirkcudbright and			
Carlaverock, for that time		0	2 0
	L.0	16	0

Account of William Boterel, Master of the Grace
of God of Ross, ([p. 274.](#))

For freight of 5 tuns of wine (*dolia*)
from Kirkcudbright to
Carlaverock—wages of self
and 7 seamen for 10 days, from
19th to 29th August, as above L.1 2 6

[*N. B.*—The engagement with
30 vessels, during this
expedition to Scotland,
appears to have been at the
rate of 6d. a day for the
master, and 3d. for the
seamen, from 23d July till
26th September 1300.—
Admiral of the fleet, 2s. a
day.—Captains of ships,
from the ports of Sandwich
and Dover, 1s.—Chaplain
of the fleet, to confess
sailors, 6d. a day, p. 275–8.]

Paid Robert de Wodehons, viz.
([p. 259.](#))

For Peter de Preston and his 9
companions, mounted on
horses, with full harness, and
charges of 660 bowmen, from
Lancashire to Carlisle, and
from Carlisle to Carlaverock, to
join the King on 8th July, 2
days—horsemen at 1s.—
bowmen 2d. a day L.12 11 0

⁴³ See [Appendix, K.](#)

⁴⁴ See account of the King's progress, page 67 of Remarks on Wardrobe Account of Edward I.

⁴⁵ The following items, which appear in the above Account for 1300, as having reference to this campaign, and to the manner in which Edward was employed, may be interesting to some of our readers.

Donation to Henry de Cornwall, wounded by the Scots near Columtach, in Galloway. For his return and medicines, by the hands of William de Toulouse, who lent him the money, one half merk (*dimidium marce*).

To a stable-boy, hurt by one of the King's horses at Kirkcudbright, *five shillings*.

Alms and Offerings at Scottish Chapels.

7th July.—At the altar of St Nicholas, 7s., and St Thomas the Archbishop, 7s.—in the parish church of Applegarth.

10th July—At the high altar of the Friars Minors, Dumfries, 7s. and 16th, 7s.

12th July.—Do. of his own chapel of Carlaverock, at St Thomas, 7s.

At the high altar, Kirkcudbright priory, and in his chapel there, July 19th, 7s.; 20th, 7s.; 22d, 7s.; 25th, 7s.; 27th, 7s.

29th August.—At his own chapel Carlaverock, 7s.

In his own chapel at Dumfries, October 24th, for good news about the Scots, 7s.; 28th, 7s.; November 1st, 7s.; and November 3d, at his own altar at Carlaverock, 7s.

14th Oct. At his own chapel (Holm), for the report he heard of the success of the men-at-arms of the Castle of Roxburgh, 7s.

There is also, in the same year, an offering at the high altar of the Royal Chapel of Westminster, for good news against the Scots; and 5*l.* 10s. 10d. for 190 masses in honour of

different saints, by the King's chaplains, both in England and Scotland, between November 20th, 1299, and November 19th, 1300.

⁴⁶ The curious reader may perhaps take some interest in the following notices of the workmen employed about these fortresses, and the rate of wages they received for their labour. They are taken from the Wardrobe Account. The authenticity of the document is unquestionable.

Repairs at Lochmaben, October 1300.

Octr. 24.	Hire of 44 ditchers (<i>fossatores</i>) from the neighbourhood of Lochmaben, (including one overseer at 6 <i>pennies</i> a day) for one day	L.0	8	0
25.	Do. of 34 do. (including one overseer at 6 <i>pennies</i> a day) for 3 days	0	19	0
31.	Do. of 50 do. (including 3 overseers at 6 <i>pennies</i> each per day) for 4 days	1	17	4
Nov. 2.	Do. of one manager, at 6 <i>pennies</i> a day, and 178 ditchers including 9 overseers from the county of Northumberland, for 3 days	4	15	0
	Paid William of Lochmaben, overseer, and 25 labourers from the neighbourhood of Lochmaben, for 3 days (from 27th of Octr.)	0	13	6
Nov. 2.	Hire of 76 labourers from Cumberland, including 4 overseers as above, by the King's order (<i>ad mandatum Regis</i>) for 1 day	0	13	4
	Do. of 4 men inspecting the work of said ditchers, from 23d till 30th October, 8 days, at 4 <i>pennies</i> a day each	0	10	8
	Do. of 7 women helping to clean the ditches for one day (Oct. 24) at 1½	0	0	10½

pennies

Do. for 9 women (Oct. 27) 3 days at 1½d.	0	3	4½
Do. for 10 (Oct. 28.) } as above	0	3	4½
Do. for 14 (Oct. 29.) }			
Do. for 25 (Oct. 30.)	0	3	1½
Extra gratification to said ditchers, being King's bounty	1	5	7
Carriage of workmen's tools from Northumberland, through Carlisle to Dumfries	0	10	0
Hire of 2 smiths from said county, from 17th Oct. till Nov. 1st, 16 days, at 4 <i>pennies</i> a day	1	1	4
	L.13	4	1½

Amount paid to Henry Braundeston, for Ade de St Edmunds.—See [page 269](#) of Wardrobe Account.

Hire of 2 men employed in Inglewood-forest, making charcoal for the smiths, 4 days, 2s.

[47](#)

Paid Simon Kingesman, master of the Margaret of Kipavene, for freight of 30 quarters of wheat from Kirkcudbright to Dublin, to be ground there, and carriage of the same to Ayr, for the use of the King's army in that place—Wages for self and 12 seamen, from 2. till 15. August, both included, 15 days	L.2	9	0
To the same, for pilotage of said vessel	0	6	8
	L.2	15	8

Paid Wewmund Gegge, of the
Savoy of Tynemouth, freight of
143 quarters of wheat, from
Kirkcudbright to Whitehaven, to
be ground, and carriage of the
same to Ayr, for the King's army
in that place—Wages for self
and 9 seamen, 5. till 14. August,
both included, 10 days L.1 7 6

[N. B. Wages of master 6d. and seamen 3d. per day, during
the expedition to Scotland in 1300.]

Average wages per day. viz.

Labourers	2d.
Plasterers	3d.
Miners	3d.
Masons	4d.
Carpenters	4d.
Smiths	4d.
Boys, or Apprentices	2d.

Prices of Oats per quarter.

1300.	Jan.	At Holderness	2s. 2d.	p. 212
—	July.	At Newcastle-upon-Tyne	2s. 6d.	p. 113

Price of Wheat per quarter.

1300.	June.	At Cawode, near York	4s.	p. 108
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Prices in Scotland in 1285.

Oats 4d., and Bear 8d. and 10d. per boll. Wheat 16d. and
20d.^B

^B It has been already stated (page 39 of vol. I.), that the
money of both countries was of equal value at this time.

⁴⁸ From the following entry in the Wardrobe Account, it would appear, that in this expedition the English were provided with nets for fishing in the rivers and lakes of Scotland “*Reginaldo Janetori pro 2 reth’empt, per ipsum ad piscandum in repariis et stagnis in partibus Scocie ad opus Regis per manus proprias, apud Kirkudbright.*” 4s. 2d.

Vide Wardrobe Account for the year 1300. p. 65.

⁴⁹ Wyntown.

⁵⁰

“That tyme wes in his cumpany
A knycht off France, wycht and hardy;
And quhen he in the watyr swa
Saw the king pass, and with him ta
Hys leddyr wnabasytly,
He saynyt him for the ferly,
And said; ‘A Lord! quhatt sall we say
Off our lordis off Fraunce, that thai
With gud morsellis fayrcis thair pawnychis,
And will bot ete, and drynk, and dawnsis;
Quhen sic a knycht, and sa worthy
As this, throw his chewalry,
Into sic perill has him set,
To wyn a wrechyt hamillet!’
With that word to the dik he ran;
And our eftre the king he wan.”

The Bruce, *Buke Sext*, p. 177–8.

⁵¹ This circumstance is thus corroborated by a note attached to the Perth edition of Wallace. The editor, it would seem, had been present on the occasion:

“About thirty years ago, when the burying vault of the parish church of Kinfauns happened to be opened, I was shewed a helmet made of thick leather, or of some such stuff, painted over with broad stripes of blue and white, which I

was told was part of the fictitious armour in which the body of Thomas of Longueville had been deposited. Henry says, he was of large stature, and the helmet, indeed, was a very large one.”—P. 24 of Notes in 3d Volume.

⁵² See [Appendix, L.](#)

⁵³ The *Croyz Gneytz* was held in great veneration, in consequence of its being supposed to contain part of the wood of the real cross. *The Black Rood* of Scotland was one of the national monuments carried off by Edward. Its sanctity was considered equal to that of the *black stones* of Iona; and an oath made upon it, gave the same stability to a contract. It was the favourite crucifix of Queen Margaret. The cross was of gold, about the length of a palm—the figure of ebony, studded and inlaid with gold. A piece of the true cross was also supposed to be enclosed in it.

Aldred, p. 349 apud Twisden.—Hailes, vol. i. p. 41.

⁵⁴ In Dr Jamieson’s edition of *Blind Harry*, this circumstance is thus printed:—

“Bot maister Blayr spak nothing off himsell,
In deid off armes quhat awentur he fell.
Schir Thomas Gray, was than preyst to Wallace,
Put in the buk how than hapnyt this cace
At Blayr was in, [and] mony worthi deid,
Off quhilk him selff had no plesance to reid.”

B. x. 893–898.

In the Perth edition of *Wallace*, the words in the third line stand thus:—“*I Thomas Gray, yan preist to Wallace,*” &c. On this reading, the Perth editor, with propriety, founds a very strong argument in favour of the *existence* of Blair’s work, and of the fidelity of Henry’s translation. The difference in the two editions appeared so very important, as to induce a friend of the writer to refer to the original manuscript in the Advocates’ Library, when it was found that the rendering of the Perth editor was strictly conformable to

the original text, “thus affording,” as the above mentioned friend observes, “a triumphant argument in Henry’s favour; for it seems to represent him as in the very act of versifying his “auctor.” What authority Dr Jamieson has for the version he has given, must remain with himself to explain.

⁵⁵ See [Appendix, M.](#)

⁵⁶ The havoc made, and the oppressions sustained by the inhabitants, are thus described by Barbour, p. 9, vol. i. of *The Bruce*.

“Fra Weik anent Orkenay,
 To Mullirs nwk in Gallaway;
 And stuffyt all with Ingliss men.
 Schyrreffys and bailyheys maid he then;
 And alkyn othir officeris,
 That for to gowern land afferis,
 He maid off Ingliss nation;
 That worthy than sa rych fellone,
 And sa wykkyt and cowatouss,
 And swa hawtane and dispitouss,
 That Scottis men mycht do na thing
 That euir mycht pleyss to thar liking.
 Thar wyffis wuld thai oft forly,
 And thar dochtrys dispitusly:
 And gyff ony of thaim thair at war wrath,
 Thai watyt hym wele with gret scaith;
 For thai suld fynd sone enchesone
 To put hym to destructione.
 And gyff that ony man thaim by
 Had ony thing that wes worthy,
 As horss, or hund, or othir thing,
 That war pleasand to thar liking;
 With rycht or wrang it wald have thai.
 And gyff ony wald them withsay;
 Thai suld swa do, that thai suld tyne
 Othir land or lyff, or leyff in pyne.
 For thai dempt thaim eftir thair will,
 Takand na kep to rycht na skill.
 A! quhat thai dempt thaim felonly!
 For gud knyghtis that war worthy,
 For litill enchesoune, or than nane,
 Thai hangyt be the nekbane.”

[57](#) On the charge which has been made against Edward, for destroying the records and monuments of Scotland, Lord Hailes thus expresses himself:—“While the English were at Scone, they carried off some of the charters belonging to the

abbey, and tore the seals from others. This is the only well-vouched example which I have found of any outrage on private property committed by Edward's army. It is mentioned in a charter of Robert I.; and we may be assured that the outrage was not diminished in the relating." Had this escaped from any other pen than that of a lawyer, it might have been considered as proceeding from ignorance; but being from a Judge on the Bench, we are at a loss what term to apply to it. The charter of Robert I. (Chart. Scone, 26.) was given in order to confirm former grants, and thus replace those which either had been carried off, or had their seals torn from them. To have inserted a narrative of *all* spoliations of a similar nature, which Edward and his army had committed in Scotland, would have been *irrelevant*; and we conceive that the expense of engrossing into a *private* charter what belonged to the annals of the country, would not have been relished by the brethren of Scone. Had a case of expenses, incurred, in a manner so uncalled for, come under his Lordship's review, we presume he would have sustained the objections of the defender. All that could appear with propriety in the charter, was an account of the destruction of those prior grants, which rendered a new charter necessary; and this document, if it proves any thing, proves the wanton and destructive malice of the invaders, when they would not permit even private property, the destruction of which could be of no service to themselves, to escape their violence. It would be of no avail, where Lord Hailes is concerned, to quote Scottish authorities in support of the charge against Edward, as a destroyer of public records; we shall therefore give the following extract, from the works of a learned, intelligent, and candid Englishman—an evidence which, we presume, few of his Lordship's admirers will object to:—"King Eugene VII., about the beginning of the eighth century, is said to have ordered the depositing of all records, and books relating to the history of Scotland, at Icolm-kill; where he caused their old library (much neglected and decayed) to be pulled down and rebuilt in a very splendid manner, for this sole use and purpose. How long they

continued there, and how well that excellent King's design was answered, I know not; but it is now too sad a truth, that most of these venerable remains of antiquity are quite perished; and it is generally agreed, that they were destroyed on three remarkable occasions. The first of these was, when our King Edward the First, having claimed the sovereignty of Scotland, made a most miserable havock of the histories and laws of that kingdom; hoping that, in a short time, nothing should be found in all that country, but what carried an English name and face. To this end, he forbad, on severe penalties, the keeping of any such books or records; and proceeded so far as even to abolish the very name of Claudius Cæsar in his famous round temple, which he ordered to be called, as it is to this day, Arthur's Hoff, pulling away the stone which preserved the memory of that great emperor and his conquests. That a great deal of this story is true, appears from the scarcity of Scotch records in our State-archives in England. Amongst the foreign treaties in the Exchequer, there are about 70 original instruments, bagged up, and inscribed, "Scotia ante Unionem:" And in the Tower, about 100 Rolls, relating to the affairs of that kingdom, under the title of Scotia. The former of these begin at the reign of Edward the First, and end with that of Queen Elizabeth; and the latter commences as before, but falls no lower than the reign of Edward the Fourth, the rest being to be looked for in the Chapel of the Rolls. But these are all the produce of our own country; and, instead of enriching us with the spoils of our neighbours, seem rather to prove, that King Edward had an equal spite at the ancient records of both kingdoms—so little is there of apology to be made for so notorious a destroyer of the public registers, together with the private monuments, evidences, and conveyances of lands! I do not doubt but the reason of such barbarity has been justly enough assigned, by those who represent him as "having a jealous eye over any thing that might encourage his new vassals to rebel, endeavouring to root out all memorials of the nobility, and to embase their spirits, by concealing from them their descent and qualities." I have seen a manuscript list of such

records as were carried off by his order. It begins, *Ista monumenta subscripta capta fuerunt in thesaurario de Edinburg in presentia Abbatum de Dunfermelyn & de S. Cruce de Edinburg, & Johannis de Lythegranes, Guil-de Lincoln, & Thos. de Fisseburn & Guil-de Dumfreys, custodis rotulorum regni Scotiæ; et deposita sunt apud Berwick per præceptum Edwardi regis Angliæ & superioris domini Scotiæ. Videlicet, &c.* After the recital of them, the catalogue ends: *In quorum omnium testimonium tam predictus dominus rex Edwardus Angliæ & superior dominus Scotiæ quam predictus dominus Joh: de Balliolo rex Scotiæ, huic scripto, in modum chirographi confecto, sigille sua alternatim fecerunt apponi. dat. apud Novum Castrum super Tynam 30 die mensis Decembris anno dom. 1292, & regni prædicti domini Edwardi regis Angliæ & superioris domini Scotiæ, 21mo.* The second great loss of the Scotch records, happened upon the mighty turn of the Reformation; when the monks, flying to Rome, carried with them the register-books, and other ancient treasure of their respective monasteries. The third, and killing blow, was given them by Oliver Cromwell; who brought most of the poor remains that were left into England; and they likewise were mostly lost in their return by sea. See *Nicolson's Scottish Historical Library*, p. 71, 72, 4to Edition.

[58](#) It is possible that these noblemen may have been some way or other connected with the depôt of silver, alluded to at page 159 of vol. I, as having been found at Ascog in Bute.

[59](#) If we may credit Langtoft, Comyn, Frazer and Wallace, were lurking in the neighbourhood of Dunfermline at the time, and supported themselves by plunder. His words are,

“The lord of Badenauh, Freselle & Waleis
Lyued at theues lauh euer robband alle weis.
Thei had no sustenance, the werre to mayntene,
Bot skulked opon chance, & robbed ay betuene.”

⁶⁰ “He brint all the Chronicles of Scotland, with all maner of bukis, als weill of devyne seruyce as of othir materis, to that fyne that the memorye of Scottis suld peris. He gart the Scottis wryte bukis efter the *vse of Sarum*, and constranit thaym to say efter that vse.”—*Boeth.*

“Salysbery oyss our clerkis than has tane.”

Wallace, B. x. 1006.

⁶¹ Fordun relates, that when this offer was made to Wallace, and on his being pressed by his friends to comply, he thus expressed himself:—“O! desolated Scotland, too credulous of fair speeches, and not aware of the calamities which are coming upon you! If you were to judge as I do, you would not easily put your neck under a foreign yoke. When I was a boy, the priest, my uncle, carefully inculcated upon me this proverb, which I then learned, and have ever since kept in my mind:—

“*Dico tibi verum, Libertas optima rerum;
Nunquam servili, sub nexu vivito, fili.*”

“I tell you a truth,—Liberty is the best of things, my son, never live under any slavish bond.”

“Therefore, I shortly declare, that if all others, the natives of Scotland, should obey the King of England, or were to part with the liberty which belongs to them, I and those who may be willing to adhere to me in this point, will stand for the liberty of the kingdom; and by God’s assistance, will only obey the King, viz. John Baliol, or his Lieutenant.”

⁶² This is evidently a corruption of *Loup de guerre*.

⁶³ The existence of the bond or covenant between Bruce and Cumyn, though subjected to the doubts of Lord Hailes, is recorded by all our respectable authorities. The objections of his Lordship arose from the difficulty the parties would have experienced in effecting the contract. “It must be held

extraordinary,” says our learned annalist, “that the two conspirators met together, should have committed such a secret to writing, as if it had been a legal covenant to have force in a court of justice; but more extraordinary still, that they should have done this at the imminent hazard of intrusting their lives and fortunes to the fidelity of a third party; for I presume, it will be admitted, that two Scottish barons, in that age, could not have framed such an indenture without assistance.” His Lordship, in his zeal to diminish the authority of preceding historians, often forgets the manners and customs of the age respecting which he writes, and assimilates them too closely to those of his own times. Were it not for this, he would have seen neither difficulty nor danger in two barons of such extensive territorial possessions and feudal influence, procuring a person properly qualified, and whose secrecy, had it been doubted, they would have had no hesitation in *effectually securing*, either by imprisonment or otherwise. Even if their power did not extend to this, as the bond was not left in the possession of the drawer, where was the danger? Would any person whose education enabled him to frame such an instrument, have been so extremely foolish as attempt to charge two of the most powerful noblemen of the kingdom with treason, without the least shadow of proof to support the accusation? Bonds of manrent were never intended to be brought into a court of law, and all his Lordship’s experience would not have furnished him with a single instance of an attempt to enforce the fulfilment of such a contract by legal means. Bonds of this kind were entered into for the purpose of strengthening the feudal connections of the parties; and infidelity under such compacts carried its punishment along with it, by the want of confidence it created among the other feudal proprietors. That such bondsmen were looked upon with extreme jealousy by the Legislature, is sufficiently evident from the conduct of James II. towards Lord Douglas; “a court of justice,” therefore, was not the place to get their penalties recognised.

The transaction is thus related by Wyntown, with whom Barbour agrees in every particular, and by which it will be seen, that “the two conspirators” did not “*meet* together,” as his Lordship asserts, but were riding together to Stirling; and the instrument was drawn and sealed the same night in that place:—

“Quhen all this sawe the Brws Robert,
 That bare the Crowne swne eftyrwart,
 Gret pytté of the folk he had,
 Set few wordis tharof he mád.
 A-pon á tyme Schyr Jhon Cwmyn,
 To-gydder rydand frá Strevylyn,
 Said til hym, ‘Schyr, will yhe noucht se,
 How that governyd is this cuntré?
 Thai sla oure Folk but enchesown,
 And haldis this Land agayne resown;
 And yhe thar-of full Lord suld be.
 For-thi gyve ye will trow to me,
 Yhe sall gere mak yhow thare-of Kyng;
 And I sall be in yhoure helpyng,
 Wyth-thi yhe gyve me all the Land,
 That yhe hawe now in-til yhoure hand,
 And gyve that yhe will noucht do swá,
 Na swilk a State a-pon yhowe tá,
 All hale my Landis sall yhowris be;
 And lat me tá the State on me,
 And bryng this Land owt of Thryllage.
 For thare is nother man ná page
 In all this Land na thayne sal be
 Fayne to mak thaime selfyn fre.’
 “The Lord the Brws hard his karpyng,
 And wend he spak bot faythful thyng:
 And for it lykyd til his will,
 He gave swne his Consent thare-til,
 And sayd, ‘Syne yhe will, it be swá,
 I will blythly a-pon me tá
 The State; for I wate, I have Rycht:
 And Rycht oft makis the febil wycht.’
 “Thus ther twa Lordis accordyt are.
 That ilke nyght than wryttyne ware
 Thare Indentwris, and Aithis made
 Til hald all, that thai spokyn had.”

It is with regret that we find this recreant's name in the list of the defenders of Stirling. Emancipation from a dungeon, and the prospect of attaining to great riches, were no doubt powerful motives. Whether the following relation in Henry has any subsequent connection with this individual, we must leave our readers to determine. If it does, he appears to have received from the hand of our hero the recompence of his labours.

The small party of adherents which still clung to the fortunes of Wallace and the cause of independence, were reduced to the greatest distress for want of provisions. Our hero had left them, in order to look out for a place where they might obtain supplies; and, while wandering through the wilds of Lorn, overcome by hunger and fatigue, he threw himself down in despair at the entrance of a forest, when the following adventure occurred to him:—

“Out off thair sycht, in till a forest syd,
He sat him doun wndyr ane ayk to bid;
His bow and suerd he lenyt till a tre,
In angwyss greiff, on grouff so turned he.
His petows mynd was for his men so wrocht,
That off him selff litill as than he roucht.
‘O wrech!’ he said, ‘that neuir couth be content
Off our gret mycht that the gret God the lent:
Bot thi fers mynd, wylfull and variable,
With gret lordschip thow coud nocht so byd stable;
And wylfull witt, for to mak Scotland fre;
God likis nocht that I haiff tane on me.
Fer worthyar of byrth than I was born,
Throuch my desyr wyth hungyr ar forlorn:
I ask at God thaim to restor agayn;
I am the causs, I suld haiff all the pain.’
Quhill studeand thus, whill flitand with him sell,
Quhill at the last apon slepyng he fell.
Thre days befor thar had him folowed fyve,
The quhilk was bound, or ellis to loss thair lyff:
The erl off York bad thaim so gret gardoun,
At thai be thyft hecht to put Wallace doun.
Thre off thaim was all born men off England,
And twa was Scottis, that tuk this deid on hand;
And sum men said, thar thrid brothir betraissed
Kyldromé eft, quhar gret sorow was raissed.
A child thai had, qubilk helpyt to ber mett
In wildernes among thai montans grett.
Thai had all seyn disseuyring off Wallace
Fra his gud men, and quhar he baid on cace;
Amang thyk wod in cowert held thaim law,
Quhill thai persawyt he couth on sleping faw.
And than thir fyve approchit Wallace neir;
Quhat best to do, at othir can thai speir.
A man said thus: ‘It war a hie renoun,
And we mycht qwyk leid him to Sanct Jhonstoun,
Lo, how he lyis; we may our grippis wail;
Off his wanvnnys he sal get nane awaill.

We sall him bynd in contrar off hys will,
 And leid him thus on baksyd off yon hill,
 So that his men sall nothing off him know.’
 The tothir thre assentit till his saw;
 And than thir fyve thus maid thaim to Wallace,
 And thocht throw force to bynd him in that place.
 Quhat, trowit thir fyve for to hald Wallace down?
 The manlyast man, the starkest off persoun,
 Leyffand he was; and als stud in sic rycht,
 We traist weill, God his dedis had in sycht.
 Thai grippyt him, than out off slepe he braid;
 ‘Quhat menys this? rycht sodandly he said,
 About he turnyt, and wp his armys thrang;
 On thai traytouris with knychtlik fer he dang.
 The starkast man in till his armys hynt he,
 And all his harnys he dang out on a tree.
 A sword he gat son efter at he rayss,
 Campiounlik amang the four he gais;
 Euyr a man he gert de at a dynt.
 Quhen twa was ded, the tothir wald nocht stynt;
 Maid thaim to fle; bot than it was na but,
 Was nane leyffand mycht pass fra him on fut.
 He folowed fast, and sone to ded thaim brocht;
 Than to the chyld sadly agayn he socht,
 ‘Quhat did thow her?’ The child with [ane] pail face,
 On kneis he fell, and askyt Wallace grace.
 ‘With thaim I was, and knew nothing thair thocht;
 In to seruice, as thai me bad, I wrocht.’
 ‘Quhat berys thow her?’ ‘Bot meit, the child can say.’
 Do, turss it wp, and pass with me away,
 Meit in this tym is fer bettyr than gold.”

⁶⁵ According to Henry, Gilbert Grymsby, or, as he is called by the Scots, Jop, was employed in this mission.

⁶⁶ This young man is said by Henry to have been a son of Menteith’s sister. Langtoft calls him a servant, and says his name was *Jock Short*.

⁶⁷ From Robroyston Wallace could easily make his way to the Clyde; cross the river and keep his appointment with Bruce, who was to have approached from the south, without coming in sight of any of the English stationed at Glasgow. The burrow-muir was situated on the south side of the Clyde.

⁶⁸ The circumstance of this person being the last friend whom our hero was destined to behold, would, independent of his own personal merits, have rendered him an object of curiosity to a great proportion of our readers. The following account is taken from the notes of the editor of the Perth edition of Blind Harrie; and, as any thing which the writer has yet met with, rather tends to confirm than invalidate the statement, he shall submit it to the reader in the words of the learned and intelligent author:—

“William Ker, commonly called Kerlie, or Ker Little, was ancestor of the Kers of Kersland. He, as well as many others, was compelled to swear the unlawful oath of fealty to Edward, August 5. 1296.

“He joined Wallace at the castle of the Earl of Lennox, September 1296, and went with him immediately on his first northern expedition. He and Stephen of Ireland were the only two of Wallace’s men who survived the battle along the north side of the River Erne, November 1296.

“He was the constant friend and companion of Wallace on all occasions, and is sometimes called his steward: In 1305, when Wallace was taken prisoner at Robrastoun, a solitary village near Glasgow, William Ker only was with him. They were found both asleep, and Ker was killed in the scuffle.

“Henry says, that William Ker had large inheritance in the district of Carrick in Air-shire. That his ancestor was brought from Ireland by King David I., and defeated, with the assistance of seven hundred Scots, nine thousand Norwegians who had landed at Dunmoir. Some of the Norwegians were drowned in Doun, and others slain upon

the land. King David gave him the lands of Dunmoir in reward of his bravery.

“It may be remarked, that Dun Hill, or, as it is commonly called, Norman or Northman Law, a high hill on the estate of Dunmure, in the north-east part of Fife, and parish of Abdie, has on the top of it the remains of Danish intrenchments. The hill on the north side declines all the way to the river or Frith of Tay, which has Dundee at the mouth of it. The constant tradition is, that the Danes or Norwegians carried the spoil of the country to the top of this hill, where the natives could have no access to them; and after having collected it there, carried it down on the other side to their ships in the river.”

⁶⁹ “At Robroystone Sir William Wallace was betrayed and apprehended by Sir John Menteith, a favourite of Edward I. of England. After he was overpowered, and before his hands were bound, it is said he threw his sword into Robroyston loch. An oaken couple, or joist, which made part of the barn in which the Scottish hero was taken, is still to be seen in this neighbourhood, and may yet last for ages.”—*Stat. Acc. viii.* 481, 482.

The latter part of the above quotation is perfectly correct. The oaken joist was to be seen till within these ten years past; it has now entirely disappeared, being carried off by that tribe of pseudo-antiquarians, ycleped Relic-fanciers.

⁷⁰ See [Appendix, N.](#)

⁷¹ This report may have originated in some facetious remark, which probably escaped from him on hearing that one William Wallace had, by the voice of his fellow-citizens, attained to the honour of being Lord Mayor of London, when the success of the Scots compelled Edward to grant an extension of the liberties of his people. His election is stated, at p. 85, vol. i. of this work, to have taken place in 1296. This mistake the author begs leave to correct; the election

occurred in April 1298. The coincidence is rather singular. See Lambert's Survey of London, vol. i. p. 167.

⁷² That Edward was mean enough to subject Wallace to a piece of mockery of this kind, appears evident, from the same contemptible artifice, to excite derision, being again resorted to in the case of Sir Simon Frazer, who was not only habited in an unbecoming and ridiculous garb, but also had “a gerland on ys heued of the newe *guyse*.” This expression is taken from the ancient ballad made on the execution of Frazer, as may be seen in the account we have given of that warrior; and which seemed evidently to allude to the recent exhibition made of Wallace, on whose person “the newe *guyse*” was no doubt first introduced;—and, as Sir Simon was executed only about twelve months afterwards, the phrase would be perfectly applicable, as the circumstance must have been fresh in the minds of the people.—See [App. L.](#)

⁷³ See [Appendix, O.](#)

⁷⁴ This appears to have been the only article of property that Wallace died possessed of.

⁷⁵ This, in all probability, was the mark of the wound inflicted by the Lancaster bowman mentioned at page 162 of volume I.

⁷⁶ See [Appendix, P.](#)

⁷⁷ See [Appendix, Q.](#)

⁷⁸ This circumstance seems to have been keenly felt and lamented, as a subject of national disgrace, by some of the historians of England. In addition to the anathemas poured forth by Peter Langtoft, on account of the obstinacy of their northern neighbours—the mortification evinced by Hardyng in the following lines, is highly complimentary to the

independent spirit of Scotland. This acknowledged spy, and detected forger, was sent down by his government, in the reign of Henry V., for the *mean* purpose of stealing away the treaty with Robert Bruce, in which the independence of Scotland was recognised.

“Englande and Wales as to their soueraygne
To you obey, whiche shuld thinke shame of rygth,
To se Scotlande thus proudly disobeyne,
Agayne them two that bene of greate myght,
It is a shame to euey mannes syght,
Sith Iohn Baylioll his rygth of it resygned
To kyng Edward, why is it thus repugned?”

Hardyng's Chronicle, p. 413–414.

In the two last lines, the writer of the Chronicle finds the pretensions of England to the superiority over Scotland, on the resignation of Baliol. This title he no doubt considered as *preferable* to any claims previously got up; and we would recommend Dr Lingard to follow his example; for, bad as it is, the supporters of it are not liable to meet with those stubborn historical facts which stand in the way of the advocates for a more venerable antiquity. To show the sincerity which dictates this advice, we shall revert once more to pages 443 and 444, vol. iii. of the Doctor's work, where we are told, on the authority of Rymer, that the words “libertates, dignitates, honores debiti,” &c. “mean the allowances to be made, and the honours to be shown, to the King of Scots, as often as he came to the English court, by the command of his lord the King of England, *from the moment that he crossed the Borders till his return into his own territories.*” Had the vassalage of the King of Scotland been of that unqualified nature which the Doctor labours to establish, how comes it that his “allowances” only commence *from the moment he crossed the Border*, and ceased as soon as he *returned to his own territories*—merely, we presume, because *he was in his own territories*. Had it been otherwise, he would doubtless have been found entitled to those expenses or allowances, *from the time he left his*

own domicile, in whatever part of Scotland *that domicile* may have been situated.

⁷⁹ See [Appendix, R.](#)

⁸⁰ However singular this statement may appear to some, the author is happy in having it in his power to produce the most incontrovertible evidence of the fact—See [App. A.](#)

⁸¹ [Appendix, S.](#)

⁸² See [Appendix, T.](#)

⁸³ Vol. iii. 8vo ed. p. 343–355.; and vol. ii. of 4to ed. p. 459–468, 470.

⁸⁴ Lingard, vol. iii. p. 356. 3d Edition.

⁸⁵ In the recovery of a document connected with the hero of Scotland, which had thus lain in obscurity for so long a period, the writer feels himself particularly called upon to express his grateful acknowledgments to T. G. Repp, Esq. of the Advocates' Library, and his friend E. K. Sieveking, Esq., Syndic of the city of Hamburgh.

⁸⁶ The writer is inclined to believe, that, in copying the antiquated original, Badsington has been put down by the transcriber in a mistake for Haddington. He has left it, however, in charge of a note of interrogation, for the purpose of inviting his readers to the exercise of their critical acumen.

⁸⁷ Our readers will be gratified to learn, that Dr Lappenberg has been for some time engaged on a highly interesting work relating to the origin of the Hanseatic League, in the course of which there will appear upwards of 400 documents which have escaped the research of former writers, illustrative of the state of commerce among the nations of Europe between 1170 and 1370. A considerable number of these documents, we understand, relate to the mercantile transactions of

England and Scotland; and a publication of this kind cannot fail to be anxiously looked for, by all who set a value upon well-authenticated historical information.

⁸⁸ See [p. 203](#).

⁸⁹ By the above letter, the writer is also enabled to correct a mis-statement at page 29 of the present volume. The election of Wallace to the *Regency* did not (as is there mentioned) take place before his advance into England. The authority by which he and Sir Andrew Murray made the preparations for the invasion, appear to have been derived from the community of Scotland, and “*duces exercitus regni Scotie*” the highest title they considered themselves invested with at the time.

⁹⁰ Under the impression that the letter and charters alluded to above are the composition of Wallace, we conceive some of our readers may not be displeased with the following attempt at a translation of the charter in favour of Scrymgeour, as they will then have in this volume English versions of every known document that can with any probability be considered as emanating from the pen of Wallace.

“Charter of Sir William Wallace, Guardian of Scotland, in the name of King John Baliol, with the seal of the same John.

“William Walays, Knight, Guardian of the Kingdom of Scotland, and Leader of the Armies of the same, in the name of the excellent Prince Lord John, by the Grace of God, the illustrious King of Scotland,—with the consent of the community of the same kingdom.—To all trusty men of the said kingdom, to whom the present writing may come, Eternal Salvation in the Lord.—Be it known to You all, that We, in the name of our foresaid Lord the King of Scotland, by the consent and approbation of the Grandees of said kingdom, Give and Concede, and that self same donation and concession by the present charter, Do confirm, to Alexander, named Skirmischur, six merks of land in the territory of

Dundee, namely, that land which is called the Upper Field near the town of Dundee, on the north side, with those acres in the west field, commonly fronting the Royal Grounds, near the town of Dundee, on the west side, and also the Royal Meadow in the foresaid territory of Dundee, and also the Constabulary of the Castle of Dundee, with the rights, liberties, and privileges belonging thereto, without any reservation whatsoever, on performing homage to the foresaid Lord and King, and his heirs or his successors; and for the faithful service and assistance rendered to his foresaid kingdom, in bearing the Royal Standard in the Army of Scotland, at the time the present writing has been drawn up.—Securing and preserving to the foresaid Alexander and his heirs, from our said Lord the King, and his heirs or his successors, free, quiet, entire, peaceable, and honourable possession, in perpetuity, with all the rights, liberties, and privileges belonging to said land, meadow above named, and forementioned Constabulary, fronting as at present, or in what manner soever in future, on performing annually therefore to the Lord the King, and his heirs or successors, namely, for the foresaid land, meadow and Constabulary, with their rights, liberties and privileges, the service attached to said Constabulary, as well as for all that in future may be required on account of the foresaids. In testimony of which, the common seal^C of the foresaid kingdom of Scotland has been affixed to the present writing. Given at Torphichen, on the 29th day of March, in the year of Grace 1298.”

^C An engraving from this seal forms the frontispiece to the first volume of this work.

⁹¹ Sir Andrew Murray, who was killed at the battle of Stirling, was married to a sister of Cumyn, Lord of Badenoch.—Vide *Scottish Baronage*.

⁹² The arms of the Earl of Dunbar, were gules, a lion rampant, argent, within a bordure of the second, charged with a rose of the first. The banner of the son, at the siege of Carlaverock,

was the same as that of the father, with the addition of a blue label.

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“Lychtly he lowch, in scorn as it had beyn,
And said; ‘He had sic message seyldyn seyne,
That Wallace now as gouernowr sall ryng:
Her is gret faute off a gud prince or kyng.
That king off Kyll I can nocht wndirstand;
Off him I held neuir a fur off land.
That bachiller trowis, for fortoun schawis her quhell,
Thar with to lest; it sall nocht lang be weill.
Bot to yow, lordis, and ye will wndirstand,
I mak yow wyss, I aw to mak na band.
Als fre I am in this regioun to ryng,
Lord off myn awne, as euyr was prince or king.
In Ingland als gret part off land I haiff;
Manreut tharoff thar will no man me craiff.
Quhat will ye mar? I warne yow, I am fre;
For your somoundis ye get no mar off me.’”

In corroboration of an insolent answer having been returned by the Earl of Dunbar, Dr Jamieson quotes the following authority: “When summoned by the guardian of Scotland to attend a convention at Perth, he contemptuously refused. Blind Harrie is supported by the Tower Records.” Caledonia, ii. p. 246.

Also on the following lines of the answer,

“That King off Kyll I can nocht wndirstand;
Off him I held neuir a fur off land,”

the Doctor remarks “I need scarcely say, that the earl had given Wallace this contemptuous designation, as being a native of the district of Kyle in Ayrshire.” It is with much reluctance we hazard an opinion at variance with so learned and respectable an authority as Dr Jamieson, more particularly, where the subject is one connected with a study,

in the pursuit of which, he has acquired a lasting and well-merited reputation. That the scoffing Earl intended any allusion to the birth-place of Wallace, by styling him “King of Kyle,” we would feel inclined to question, even if it had been established that he was a native of that district. Kyle, as well as Carrick, (two neighbouring districts of Ayrshire), are derived from the Celtic words, *Cóille*, and *Carraig*; the former signifying a forest, or woody district, and the latter the rocky portion of the country, two terms perfectly descriptive of the localities of both districts. Wallace had always been spoken of, by the English and their emissaries, as a leader of a banditti. Langtoft calls him “William Waleis that maister was of theves;” and they represented him as a sort of Robin Hood, who had established his authority in the woods of Scotland, in the same manner as the “King of merry Sherwood” had done in the forest of that name. When Gospatrick, therefore, called Wallace “King of Kyll,” we presume he meant to call him “King of the Forest,” which implied a king of robbers and outlaws; and that this was the sense in which it was understood by him and the Scottish nobles, is evident from the indignation it excited, and the instant determination of the Guardian to revenge the insult which had been thus offered to himself and those under his authority. To have called him the king of the place in which he was born, could not be considered by Wallace as a very grievous insult, considering the situation he occupied. That *Cóille* was at one time generally used all over Scotland to designate a wood, or forest, is evident from the names of many places in which the word can still be traced. It is, however, sometimes improperly confounded with *Cill*, (a place of interment). We are afraid that the above etymology will not meet the approbation of the favourers of the pretensions of Old King Coilus, but this we cannot help; and have only to regret that the ancient language of the country has been so little consulted by those who engage to write its history.

⁹⁴ This youth succeeded to his father's honours in 1309, being then 24 years of age. The foreign predilections of the old baron, for a long time regulated the conduct of the son; and it was owing to him that Edward II. escaped the pursuit of Bruce, after the battle of Bannockburn.

⁹⁵ A translation of the above document has been given by some writers nearly to the following effect:—"Andrew Murray and William Wallace, commanders of the army of Scotland, in the name of the excellent Prince Lord John, by the Grace of God, the illustrious King of Scotland, with the consent of the community of the same kingdom, to all men of the said kingdom, greeting. Know ye, that we, in the name of the said King, have taken the Prior and Convent of Hexhildesham in Northumberland, their lands, men, possessions, and all their goods, moveable and immoveable, under the firm peace and protection of the said Lord the King and ours. Wherefore we strictly forbid you to do any hurt, mischief, or injury whatsoever, to them, in persons, lands or goods, under penalty of forfeiture of your own goods and estates to the said Lord the King, or to kill them, or any of them, under pain of death. These presents to remain in force for one year, and no longer. Given at Hexhildesham the 7th day of November."

⁹⁶ Blore's "Monumental Remains."

⁹⁷ "Siege of Carlaverock."

⁹⁸ This celebrated Inn of Court is recorded to have been the town residence of the Bishops of Chichester, from the reign of Henry III. till that of Henry VIII. It seems, however, to have been for a short time possessed by the subject of this memoir, who, although the only Earl of Lincoln who resided there, left it the name, which it has permanently retained during the five subsequent centuries. The arms of Lacy, on the gatehouse in Chancery-Lane, were erected by Sir Thomas Lovel, together with his own, 1518.

⁹⁹ *Vide* Langtoft, vol. ii. 275–6. This author does not say a word of Baliol and his barons having been made acquainted with the agreement to surrender the castle on the third day.

¹⁰⁰ From the following reproof, which he gave the Treasurer at Roslin, it would appear that these, or similar monies due to him, had not been justly settled for; and perhaps the chagrin he felt on that account may have partly occasioned his defection from Edward.

“Symon was austere, to Rauf spak fulle grim:
‘That mad the Tresorere thou has desceyued him,
& me & many mo, fro our wages zede quite.
Sir Rauf thou resceyued tho, bi taile & bi scrite,
Thou did vs more trauaile, ilk man thou reft his wage.
Now salle I wite the taile, & put the in the Arerage,
Of preste thou has no merke, albe ne non amite,
Bot laced in a hauberke, thai is no clerkis abite.
For alle tho clerkes of Rome, that sing in kirk or rede,
Thou salle haf thi dome, als thou serued in dede.’”

Langtoft, vol. ii. p. 319.

¹⁰¹ Harl. MSS. 266.

¹⁰² Harl. MSS. No. 2253.

¹⁰³ Ancient Songs.

¹⁰⁴ Fædera, N. E. vol. i. 872

¹⁰⁵ In this explanation of the term, the writer finds himself at variance with the opinion of Mr Tytler, who says, “schiltron” seems to denote nothing more than a compact body of men. As this restricted meaning of the expression appears to have been adopted on the authority of Hemingford, who says, “qui quidem circuli Schiltronis vocabantur,” it is to be inferred that he has not examined the term with his accustomed accuracy. *Schiltron* is, without doubt, compounded of the two

Saxon words “scheld” and “roun.” When a general, in giving the word of command, called out “Scheltron” to any portion of his army, they would have as little difficulty in understanding him, as a modern battalion would if ordered to “form square.” It may also be observed, that by placing their shields together, they derived considerable advantage, being thereby enabled to form with greater celerity; and when once in order, a more impenetrable figure could not be presented to the attack of an enemy. That this is the ancient meaning of the word, is evident from the manner it is used by old chroniclers. Hearne, in his Glossary to Peter Langtoft, thus explains “Schelde,” *shield, target, buckler, protection, government*. “Sheltron,” *shelter, covering*, or rather *shiltrons*, or *round battailes*. The expression, therefore, in Hemingford, of “*circuli schiltronis*,” only shows that a man, even in a learned language, may utter an absurdity.

In order to render the schiltron formidable in offensive warfare, it was necessary to have the centre occupied with archers, who, enclosed within the barrier of the spearmen, could ply their deadly shafts in comparative security. That this was part of the plan of Wallace to supply his deficiency in cavalry at the battle of Falkirk, is highly probable. By this measure, neither the superiority of the enemy in this formidable description of force, nor the desertion of the Scottish cavalry, would have been so severely felt. That this arrangement did not take place, was very likely owing to the pertinacity of Steward, who commanded the archers, and rashly exposed himself and those under him to the overwhelming charges of the heavy armed squadrons of the English. This obstinacy on the part of the knight of Bonkill, affords a very natural solution of the feud between him and Wallace. Had the archers been in the centre of the schiltrons, they could have returned the murderous discharge of their enemies’ missiles with corresponding effect, and have eventually produced a more favourable termination to the operations of the day.

[106](#) To *The Bruce and The Wallace*, vol. ii. Edin. 1820, 4to.

Transcribers' Notes

Variations in punctuation, spelling, and hyphenation have been retained except as noted below.

Simple typographical errors were corrected; occasional unbalanced quotation marks have been retained except as noted below.

Some poems were preceded by a double-quotation mark and followed by a single-quotation mark. Those closing single marks have been changed to doubles.

Ambiguous hyphens at the ends of lines have been retained.

Primary footnotes have been placed into a single ascending sequence and are identified by number. Footnotes to footnotes have been placed into a single ascending sequence and are identified by letter.

Text used "Fitz-Alan" more than twice as often as "Fitz-Allan", so all occurrences have been regularized as "Fitz-Alan".

Text used "Valence" more often than "Vallence", so all occurrences have been regularized to "Valence."

There is no "Appendix J".

Page [20](#): "chanons" may be a misprint for "canons".

Page [21](#): "iron road" was printed that way.

Page [90](#): "might be seen stones arrows, and quarreaux," was printed with that punctuation.

Footnote [42](#), referenced on page [91](#): The ledger used carry-over lines from one printed page to the next. Those lines have been deleted in this eBook.

Page [104](#): Paragraph break added before “A large portion”, as the previous sentence ended on a very short line and was followed by a footnote.

Page [208](#): “THRID” was printed that way.

Page [210](#): A closing quotation mark was added just before the end of Appendix E.

Page [247](#): Closing quotation mark added after “Also to dyhte.”

Page [260](#): Opening quotation mark added before “The martyrdom of Wallace”.

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